

MEMORANDA

of

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2024 through July 31, 2024)

People v Ali	App Div, 2d Dept: 2024 NY Slip Op 63303(U) (Westchester)	dismissed 7/25/24 (Cannataro, J.)
People v Archie	4th Dept: 227 AD3d 1406 (Onondaga)	denied 7/18/24 (Garcia, J.)
People v Arevalo	2d Dept: 224 AD3d 768 (Nassau)	denied 7/17/24 (Halligan, J.)
People v Ayala	1st Dept: 225 AD3d 573 (Bronx)	denied 7/25/24 (Wilson, Ch. J.)
People v Bauza	4th Dept: 224 AD3d 1219 (Monroe)	denied 7/11/24 (Halligan, J.)
People v Belizaire	2d Dept: 222 AD3d 875 (Kings)	denied 7/30/24 (Halligan, J.)
People v Black	2d Dept: 227 AD3d 1098 (Kings)	denied 7/17/24 (Rivera, J.)
People v Blake (Kamui)	4th Dept: 227 AD3d 1421 (Monroe)	denied 7/9/24 (Garcia, J.) (Appeal No. 1)
People v Blake (Kamui)	4th Dept: 227 AD3d 1422 (Monroe)	denied 7/9/24 (Garcia, J.) (Appeal No. 2)
People v Bouie	4th Dept: 227 AD3d 1540 (Monroe)	denied 7/17/24 (Singas, J.)
People v Bradford	App Div, 4th Dept, 3/29/24 (Steuben)	dismissed 7/15/24 (Wilson, Ch. J.)
People v Branch	2d Dept: 224 AD3d 919 (Kings)	denied 7/25/24 (Wilson, Ch. J.)
People v Briggs	App Div, 3d Dept: 2024 NY Slip Op 65870(U) (Schenectady)	dismissed 7/9/24 (Garcia, J.)
People v Burgess	1st Dept: 222 AD3d 602 (NY)	denied 7/8/24 (Wilson, Ch. J.)
People v Burnett	App Term, 2d Dept, 9th & 10th Jud Dists: 81 Misc 3d 144 (A) (Nassau)	denied 7/3/24 (Troutman, J.)
People v Bynum	2d Dept: 225 AD3d 781 (Kings)	denied 7/15/24 (Wilson, Ch. J.)

People v "C"	4th Dept: 227 AD3d 1498 (Erie)	denied 7/25/24 (Garcia, J.)
People v Cain	4th Dept: 227 AD3d 1519 (Erie)	denied 7/31/24 (Wilson, Ch. J.)
People v Campbell	1st Dept: 227 AD3d 418 (Bronx)	denied 7/18/24 (Garcia, J.)
People v Cassis	App Term, 1st Dept: 82 Misc 3d 130(A) (NY)	denied 7/9/24 (Troutman, J.)
People v Chaopeng Chen	App Term, 1st Dept: 82 Misc 3d 126(A) (NY)	denied 7/31/24 (Wilson, Ch. J.)
People v Chavez	App Term, 1st Dept: 82 Misc 3d 132(A) (Bronx)	denied 7/31/24 (Singas, J.)
People v Cole	1st Dept: 226 AD3d 412 (NY)	denied 7/25/24 (Cannataro, J.)
People v Delgado	2d Dept: 221 AD3d 909 (Queens)	denied 7/11/24 (Halligan, J.)
People v Dillard	4th Dept: 227 AD3d 1501 (Monroe)	denied 7/26/24 (Singas, J.)
People v Dilone	1st Dept: 225 AD3d 409 (NY)	denied 7/31/24 (Singas, J.)
People v Dorsey	3d Dept: 226 AD3d 1105 (Saratoga)	denied 7/11/24 (Cannataro, J.)
People v Drake	1st Dept: 225 AD3d 504 (Bronx)	denied 7/25/24 (Wilson, Ch. J.)
People v Durham	3d Dept: 226 AD3d 1099 (Broome)	denied 7/8/24 (Troutman, J.)
People v Eason	1st Dept: 228 AD3d 443 (Bronx)	denied 7/17/24 (Rivera, J.)
People v Esson	2d Dept: 225 AD3d 786 (Orange)	denied 7/8/24 (Troutman, J.)
People v Fennell	App Div, 1st Dept: 2024 NY Slip Op 61210(U) (NY)	denied 7/15/24 (Wilson, Ch. J.)
People v Fernandez	1st Dept: 226 AD3d 488 (Bronx)	denied 7/3/24 (Troutman, J.)
People v Fischetto	App Term, 2d Dept, 9th & 10th Jud Dists: 82 Misc 3d 131(A) (Nassau)	denied 7/11/24 (Garcia, J.)
People v Foust	App Div, 2d Dept: 2024 NY Slip Op 66287(U) (Kings)	dismissed 7/2/24 (Troutman, J.)
People v Gang	2d Dept: 225 AD3d 625 (Kings)	denied 7/11/24 (Halligan, J.)
People v Gaylord	3d Dept: 224 AD3d 1169 (Tioga)	denied 7/11/24 (Halligan, J.)
People v Gilberto D.	1st Dept: 227 AD3d 512 (NY)	denied 7/31/24 (Singas, J.)
People v Gomez	2d Dept: 225 AD3d 710 (Dutchess)	denied 7/8/24 (Troutman, J.)
People v Granger	4th Dept: 225 AD3d 1286 (Jefferson)	denied 7/30/24 (Halligan, J.)
People v Green	4th Dept: 227 AD3d 1372 (Monroe)	denied 7/25/24 (Garcia, J.)

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People v Gunn	App Div, 4th Dept, 5/9/24 (Onondaga)	dismissed 7/17/24 (Singas, J.)
People v Gwalla	3d Dept: 222 AD3d 1171 (Albany)	denied 7/8/24 (Troutman, J.)
People v Heidrich	3d Dept: 226 AD3d 1096 (Saratoga)	denied 7/9/24 (Troutman, J.)
People v Hemingway	3d Dept: 224 AD3d 1167 (Clinton)	granted 7/31/24 (Halligan, J.)
People v Hendricks	2d Dept: 224 AD3d 705 (Kings)	denied 7/2/24 (Troutman, J.)
People v Hidalgo	1st Dept: 227 AD3d 594 (NY)	denied 7/25/24 (Wilson, Ch. J.)
People v Huginnie	2d Dept: 225 AD3d 894 (Queens)	denied 7/30/24 (Halligan, J.)
People v Hunt (Clifford)	4th Dept: 227 AD3d 1482 (Wayne)	denied 7/25/24 (Cannataro, J.)
People v Hunt (Harold)	1st Dept: 225 AD3d 501 (NY)	denied 7/8/24 (Troutman, J.)
People v Irving	2d Dept: 226 AD3d 703 (Kings)	denied 7/11/24 (Halligan, J.)
People v Ison	2d Dept: 226 AD3d 1048 (Queens)	denied* 7/9/24 (Troutman, J.)
People v Jackson (Eddie)	4th Dept: 225 AD3d 1136 (Onondaga)	denied 7/16/24 (Cannataro, J.)
People v Jackson (Jamol)	4th Dept: 225 AD3d 1150 (Monroe)	denied 7/31/24 (Wilson, Ch. J.)
People v Jackson (Raheen)	1st Dept: 220 AD3d 469 (Bronx)	denied 7/2/24 (Troutman, J.)
People v Jackson (Raphael)	App Div, 1st Dept: 2024 NY Slip Op 63228(U) (NY)	denied 7/15/24 (Wilson, Ch. J.)
People v James NN.	3d Dept: 224 AD3d 1014 (Schenectady)	denied 7/11/24 (Halligan, J.)
People v Javier	1st Dept: 222 AD3d 532 (NY)	denied 7/16/24 (Cannataro, J.)
People v Jenne	3d Dept: 224 AD3d 953 (Broome)	denied 7/2/24 (Wilson, Ch. J.)
People v Jimenez	App Div, 2d Dept: 2024 NY Slip Op 66092(U) (Nassau)	dismissed 7/25/24 (Garcia, J.)
People v John B.	App Term, 1st Dept: 82 Misc 3d 132(A) (Bronx)	denied 7/9/24 (Garcia, J.)
People v Johnson (Airyck)	3d Dept: 222 AD3d 1171 (Albany)	denied 7/8/24 (Troutman, J.)
People v Johnson (Daquan)	1st Dept: 223 AD3d 571 (NY)	denied 7/8/24 (Troutman, J.)
People v Johnson (Isaiah)	3d Dept: 225 AD3d 927 (Chemung)	denied 7/3/24 (Troutman, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Blue* (202 AD3d 546 [1st Dept 2022], *lv granted* 39 NY3d 984 [2022]) or *People v Dixon* (211 AD3d 1030 [2d Dept 2022], *lv granted* 40 NY3d 933 [2023]), whichever is later.

People v Johnson (Nicholas)	1st Dept: 226 AD3d 521 (NY)	denied 7/29/24 (Singas, J.)
People v Johnson (Taivon)	1st Dept: 226 AD3d 597 (NY)	denied 7/2/24 (Wilson, Ch. J.)
People v Johnson (Tayvon)	3d Dept: 222 AD3d 1171 (Albany)	denied 7/8/24 (Troutman, J.)
People v Jones	App Div, 3d Dept: 2024 NY Slip Op 68327(U) (Albany)	dismissed 7/25/24 (Garcia, J.)
People v Karnes	3d Dept: 223 AD3d 1119 (Essex)	denied 7/3/24 (Troutman, J.)
People v King	4th Dept: 225 AD3d 1216 (Onondaga)	denied 7/8/24 (Wilson, Ch. J.)
People v Kirkland (Tarence)*	App Div, 2d Dept: 2024 NY Slip Op 60756(U) (Westchester)	denied reconsideration 5/29/24 (Wilson, Ch. J.)
People v Kirkland (Tarence)*	App Div, 2d Dept: 2024 NY Slip Op 60145(U) (Westchester)	denied reconsideration 5/29/24 (Wilson, Ch. J.)
People v Kornegay	1st Dept: 228 AD3d 442 (NY)	denied 7/25/24 (Cannataro, J.)
People v Lafferty	4th Dept: 227 AD3d 1480 (Wayne)	denied 7/26/24 (Singas, J.)
People v Lawrence	2d Dept: 226 AD3d 827 (Orange)	denied 7/3/24 (Troutman, J.)
People v Leighton R.	1st Dept: 223 AD3d 597 (Bronx)	granted 7/3/24 (Troutman, J.)
People v Leonard	App Div, 4th Dept, 3/7/24 (Monroe)	dismissed 7/25/24 (Cannataro, J.)
People v Lopes	App Div, 1st Dept: 2024 NY Slip Op 66556(U) (NY)	denied 7/8/24 (Troutman, J.)
People v Lucky	2d Dept: 225 AD3d 713 (Kings)	denied 7/30/24 (Halligan, J.)
People v Lyon	4th Dept: 227 AD3d 1521 (Oneida)	denied 7/17/24 (Rivera, J.)
People v Mansfield	3d Dept: 223 AD3d 1111 (Albany)	denied 7/30/24 (Halligan, J.)
People v Martinez	1st Dept: 223 AD3d 478 (Bronx)	denied 7/17/24 (Rivera, J.)
People v Mateo	1st Dept: 227 AD3d 483 (Bronx)	denied 7/18/24 (Garcia, J.)
People v Mayes	1st Dept: 226 AD3d 460 (NY)	denied 7/8/24 (Troutman, J.)
People v McKnight	2d Dept: 226 AD3d 704 (Suffolk)	denied 7/16/24 (Cannataro, J.)
People v Mehalick	3d Dept: 226 AD3d 1263 (Washington)	denied 7/25/24 (Cannataro, J.)

* Omitted from May 2024 list.

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People v Miller	1st Dept: 225 AD3d 571 (NY)	denied 7/15/24 (Wilson, Ch. J.)
People v Moody	App Term, 1st Dept: 81 Misc 3d 138(A) (NY)	denied 7/16/24 (Cannataro, J.)
People v Moore	2d Dept: 225 AD3d 629 (Queens)	denied 7/31/24 (Singas, J.)
People v Mora	1st Dept: 227 AD3d 553 (Bronx)	denied 7/31/24 (Singas, J.)
People v Mosher	3d Dept: 226 AD3d 1260 (Tompkins)	denied 7/30/24 (Halligan, J.)
People v Moss	4th Dept: 224 AD3d 1225 (Monroe)	denied 7/8/24 (Wilson, Ch. J.)
People v Newton	4th Dept: 227 AD3d 1392 (Monroe)	denied 7/10/24 (Garcia, J.)
People v Nolan	3d Dept: 224 AD3d 996 (Sullivan)	denied 7/3/24 (Troutman, J.)
People v Norwood	1st Dept: 222 AD3d 533 (Bronx)	denied 7/8/24 (Troutman, J.)
People v Ortega	4th Dept: 227 AD3d 1493 (Monroe)	denied 7/9/24 (Garcia, J.)
People v Padilla	1st Dept: 224 AD3d 484 (NY)	denied 7/16/24 (Cannataro, J.)
People v Peters	2d Dept: 227 AD3d 829 (Kings)	denied 7/25/24 (Wilson, Ch. J.)
People v Pickett	2d Dept: 222 AD3d 886 (Dutchess)	denied 7/25/24 (Wilson, Ch. J.)
People v Pisano	1st Dept: 227 AD3d 419 (NY)	denied 7/8/24 (Troutman, J.)
People v Polanco	App Term, 1st Dept: 82 Misc 3d 130(A) (Bronx)	denied 7/10/24 (Garcia, J.)
People v Potomont	2d Dept: 225 AD3d 789 (Kings)	denied 7/9/24 (Troutman, J.)
People v Ramos	1st Dept: 226 AD3d 461 (Bronx)	denied 7/9/24 (Cannataro, J.)
People v Rivers	2d Dept: 225 AD3d 899 (Queens)	denied 7/2/24 (Wilson, Ch. J.)
People v Rodriguez	1st Dept: 227 AD3d 482 (Bronx)	denied 7/8/24 (Troutman, J.)
People v Rojas	1st Dept: 227 AD3d 415 (NY)	denied 7/29/24 (Singas, J.)
People v Roland R.	1st Dept: 227 AD3d 576 (Bronx)	denied 7/15/24 (Wilson, Ch. J.)
People v Rossborough	4th Dept: 227 AD3d 1502 (Livingston)	denied 7/17/24 (Singas, J.)
People v Royal	4th Dept: 227 AD3d 1375 (Erie)	denied 7/25/24 (Garcia, J.)
People v Sanchez	1st Dept: 226 AD3d 441 (Bronx)	denied 7/8/24 (Troutman, J.)
People v Scarver	4th Dept: 227 AD3d 1498 (Erie)	denied 7/25/24 (Garcia, J.)

People v Scission	4th Dept: 225 AD3d 1243 (Erie)	denied 7/17/24 (Rivera, J.)
People v Scott	1st Dept: 226 AD3d 443 (NY)	denied 7/15/24 (Wilson, Ch. J.)
People v Shaw	4th Dept: 222 AD3d 1401 (Monroe)	denied 7/15/24 (Wilson, Ch. J.)
People v Sholtz	4th Dept: 225 AD3d 1240 (Onondaga)	denied 7/25/24 (Cannataro, J.)
People v S.J.	1st Dept: 227 AD3d 626 (NY)	denied 7/31/24 (Singas, J.)
People v Smalls	App Term, 1st Dept: 82 Misc 3d 131(A) (NY)	denied 7/15/24 (Wilson, Ch. J.)
People v Smith (Antwon)	4th Dept: 227 AD3d 1514 (Monroe)	denied 7/25/24 (Cannataro, J.)
People v Smith (Rysheim)	1st Dept: 223 AD3d 574 (NY)	denied 7/8/24 (Troutman, J.)
People v Spencer (Antwan)	1st Dept: 224 AD3d 512 (NY)	denied 7/8/24 (Wilson, Ch. J.)
People v Spencer (John)*	4th Dept: 225 AD3d 1200 (Monroe)	denied 5/28/24 (Wilson, Ch. J.)
People v Stansberry	3d Dept: 224 AD3d 1089 (Ulster)	denied 7/3/24 (Troutman, J.)
People v Stricklin	1st Dept: 227 AD3d 575 (Bronx)	denied 7/25/24 (Cannataro, J.)
People v Tafari	App Div, 2d Dept: 2024 NY Slip Op 66287(U) (Kings)	dismissed 7/2/24 (Troutman, J.)
People v Tejada	1st Dept: 226 AD3d 543 (NY)	denied 7/25/24 (Cannataro, J.)
People v Thaxton	3d Dept: 222 AD3d 1171 (Albany)	denied 7/8/24 (Troutman, J.)
People v Thomakos	App Term, 1st Dept: 82 Misc 3d 126 (A) (Bronx)	denied 7/8/24 (Troutman, J.)
People v Thomaskos	App Term, 1st Dept: 82 Misc 3d 126(A) (Bronx)	denied 7/8/24 (Troutman, J.)
People v Trantham	2d Dept: 225 AD3d 714 (Queens)	denied 7/17/24 (Rivera, J.)
People v Trimm	App Div, 3d Dept: 2024 NY Slip Op 66827(U) (St. Lawrence)	denied 7/11/24 (Garcia, J.)
People v Truax	4th Dept: 225 AD3d 1198 (Onondaga)	denied 7/11/24 (Cannataro, J.)
People v Ulmer	3d Dept: 226 AD3d 1259 (Schenectady)	denied 7/8/24 (Troutman, J.)
People v Vasquez (Marie)	1st Dept: 227 AD3d 417 (NY)	denied 7/16/24 (Cannataro, J.)
People v Vasquez (Randy)	1st Dept: 225 AD3d 455 (NY)	denied 7/8/24 (Wilson, Ch. J.)
People v Velardo	1st Dept: 228 AD3d 520 (Bronx)	denied 7/24/24 (Rivera, J.)

* Omitted from May 2024 list.

People v Veliz	2d Dept: 222 AD3d 785 (Nassau)	denied 7/25/24 (Wilson, Ch. J.)
People v Vizcarrando	1st Dept: 226 AD3d 573 (NY)	denied 7/25/24 (Garcia, J.)
People v Washington	2d Dept: 225 AD3d 632 (Queens)	denied 7/16/24 (Cannataro, J.)
People v Weber	3d Dept: 226 AD3d 1158 (Broome)	denied 7/3/24 (Troutman, J.)
People v White	2d Dept: 226 AD3d 1054 (Nassau)	denied 7/11/24 (Cannataro, J.)

[241 NE3d 794, 217 NYS3d 25]

PHILIPPE E. MULACEK et al., Appellants, v EXXONMOBIL CORPORATION et al., Respondents.

Argued April 16, 2024; decided May 16, 2024

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 25, 2023. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Barry R. Ostrager, J.; op 2022 NY Slip Op 34560[U] [2022]), which had granted defendants' motion to dismiss the complaint.

Mulacek v ExxonMobil Corp., 216 AD3d 114, affirmed.

HEADNOTE

Contracts — Construction — Contingent Resource Payment Agreement — Plaintiffs Barred from Commencing Action to Enforce Third-Party Beneficiary Rights

A provision of a contingent resource payment (CRP) agreement unambiguously barred plaintiffs, who were shareholders of an oil and gas company acquired by defendants, from commencing an action on their own behalf to enforce their third-party beneficiary rights under the agreement. Pursuant to the agreement, the shareholders, such as plaintiffs, became holders of receipts evincing their entitlement to a CRP. The agreement denominated holders of more than 25% of the receipts as required holders and empowered a holder committee to act as the holders' agent in certain circumstances. The provision in question negated any right of the holders except as "expressly set forth" therein, and it expressly set forth the right of the required holders or the holder committee to commence certain types of actions or proceedings. Nothing in the provision expressly set forth a right of the holders to commence an action on their own behalf or otherwise. The agreement thus explicitly negated any right of plaintiffs to commence an action on their own behalf to enforce the covenants set forth in the agreement. To the extent that

any other provisions in the agreement could be read to imply such a right, the provision's restrictions on the right to sue prevailed "[n]otwithstanding anything to the contrary in th[e] Agreement." Moreover, the final sentence of the provision established that enforcement of the covenants was "[s]ubject to" those restrictions.

APPEARANCES OF COUNSEL

Boies Schiller Flexner LLP, New York City (*Jenny H. Kim*, *Michael M. Fay*, *Jeffrey P. Waldron* and *Virginia Su* of counsel), for appellants.

Davis Polk & Wardwell LLP, New York City (*Andrew Ditchfield*, *Lindsay Schare* and *Sean Stefanik* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiffs were shareholders of InterOil Corporation, a Canadian oil and gas company. Defendants acquired InterOil by paying its shareholders a fee per share and agreeing to make a contingent resource payment (CRP) based on an independent appraisal of the volume of resources in certain wells located in Papua New Guinea and calculated pursuant to a formula set forth in a CRP agreement. Under that agreement, InterOil's shareholders, such as plaintiffs, became "Holders" of receipts evincing their entitlement to a CRP. The agreement denominates Holders of more than 25% of the receipts as "Required Holders" and empowers a "Holder Committee" to act as the Holders' agent in certain circumstances. The agreement, in addition to providing for a determination of the volume of resources by an independent appraiser, sets forth covenants that defendants would, among other things, ensure that the volume of resources was determined consistent with the procedures set forth in a separate agreement. Section 8.05 provides that those covenants are "in favor of and for the benefit of the Holders." At the same time, section 8.05 provides that the Holders have "no rights" under the agreement except as "expressly set forth" therein. The sentence that immediately follows provides that

"only the Required Holders or the Holder Committee (with Required Holder approval) will have the right, on behalf of all Holders, by virtue of or under any provision of this Agreement, to institute any action or proceeding . . . with respect to this Agree-

ment, and no individual Holder or other group of Holders will be entitled to exercise such rights.”

Plaintiffs commenced this action alleging that defendants breached the covenants, thereby devaluing the CRP. Defendants moved to dismiss the complaint pursuant to, *inter alia*, CPLR 3211 (a) (1) and (3) on the ground that, under section 8.05, only the Required Holders—which plaintiffs are not—and the Holder Committee have standing to commence an action to enforce the covenants. Plaintiffs countered that section 8.05 is a “no-class action” clause that bars them only from commencing an action “on behalf of all Holders” but preserves their right to commence an action on their own behalf (*see* 216 AD3d 114, 117-118 [1st Dept 2023]). Supreme Court granted the motion and dismissed the complaint (*see* 2022 NY Slip Op 34560[U] [Sup Ct, NY County 2022]), and the Appellate Division affirmed (*see* 216 AD3d at 123).

On a motion to dismiss based on documentary evidence pursuant to CPLR 3211 (a) (1), dismissal is warranted only if the documentary evidence conclusively establishes a defense as a matter of law (*see Leon v Martinez*, 84 NY2d 83, 88 [1994]). A motion to dismiss based on a written agreement that contains a material ambiguity must be denied because such an agreement does not conclusively establish the asserted defense as a matter of law (*see Upfront Megatainment, Inc. v Thiam*, 215 AD3d 576, 578 [1st Dept 2023]; *Slezak v Stewart’s Shops Corp.*, 133 AD3d 1179, 1180 [3d Dept 2015]). Ambiguity exists if the agreement, “read as a whole, fails to disclose its purpose and the parties’ intent . . . , or when specific language is ‘susceptible of two reasonable interpretations’” (*Ellington v EMI Music, Inc.*, 24 NY3d 239, 244 [2014]). On the other hand, the agreement is unambiguous and should be enforced on its plain terms “if the language it uses has ‘a definite and precise meaning, unattended by danger of misconception . . . , and concerning which there is no reasonable basis for a difference of opinion’” (*Greenfield v Philles Records*, 98 NY2d 562, 569 [2002]; *see Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549, 559-560 [2014]).

Contrary to plaintiffs’ contention, section 8.05 unambiguously bars them from commencing an action on their own behalf to enforce their third-party beneficiary rights under the agreement. Section 8.05 negates any right of the Holders except as “expressly set forth” therein, and it expressly sets forth the right of the Required Holders or the Holder Committee to com-

mence certain types of actions or proceedings. Nothing in section 8.05 expressly sets forth a right of the Holders to commence an action on their own behalf or otherwise. The agreement thus “explicitly negates” any right of plaintiffs to commence an action on their own behalf to enforce the covenants (*Mendel v Henry Phipps Plaza W., Inc.*, 6 NY3d 783, 786-787 [2006]). To the extent that any other provisions in the agreement could be read to imply such a right, section 8.05’s restrictions on the right to sue prevail “[n]otwithstanding anything to the contrary in th[e] Agreement.” Moreover, the final sentence of section 8.05 establishes that enforcement of the covenants is “[s]ubject to” those restrictions.

The parties’ remaining contentions are academic.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs, in a memorandum.

[242 NE3d 667, 217 NYS3d 881]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOMINIC F. SPIRITO, Appellant.

Argued April 17, 2024; decided May 21, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered May 4, 2023. The Appellate Division affirmed a judgment of the Tioga County Court (Gerald A. Keene, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a weapon in the third degree (two counts).

People v Spirito, 216 AD3d 1208, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Search of Residence by Parole Officer

Defendant’s motion to suppress the rifle and extended magazines with extra gun parts found in his bedroom when defendant’s parole officer and other officers searched his residence was properly denied as there was record support for the lower courts’ conclusion that the search was rationally and reasonably related to the performance of the parole officer’s duty. Defendant

was not permitted to own, possess, or purchase any firearm without his parole officer's permission, there were serious concerns regarding defendant's mental health, and defendant's mother had contacted the parole office to inform them that she saw a photograph of defendant with a firearm.

APPEARANCES OF COUNSEL

D.J. & J.A. Cirando, PLLC, Syracuse (*John A. Cirando* and *Rebecca L. Konst* of counsel), for appellant.

Kirk O. Martin, District Attorney, Owego (*Cheryl Mancini* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

As a condition of his parole, defendant agreed not to “own, possess, or purchase” any firearm without permission from his parole officer. Defendant was given “the most severe” mental health designation from the Department of Corrections and Community Supervision, Office of Mental Health (OMH) level 1-S, indicating there were “serious” concerns regarding his mental health. Shortly after defendant's release to parole, his parole officer received information from his supervisor that defendant's mother contacted the parole office to inform them that she saw a photograph of defendant with a firearm, and gave the parole officers permission to search the residence that she shared with defendant.* Acting on this information, defendant's parole officer, with the assistance of other officers, conducted a search of defendant's home and recovered an AR-15 style rifle and two 30-round extended magazines with extra gun parts from defendant's bedroom.

Based on the foregoing, there is record support for the lower courts' conclusion (*see* 216 AD3d 1208 [3d Dept 2023]) that the search of defendant's residence by defendant's parole officer was “rationally and reasonably related to the performance of the parole officer's duty” and so defendant's motion to suppress this evidence was properly denied (*People v Huntley*, 43 NY2d 175, 181 [1977]). The *Aguilar-Spinelli* test (*see Aguilar v Texas*, 378 US 108 [1964]; *Spinelli v United States*, 393 US 410 [1969]) for evaluating whether a tip provides police with probable cause for a search or seizure does not apply in these circumstances (*see generally Huntley*, 43 NY2d at 181).

* The People do not rely on the mother's permission for the search of defendant's residence.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, in a memorandum.

[242 NE3d 671, 217 NYS3d 886]

In the Matter of PRISONERS' LEGAL SERVICES OF NEW YORK, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Argued May 16, 2024; decided June 13, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 27, 2022. The Appellate Division order, insofar as appealed from, as limited by the briefs, affirmed (1) a judgment (denominated decision, order and judgment) of the Supreme Court, Albany County (Kimberly A. O'Connor, J.), entered February 11, 2021, in a combined CPLR article 78 proceeding and action for a declaratory judgment, which had (a) denied, as moot, those portions of the petition challenging the denial of petitioner's June 6, 2019 Freedom of Information Law (FOIL) request pertaining to Antonion Christian and July 22, 2019 FOIL request pertaining to Phillip Bradley; (b) denied those portions of the petition seeking declaratory relief; and (c) held the determination of the remainder of the petition in abeyance pending in camera review of the requested video footage to be provided by respondent New York State Department of Corrections and Community Supervision; and (2) a judgment (denominated decision, order and judgment) of that Supreme Court, entered June 8, 2021, which had denied the remainder of the petition.

Matter of Prisoners' Legal Servs. of N.Y. v New York State Dept. of Corr. & Community Supervision, 209 AD3d 1208, affirmed.

HEADNOTE

Appeal — Academic and Moot Questions

The Appellate Division order affirming the dismissal of a combined CPLR article 78 proceeding and action for a declaratory judgment was affirmed as the Appellate Division did not abuse its discretion in declining to invoke the mootness exception to review the merits of certain of petitioner's challenges in the proceeding.

APPEARANCES OF COUNSEL

Karen Murtagh, Prisoners' Legal Services of New York, Albany (Matthew McGowan of counsel), for appellant.

Letitia James, Attorney General, Albany (Beezly J. Kiernan, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division insofar as appealed from, as limited by the briefs, should be affirmed, without costs.

This Court's review is limited to whether the Appellate Division abused its discretion in declining to invoke the mootness exception to review the merits of certain of petitioner's challenges in this proceeding. There was no abuse of discretion here (*see Matter of David C.*, 69 NY2d 796, 798 [1987]; *Matter of Anonymous*, 55 NY2d 1021, 1022 [1982]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from, as limited by the briefs, affirmed, without costs, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2024 through August 31, 2024)

People v Acosta	1st Dept: 228 AD3d 440 (NY)	denied 8/13/24 (Garcia, J.)
People v Alexander	2d Dept: 226 AD3d 1042 (Dutchess)	denied 8/7/24 (Rivera, J.)
People v Andrews	2d Dept: 226 AD3d 809 (Kings)	denied 8/16/24 (Rivera, J.)
People v Banks	3d Dept: 227 AD3d 1225 (Clinton)	denied 8/12/24 (Halligan, J.)
People v Battis	2d Dept: 228 AD3d 951 (Kings)	denied 8/13/24 (Garcia, J.)
People v Booker	2d Dept: 226 AD3d 1045 (Suffolk)	denied 8/20/24 (Singas, J.)
People v Boone	2d Dept: 227 AD3d 1098 (Queens)	denied 8/8/24 (Halligan, J.)
People v Brown	2d Dept: 224 AD3d 922 (Kings)	denied 8/6/24 (Rivera, J.)
People v Carter	2d Dept: 228 AD3d 682 (Queens)	denied 8/21/24 (Garcia, J.)
People v Cerna	2d Dept: 228 AD3d 954 (Queens)	denied 8/29/24 (Wilson, Ch. J.)

People v Cook	4th Dept: 229 AD3d 1166 (Erie)	denied 8/26/24 (Cannataro, J.)
People v Cordero	1st Dept: 226 AD3d 440 (NY)	denied 8/21/24 (Garcia, J.)
People v Cowan	2d Dept: 228 AD3d 684 (Queens)	denied 8/21/24 (Garcia, J.)
People v Egegbara	1st Dept: 228 AD3d 408 (NY)	denied 8/13/24 (Garcia, J.)
People v Ellis	2d Dept: 225 AD3d 784 (Queens)	denied 8/12/24 (Wilson, Ch. J.)
People v Elmore	4th Dept: 211 AD3d 1536 (Onondaga)	denied 8/29/24 (Wilson, Ch. J.)
People v Flash	4th Dept: 225 AD3d 1133 (Ontario)	denied ¹ 8/22/24 (Garcia, J.)
People v Gaudin	App Term, 1st Dept: 83 Misc 3d 128(A) (NY)	denied 8/8/24 (Garcia, J.)
People v Goodman	2d Dept: 224 AD3d 704 (Queens)	denied 8/12/24 (Halligan, J.)
People v Gordon	2d Dept: 222 AD3d 994 (Kings)	denied 8/12/24 (Halligan, J.)
People v Gore	2d Dept: 224 AD3d 848 (Queens)	denied 8/29/24 (Wilson, Ch. J.)
People v Graham	3d Dept: 228 AD3d 999 (Chemung)	denied 8/29/24 (Wilson, Ch. J.)
People v Gregg	1st Dept: 228 AD3d 468 (NY)	denied 8/26/24 (Cannataro, J.)
People v Hendricks (Myisha)	1st Dept: 228 AD3d 587 (NY)	denied 8/21/24 (Garcia, J.)
People v Hendricks (Tyrell)	1st Dept: 228 AD3d 587 (NY)	denied 8/21/24 (Garcia, J.)
People v Hernandez	1st Dept: 224 AD3d 415 (Bronx)	granted 8/20/24 (Cannataro, J.)
People v Highsmith	App Div, 4th Dept, 5/6/24 (Erie)	dismissed 8/8/24 (Halligan, J.)
People v Hines	3d Dept: 228 AD3d 995 (Albany)	denied ² 8/21/24 (Garcia, J.)
People v Hinspeter	App Div, 2d Dept: 2024 NY Slip Op 65383(U) (Westchester)	denied 8/12/24 (Halligan, J.)
People v Hyer	3d Dept: 226 AD3d 1147 (Delaware)	denied 8/12/24 (Halligan, J.)
People v Iverson	App Div, 2d Dept: 2024 NY Slip Op 63314(U) (Kings)	denied reconsideration 8/12/24 (Halligan, J.)
People v Jenkins	2d Dept: 228 AD3d 782 (Westchester)	denied 8/26/24 (Cannataro, J.)

1. Denied reconsideration, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Scott* (224 AD3d 1238 [4th Dept 2024], *lv granted* 41 NY3d 1020 [2024]).

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Mero* (221 AD3d 1242 [3d Dept 2023], *lv granted* 40 NY3d 1095 [2024]).

MEMORANDA

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People v Johnson	1st Dept: 225 AD3d 453 (Bronx)	granted 8/12/24 (Troutman, J.)
People v Jordan W.	2d Dept: 227 AD3d 735 (Queens)	denied 8/1/24 (Troutman, J.)
People v Key	2d Dept: 223 AD3d 755 (Kings)	denied 8/12/24 (Halligan, J.)
People v Lathrop	4th Dept: 227 AD3d 1503 (Monroe)	denied 8/12/24 (Halligan, J.)
People v Leon	1st Dept: 228 AD3d 536 (Bronx)	denied 8/29/24 (Wilson, Ch. J.)
People v Lewis	3d Dept: 224 AD3d 1143 (Albany)	denied 8/16/24 (Rivera, J.)
People v Lopez	App Term, 1st Dept: 84 Misc 3d 1 (NY)	denied 8/7/24 (Rivera, J.)
People v Lynch	4th Dept: 225 AD3d 1243 (Herkimer)	denied 8/26/24 (Cannataro, J.)
People v Maharaj	2d Dept: 225 AD3d 628 (Queens)	denied 8/12/24 (Halligan, J.)
People v Mahoney	2d Dept: 226 AD3d 1050 (Dutchess)	denied 8/1/24 (Troutman, J.)
People v Maldonado	1st Dept: 221 AD3d 546 (Bronx)	denied 8/29/24 (Wilson, Ch. J.)
People v Manwarring	2d Dept: 226 AD3d 1052 (Kings)	denied 8/1/24 (Troutman, J.)
People v Matthew F.	1st Dept: 228 AD3d 586 (NY)	denied 8/7/24 (Rivera, J.)
People v Maxon (Maurice)	4th Dept: 225 AD3d 1132 (Ontario)	denied ³ 8/22/24 (Garcia, J.) (Appeal No. 1)
People v Maxon (Maurice)	4th Dept: 225 AD3d 1133 (Ontario)	denied ⁴ 8/22/24 (Garcia, J.) (Appeal No. 2)
People v McKinney	App Div, 3d Dept: 2024 NY Slip Op 67202(U) (Montgomery)	dismissed 8/26/24 (Halligan, J.)
People v Mendoza	App Term, 2d Dept, 9th & 10th Jud Dists: 82 Misc 3d 129(A) (Rockland)	denied 8/12/24 (Halligan, J.)
People v Mouna	2d Dept: 228 AD3d 783 (Kings)	denied 8/12/24 (Halligan, J.)
People v Newsom	1st Dept: 227 AD3d 508 (NY)	denied 8/21/24 (Garcia, J.)
People v Osbourne	1st Dept: 223 AD3d 632 (NY)	denied 8/29/24 (Wilson, Ch. J.)
People v Phearsdorf	4th Dept: 229 AD3d 1165 (Livingston)	denied 8/20/24 (Singas, J.)
People v Pizzaro	App Div, 4th Dept: 2024 NY Slip Op 68609(U) (Niagara)	denied 8/20/24 (Singas, J.)

3. Denied reconsideration, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Scott* (224 AD3d 1238 [4th Dept 2024], *lv granted* 41 NY3d 1020 [2024]).

4. Denied reconsideration, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Scott* (224 AD3d 1238 [4th Dept 2024], *lv granted* 41 NY3d 1020 [2024]).

People v Pooler	2d Dept: 226 AD3d 705 (Nassau)	denied 8/9/24 (Garcia, J.)
People v Przybysz	County Ct, 5/8/24 (Erie)	denied 8/16/24 (Singas, J.)
People v Ramirez	1st Dept: 226 AD3d 625 (Bronx)	denied ⁵ 8/29/24 (Wilson, Ch. J.)
People v Reyes	2d Dept: 227 AD3d 830 (Dutchess)	denied 8/29/24 (Wilson, Ch. J.)
People v Riche	2d Dept: 225 AD3d 30 (Kings)	denied 8/12/24 (Troutman, J.)
People v Robinson	App Div, 3d Dept: 2024 NY Slip Op 67861(U) (Broome)	dismissed 8/20/24 (Singas, J.)
People v Roebuck	2d Dept: 228 AD3d 688 (Kings)	denied 8/29/24 (Wilson, Ch. J.)
People v Roundtree	4th Dept: 227 AD3d 1498 (Monroe)	denied 8/7/24 (Wilson, Ch. J.)
People v Ruiz	2d Dept: 228 AD3d 785 (Queens)	denied 8/1/24 (Troutman, J.)
People v Santos-Rivera	App Div, 3d Dept: 2024 NY Slip Op 67859(U) (Montgomery)	dismissed 8/29/24 (Wilson, Ch. J.)
People v Sedore	4th Dept: 227 AD3d 1452 (Cayuga)	denied 8/16/24 (Singas, J.)
People v Shawn G.G.	4th Dept: 225 AD3d 1246 (Jefferson)	denied 8/12/24 (Halligan, J.)
People v Shehabeldin	App Div, 2d Dept: 2024 NY Slip Op 61807(U) (Kings)	dismissed 8/1/24 (Troutman, J.)
People v Shuler	1st Dept: 227 AD3d 448 (Bronx)	denied 8/1/24 (Troutman, J.)
People v Slade	1st Dept: 228 AD3d 439 (Bronx)	denied 8/1/24 (Troutman, J.)
People v Smith (Hillard)	4th Dept: 227 AD3d 1509 (Erie)	denied 8/12/24 (Halligan, J.)
People v Smith (Jamal)	2d Dept: 227 AD3d 1112 (Richmond)	denied 8/13/24 (Garcia, J.)
People v Smith (Jason)	2d Dept: 228 AD3d 962 (Kings)	denied 8/16/24 (Singas, J.)
People v Smith (Mark)	4th Dept: 227 AD3d 1509 (Erie)	denied 8/12/24 (Halligan, J.)
People v Strub	2d Dept: 227 AD3d 1113 (Suffolk)	denied 8/29/24 (Troutman, J.)
People v Tavares	1st Dept: 228 AD3d 519 (Bronx)	denied 8/1/24 (Troutman, J.)
People v Thomas	App Div, 4th Dept, 5/24/24 (Erie)	dismissed 8/26/24 (Cannataro, J.)
People v Torres	4th Dept: 211 AD3d 1571 (Ontario)	denied 8/12/24 (Halligan, J.)
People v Vasylyev	2d Dept: 227 AD3d 735 (Kings)	denied 8/12/24 (Halligan, J.)

5. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Johnson* (225 AD3d 453 [1st Dept 2024], *lv granted* 42 NY3d 939 [Aug. 12, 2024]).

MEMORANDA

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People v Vera	2d Dept: 222 AD3d 1003 (Queens)	denied 8/26/24 (Cannataro, J.)
People v Wagoner	App Div, 4th Dept, 4/23/24 (Cattaraugus)	denied reconsideration 8/7/24 (Rivera, J.)
People v Wells	3d Dept: 224 AD3d 1155 (Rensselaer)	denied 8/29/24 (Wilson, Ch. J.)
People v Williams (Andre)	4th Dept: 224 AD3d 1355 (Monroe)	denied 8/12/24 (Halligan, J.)
People v Williams (Locksley)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 21 (Kings)	granted 8/1/24 (Wilson, Ch. J.)
People v Williams (Tevin)	2d Dept: 225 AD3d 791 (Orange)	denied 8/12/24 (Halligan, J.)
People v Word	App Div, 1st Dept: 2024 NY Slip Op 67402(U) (NY)	dismissed 8/1/24 (Troutman, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL Decisions of Appellate Division Justices*

People v Angela VV.	3d Dept: 229 AD3d 955 (Franklin)	granted 8/23/24 (Fisher, J.)
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APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT (December 1, 2023 through December 31, 2023)

Jeanty v Dillon	App Div, 2d Dept	12/20/23
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APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT (January 1, 2024 through January 31, 2024)

Javino, Matter of (Commissioner v Labor)	3d Dept: 219 AD3d 1619	1/31/24
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APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT (February 1, 2024 through February 29, 2024)

Kelsey, Matter of, v Hochul	3d Dept: 221 AD3d 1236	2/7/24
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* Includes only applications that were granted.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(July 1, 2024 through July 31, 2024)

Mira v Argus Media

1st Dept: 222 AD3d 528

7/18/24

APPEALS WITHDRAWN AND DISCONTINUED

(July 1, 2024 through July 31, 2024)

Boise, Matter of, v City 3d Dept: 219 AD3d 1050
of Plattsburgh

7/18/24

In the Matter of ANONYMOUS, etc. GRIEVANCE COMMITTEE FOR
THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DIS-
TRICTS, Respondent; ANONYMOUS, Appellant. (App Div No.
2021-05514.)

Submitted June 3, 2024; decided September 10, 2024

Motion for reconsideration of this Court's April 18, 2024 dis-
missal order denied [*see* 41 NY3d 968 (2024)].

In the Matter of ANONYMOUS, etc. GRIEVANCE COMMITTEE FOR
THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DIS-
TRICTS, Respondent; ANONYMOUS, Appellant. (App Div No.
2021-08435.)

Submitted June 3, 2024; decided September 10, 2024

Motion for reconsideration of this Court's April 18, 2024 dis-
missal order denied [*see* 41 NY3d 968 (2024)].

In the Matter of ROMAN BRIK, Appellant, v ILANA STROUTSOV-
SKY, Respondent.

Submitted April 8, 2024; decided September 10, 2024

Reported below, 2024 NY Slip Op 62982(U).

Motion for leave to appeal dismissed upon the ground that
no motion for leave to appeal lies from an Appellate Division
order dismissing an appeal from a decision (*see* CPLR 5602).

Judge CANNATARO took no part.

In the Matter of ROMAN BRIK, Appellant, v ILANA STROUTSOV-SKY, Respondent.

Submitted April 15, 2024; decided September 10, 2024

Reported below, 2024 NY Slip Op 63054(U).

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

Judge CANNATARO took no part.

In the Matter of CAROLINE CARTWRIGHT et al., Respondents, v ROBERT F. KENNEDY JR. et al., Appellants, et al., Respondents.

Submitted September 6, 2024; decided September 10, 2024

Reported below, 230 AD3d 969.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of the Claim of JOSEPH JAVINO, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 1, 2024; decided September 10, 2024

Reported below, 219 AD3d 1619.

Motion to vacate this Court's January 31, 2024 dismissal order denied [*see* 42 NY3d 941 (2024)].

KERVIN JEANTY, Appellant, v MARK C. DILLON, Respondent.

Submitted June 24, 2024; decided September 10, 2024

Motion to vacate this Court's December 20, 2023 dismissal order denied [*see* 42 NY3d 941 (2023)]. Motion for poor person relief dismissed as academic.

In the Matter of SCOTT PHILLIP LEWIS, Appellant, v NEW YORK STATE BOARD OF ELECTIONS et al., Respondents.

Decided September 10, 2024

Reported below, 2024 NY Slip Op 73810(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of EISHA MARKS, Appellant, v NEW YORK CITY
TRANSIT AUTHORITY, Respondent.

Decided September 10, 2024

Reported below, 220 AD3d 679.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of JOHN M. MONAGHAN, Appellant, v MARK J.F.
SCHROEDER, as Commissioner of Motor Vehicles, et al.,
Respondents.

Submitted February 20, 2024; decided September 10, 2024

Reported below, 223 AD3d 972.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [b] [1]).

ALEX PACHECO, Appellant, v ALMA REALTY CORP. et al., Respon-
dents, et al., Defendant.

Submitted March 25, 2024; decided September 10, 2024

Reported below, 216 AD3d 548; 2023 NY Slip Op 72558(U).

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 932 (2024)].

In the Matter of PAUL B.

SHREYAS BAXI, M.D., Clinical Director of the Mid-Hudson Psy-
chiatric Center, Respondent, v PAUL B., Appellant. (Appeal
No. 2.)

Submitted March 18, 2024; decided September 10, 2024

Reported below, 217 AD3d 1555.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEPHEN FRANCIS, Appellant.

Submitted January 8, 2024; decided September 10, 2024

Reported below, 81 Misc3d 131(A), 2023 NY Slip Op 51282(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain a motion from an order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEONARD LEWIS, Appellant.

Submitted March 18, 2024; decided September 10, 2024

Reported below, 224 AD3d 32.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GERALD T. WALSH, on Behalf of PEREZ M. AUGHTRY, Appellant, v JOHN GARCIA, Erie County Sheriff, Respondent.

Decided September 10, 2024

Reported below, 225 AD3d 1268.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of RAYMOND C. VAUGHAN, Appellant, v NEW YORK STATE DEPARTMENT OF TRANSPORTATION et al., Respondents.

Submitted March 25, 2024; decided September 10, 2024

Reported below, 223 AD3d 1010.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

122 EAST 42ND STREET, LLC, Respondent, v JOSEPH SCHARF et al., Appellants.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 211 AD3d 517.

Motion by Andrew R. Berman for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

In the Matter of 160 E. 84TH ST. ASSOCIATES LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-NEWAL, Respondent. (And Eight Other Appeals.)

Submitted August 26, 2024; decided September 12, 2024

Reported below, 202 AD3d 610.

Motion by New York Apartment Association, Inc. for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ALBINA H. et al. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; JOHN H. et al., Respondents.

Submitted May 6, 2024; decided September 12, 2024

Reported below, 225 AD3d 1171.

Motion for leave to appeal dismissed upon the ground that the order of the Appellate Division sought to be appealed from has been vacated and superseded by a subsequent order of that Court.

B AND H FLORIDA NOTES LLC, Appellant, v ALEXANDER ASHKE-
NAZI et al., Defendants, and W89D5 LLC, Respondent.

Submitted April 22, 2024; decided September 12, 2024

Reported below, 221 AD3d 480; 2024 NY Slip Op 63542(U).

On the Court's own motion, appeal, insofar as taken from so much of the November 2023 Appellate Division order as reversed the February 2022 Supreme Court order denying W89D5 LLC's motion for summary judgment dismissing the complaint and granted the motion, dismissed, without costs, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the remainder of the November 2023 order and the March 2024 Appellate Division order, dismissed, without costs, upon the ground that such orders do not finally determine the action within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from so much of the November 2023 order as reversed the February 2022 Supreme Court order denying W89D5 LLC's motion for summary judgment dismissing the complaint and granted the motion, denied; motion, insofar as it seeks leave to appeal from the remainder of the November 2023 order and the March 2024 order, dismissed upon the ground that such orders do not finally determine the action within the meaning of the Constitution.

HENRY E. CALABRESE, Respondent, v CITY OF ALBANY, Appellant.

Submitted August 12, 2024; decided September 12, 2024

Reported below, 221 AD3d 1152.

Motion by City of Syracuse et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of PETER J. CEDRONE, Appellant, v CITY OF FULTON ASSESSOR'S OFFICE, Respondent.

Submitted May 13, 2024; decided September 12, 2024

Reported below, 222 AD3d 1355.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

ANDREW M. CUOMO, Respondent, v NEW YORK STATE COMMISSION ON ETHICS AND LOBBYING IN GOVERNMENT, Appellant.

Submitted September 3, 2024; decided September 12, 2024

Reported below, 228 AD3d 175.

Motion by New York City Bar Association et al. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

REGINA FARAGE, Appellant, v ASSOCIATED INSURANCE MANAGEMENT CORP. et al., Defendants, and TOWER INSURANCE COMPANY OF NEW YORK et al., Respondents.

Submitted September 3, 2024; decided September 12, 2024

Reported below, 210 AD3d 470.

Motion by American Property Casualty Insurance Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

REBECCA M. FLANDERS, Appellant, v STEPHEN F. GOODFELLOW et al., Respondents.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 215 AD3d 1248.

Motion by New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of FRANK GARCIA, Appellant, v CRAIG J. DORAN, as Justice of the Supreme Court of the State of New York, Respondent.

Decided September 12, 2024

Reported below, 2024 NY Slip Op 68542(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

Judge TROUTMAN took no part.

In the Matter of GOOD LAWGIC, LLC, et al., Appellants, v JUAN M. MERCHAN, etc., et al., Respondents.

Decided September 12, 2024

Reported below, 227 AD3d 612.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge WILSON and Judge HALLIGAN took no part.

In the Matter of SHANI JETER, Appellant, v SHEILA POOLE, as Commissioner of the New York State Office of Children and Family Services, et al., Respondents.

Submitted August 19, 2024; decided September 12, 2024

Reported below, 206 AD3d 556.

Motion by Just Making a Change for Families et al. for leave to appear amici curiae on the appeal herein denied (*see Matter of Jeter v Poole*, 41 NY3d 1025 [2024] [amici curiae relief denied]).

Judges RIVERA and HALLIGAN took no part.

BRITTANY N. JONES, etc., Appellant, v CATTARAUGUS-LITTLE VALLEY CENTRAL SCHOOL DISTRICT, Respondent.

Submitted September 3, 2024; decided September 12, 2024

See 96 F4th 539.

Motion by CHILD USA for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v
GARY NEWTON, etc., et al., Appellants.

Decided September 12, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

MTGLQ INVESTORS, L.P., Appellant, v HARMEL SINGH, Respondent, et al., Defendants.

Decided September 12, 2024

Reported below, 216 AD3d 1087.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Respondent, v CITY OF ROCHESTER et al., Appellants.

Submitted July 15, 2024; decided September 12, 2024

Reported below, 210 AD3d 1400.

Motion by The Reporters Committee for Freedom of the Press et al. for leave to leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Respondent, v CITY OF ROCHESTER et al., Appellants.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 210 AD3d 1400.

Motion by NAACP Legal Defense & Educational Fund, Inc. for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge HALLIGAN took no part.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Respondent, v CITY OF ROCHESTER et al., Appellants.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 210 AD3d 1400.

Motion by The Legal Aid Society for leave to appear amicus curiae on the appeal herein denied (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [“Amicus curiae relief will be denied where acceptance of the amicus curiae submission may cause the refusal or disqualification of one or more Judges of the Court”]).

Judges GARCIA and HALLIGAN took no part.

In the Matter of NYC ORGANIZATION OF PUBLIC SERVICE RETIREES, INC., et al., Respondents, v RENEE CAMPION et al., Appellants.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 210 AD3d 559.

Motion by The Public Sector HealthCare Roundtable for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANGELA VV., Appellant.

Submitted September 9, 2024; decided September 12, 2024

Reported below, 229 AD3d 955.

Motion for assignment of counsel granted and Mitch Kessler, 63 Pike Creek Drive, Cohoes, NY 12110 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZAVARRA BACON, Appellant.

Submitted July 1, 2024; decided September 12, 2024

Reported below, 220 AD3d 450.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON BRISMAN, Appellant.

Submitted August 19, 2024; decided September 12, 2024

Reported below, 200 AD3d 1219.

Motion by New York State Association of Criminal Defense Lawyers for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR CHACON-DIAZ, Appellant.

Submitted July 1, 2024; decided September 12, 2024

Reported below, 203 AD3d 846.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER FARRELL, Appellant.

Submitted August 26, 2024; decided September 12, 2024

Motion by Legal Action Network for Animals for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARRISSA HEMINGWAY, Appellant.

Submitted August 26, 2024; decided September 12, 2024

Reported below, 224 AD3d 1167.

Motion for assignment of counsel granted and Mark Schneider, Esq., 57 Court Street, Plattsburgh, NY 12901 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROSEMARY HERNANDEZ, Appellant.

Submitted September 9, 2024; decided September 12, 2024

Reported below, 224 AD3d 415.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR JOHNSON, Appellant.

Submitted September 9, 2024; decided September 12, 2024

Reported below, 225 AD3d 453.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEIGHTON R., Appellant.

Submitted July 29, 2024; decided September 12, 2024

Reported below, 223 AD3d 597.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

In the Matter of THE PEOPLE OF THE STATE OF NEW YORK, by LETITIA JAMES, Attorney General of the State of New York, Respondent, v LEASING EXPENSES COMPANY LLC et al., Appellants, et al., Respondents.

Submitted March 4, 2024; decided September 12, 2024

Reported below, 199 AD3d 521.

Motion for leave to appeal insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to this Court, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge CANNATARO took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AGUSTIN MOREL, Appellant.

Submitted August 26, 2024; decided September 12, 2024

Reported below, 81 Misc 3d 138(A), 2024 NY Slip Op 50013(U).

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CAMILLE RACONA, Appellant.

Submitted July 15, 2024; decided September 12, 2024

Reported below, 227 AD3d 1544.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAVION ROBINSON, Appellant.

Submitted July 1, 2024; decided September 12, 2024

Reported below, 221 AD3d 435.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER SALAS, Appellant.

Submitted July 1, 2024; decided September 12, 2024

Reported below, 220 AD3d 545.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY SHADER, Appellant.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 217 AD3d 1040.

Motion by Appellate Advocates et al. for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOCKSLEY WILLIAMS, Appellant.

Submitted August 26, 2024; decided September 12, 2024

Reported below, 83 Misc 3d 21.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

DEBORAH PUSATERE et al., Respondents, v CITY OF ALBANY et al., Appellants.

Submitted May 13, 2024; decided September 12, 2024

Reported below, 214 AD3d 91.

Motion by New York State Association of Realtors, Inc. for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

Judge HALLIGAN took no part.

In the Matter of THERESA C. SMITH, Respondent, v JENNY E. BRANDAO et al., Appellants. (Proceeding No. 1.)

In the Matter of THERESA C. SMITH, Respondent, v JENNY E. BRANDAO, Appellant. (Proceeding No. 2.)

Submitted May 28, 2024; decided September 12, 2024

Reported below, 226 AD3d 1034.

Motion for leave to appeal dismissed upon the ground that that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v TYREE A., Appellant.

Submitted May 20, 2024; decided September 12, 2024

Reported below, 225 AD3d 1149.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DONALD J. TRUMP, Appellant, v JUAN M. MERCHANT, etc., et al., Respondents.

Decided September 12, 2024

Reported below, 230 AD3d 413.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge WILSON and Judge HALLIGAN took no part.

ALI TUCKETT, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 129488.)

Submitted August 19, 2024; decided September 12, 2024

Reported below, 222 AD3d 1348.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

EMILY WU, Appellant, v UBER TECHNOLOGIES, INC., Respondent,
et al., Defendants.

Submitted July 1, 2024; decided September 12, 2024

Reported below, 219 AD3d 1208.

Motion by Association of Professional Responsibility Lawyers for leave to file a brief amicus curiae on the appeal herein denied (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [“Amicus curiae relief will be denied where acceptance of the amicus curiae submission may cause the recusal or disqualification of one or more Judges of the Court”])).

Judge HALLIGAN took no part.

EMILY WU, Appellant, v UBER TECHNOLOGIES, INC., Respondent,
et al., Defendants.

Submitted July 22, 2024; decided September 12, 2024

Reported below, 219 AD3d 1208.

Motion by Public Justice for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of AARON MANOR REHABILITATION AND NURSING
CENTER, LLC, et al., Respondents-Appellants, v HOWARD
A. ZUCKER, as Commissioner of Health, et al., Appellants-
Respondents.

Submitted June 30, 2024; decided September 17, 2024

Reported below, 205 AD3d 1193.

Motion for reargument denied [*see* 42 NY3d 46 (2024)].

In the Matter of DEVON AOKI et al., as Beneficiaries of the Trust Created under Article VIII of the Will of Rocky H. Aoki, Also Known as Hiroaki Aoki, Deceased, to Revoke the Letters of Trusteeship Issued to Keiko Ono Aoki as Trustee of the Trust.

DEVON AOKI, et al., Respondents, v KEIKO ONO AOKI, Appellant.

In the Matter of the Judicial Settlement of the First Intermediate Account of Proceedings of KEIKO ONO AOKI, as Trustee of the Trust under Article VIII of the Will of ROCKY H. AOKI, Also Known as HIROAKI AOKI, Deceased.

KEIKO ONO AOKI, Appellant, v DEVON AOKI, et al., Respondents.

Submitted April 15, 2024; decided September 17, 2024

Reported below, 221 AD3d 479.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of MARTA BRYCELAND, Appellant, v THOMAS GUT, Respondent. (And Another Proceeding.)

Submitted June 10, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 64704(U).

Motion for leave to appeal dismissed upon the ground that that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

ROBERT CONNOR, Appellant, v AMA CONSULTING ENGINEERS PC et al., Defendants, and JAMESTOWN PREMIER CHELSEA MARKET, LP, et al., Respondents. (And a Third-Party Action.)

Submitted May 13, 2024; decided September 17, 2024

Motion for leave to appeal dismissed upon the ground that the judgment is not the final appealable paper from which leave to appeal may be sought (*see* CPLR 5611).

SYLVIA E. DiPIETRO, Respondent, v JOEL VATSKY, Appellant.

Submitted March 11, 2024; decided September 17, 2024

Reported below, 177 AD3d 401.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

Judge CANNATARO took no part.

MARK DOLGAS, Appellant, v DONALD WALES, Defendant, and TRI-VALLEY ELEMENTARY SCHOOL et al., Respondents. (Action No. 1.)

JEFFREY CLOONAN et al., Appellants, v DONALD WALES, Defendant, and TRI-VALLEY ELEMENTARY SCHOOL et al., Respondents. (Action No. 2.)

Submitted April 29, 2024; decided September 17, 2024

Reported below, 215 AD3d 51.

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 904 (2024)].

EMIGRANT BANK, as Successor by Merger to EMIGRANT SAVINGS BANK-BROOKLYN/QUEENS as Assignee of EMIGRANT MORTGAGE COMPANY, INC., RESPONDENT, v BERTHA CARRERA et al., Appellants, et al., Defendants.

Submitted April 15, 2024; decided September 17, 2024

Reported below, 208 AD3d 636.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DANIEL JONES, Appellant, v COUNTY OF ERIE et al., Respondents.

Submitted June 24, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 67693(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MICHAEL N. KELSEY, Appellant, v KATHY HOCHUL, as Governor of the State of New York, Respondent.

Submitted April 22, 2024; decided September 17, 2024

Reported below, 221 AD3d 1236; 2024 NY Slip Op 64200(U).

Motion to vacate this Court's February 7, 2024 dismissal order granted [*see* 42 NY3d 941 (2024)]. On the Court's own motion, appeal from the November 2023 Appellate Division order dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question. On the Court's own motion, appeal from the March 2024 Appellate Division order dismissed, without costs, upon the ground that the order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of ALEXANDER KHAYCHUK, Respondent. AMAZON LOGISTICS, INC., Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 29, 2024; decided September 17, 2024

Reported below, 211 AD3d 1250.

Motion, insofar as it seeks leave to appeal as against respondent Commissioner of Labor, dismissed as untimely (*see* CPLR 5513 [b]), as the prior motion for leave to appeal made at the Appellate Division was untimely as to the Commissioner (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]); motion, insofar as it seeks leave to appeal as against claimant Alexander Khaychuk, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Intermediate Accounting of MANUFACTURERS AND TRADERS TRUST COMPANY, as Trustee of the ROBERT S. BASSETT TRUST NUMBER 7 OF 1974, for the Period Covering September 7, 1983, to October 18, 2013, Respondent.

In the Matter of the Intermediate Accounting of MANUFACTURERS AND TRADERS TRUST COMPANY, as Trustee of the ROBERT S. BASSETT TRUST NUMBER 7 OF 1974, for the Period Covering October 19, 2013, to May 15, 2017, Respondent. SUE M. WILLIAMS et al., Objectants-Appellants.

Submitted June 3, 2024; decided September 17, 2024

Reported below, 215 AD3d 1285.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 960 (2024)].

Judge RIVERA took no part.

MAYORE ESTATES LLC, et al., Appellants, v CENTURY 21 INC., Respondent.

Submitted April 29, 2024; decided September 17, 2024

Reported below, 221 AD3d 458.

Motion by Real Estate Board of New York for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge HALLIGAN took no part.

NEW YORK STATE LAW ENFORCEMENT OFFICERS UNION, COUNCIL 82, AFSCME, AFL-CIO, LOCAL 3471, et al., Respondents, v CITY OF GENEVA, Respondent, et al., Defendants. JESSICA FARRELL et al., Proposed Intervenors-Appellants.

Submitted April 29, 2024; decided September 17, 2024

Reported below, 221 AD3d 1456.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of LIDIA M. ORREGO, Appellant, v
KEVIN KNIPFING et al., Respondents. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted May 6, 2024; decided September 17, 2024

Reported below, 221 AD3d 1112.

Motion for reargument denied [*see* 41 NY3d 962 (2024)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RODER-
ICK COLLIER, Appellant.

Submitted March 4, 2024; decided September 17, 2024

Reported below, 223 AD3d 539.

Motion for leave to appeal denied upon the ground that an
appeal lies as of right (*see* CPLR 5601 [b] [1]). Motion for poor
person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEFAN
D. NICHOLS, Appellant.

Submitted May 28, 2024; decided September 17, 2024

Reported below, 227 AD3d 1443.

Motion for leave to appeal granted. Motion for poor person
relief granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE,
Appellant, v SUPERINTENDENT OF MARCY CORRECTIONAL FA-
CILITY et al., Respondents.

Submitted April 8, 2024; decided September 17, 2024

Motion for leave to appeal dismissed upon the ground that
no appeal lies from an order of an individual Justice of the Ap-
pellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JEROME SMITH,
Appellant, v MARK MILLER, Respondent.

Submitted May 20, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 60950(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JEROME SMITH,
Appellant, v MARK MILLER, Respondent.

Submitted July 8, 2024; decided September 17, 2024

Motion for leave to appeal dismissed upon the ground that the “Papers Rejection Notice” sought to be appealed from is neither a judgment nor an order from which an appeal to this Court may be taken (*see* CPLR 5512 [a]; 5602 [a]). Motion for poor person relief dismissed as academic.

BRIAN SCAVO et al., Appellants, v 714 CAPITAL LLC et al.,
Respondents.

Submitted April 29, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 61753(U).

Motion for leave to appeal dismissed upon the ground that it does not lie.

DERRICK THOMPSON, Appellant, v STATE OF NEW YORK, Respon-
dent. (Claim No. 131587.)

Submitted April 22, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 60181(U).

On the Court’s own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

CHERYL D. UZAMERE, Individually and in Her Official Capacity
as Sole Proprietor of African Diasporal Enterprises and
Uzamere Word Processing & More, Appellant, v KATHY HO-
CHUL et al., Respondents.

Submitted May 28, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 65884(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge HALLIGAN took no part.

CHERYL D. UZAMERE, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 28, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 65899(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge HALLIGAN took no part.

CHERYL D. UZAMERE, Appellant, v VARIOUS KNOWN AND UNKNOWN BABYLONIAN TALMUD-ADHERENT JEWS, as Members of a Victim Humiliation-Producing, Sexually Sadistic African and Christian Persecuting Hate Group, et al., Respondents.

Submitted May 28, 2024; decided September 17, 2024

Reported below, 2024 NY Slip Op 65885(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge HALLIGAN took no part.

RAWAN ABDULLAH ABUZAIID, Previously Known as MODEL ROZ, Respondent, v DANAH ALMAYOUF, Appellant.

Submitted June 3, 2024; decided September 19, 2024

Reported below, 2024 NY Slip Op 63420(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

TOREL BASCOM, etc., Respondent, v 1875 ATLANTIC AVE DEVELOPMENT, LLC, Appellant.

Submitted June 10, 2024; decided September 19, 2024

Reported below, 227 AD3d 767.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross-motion for costs denied.

In the Matter of LESLIE E. CARR et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, and REGINA METROPOLITAN CO., LLC, Intervenor-Respondent.

Submitted June 17, 2024; decided September 19, 2024

Reported below, 217 AD3d 442.

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 986 (2024)].

CASSAFORTE LIMITED et al., Plaintiffs, and XYZ DEVELOPMENT II LLC et al., Appellants, v BABAK POURTAVOOSI et al., Defendants, and SHARESTATES INVESTMENTS DACL LLC et al., Respondents.

Submitted April 29, 2024; decided September 19, 2024

Reported below, 221 AD3d 525; 2024 NY Slip Op 63875(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of MISAEL COLON, Respondent.
GENEVA WORLDWIDE INC., Appellant. COMMISSIONER OF LA-
BOR, Respondent.

Submitted April 22, 2024; decided September 19, 2024

Reported below, 222 AD3d 1141.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

KENT JEFFERY, Appellant, v FAYETTEVILLE-MANLIUS CENTRAL
SCHOOL DISTRICT et al., Respondents.

Submitted April 15, 2024; decided September 19, 2024

Reported below, 222 AD3d 1366.

Motion, insofar as it seeks leave to appeal as against defend-
ants Fayetteville-Manlius Central School District, the Board of
Education of Fayetteville-Manlius Central School District and
Craig J. Tice, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton*
v State of New York, 76 NY2d 824 [1990]); motion for leave to
appeal otherwise denied.

TIARA JOCKO, on Behalf of Herself and Others Similarly Situ-
ated, Respondent, v TJM SYRACUSE, LLC, Appellant, et al.,
Defendants.

Submitted June 10, 2024; decided September 19, 2024

Reported below, 227 AD3d 1478.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents,
et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents,
et al., Defendants.

Submitted July 1, 2024; decided September 19, 2024

Reported below, 2022 NY Slip Op 66766(U); 2022 NY Slip Op 69033(U).

Motion for reconsideration of this Court's May 16, 2024 dismissal order denied [*see* 41 NY3d 987 (2024)]. Motion for poor person relief dismissed as academic.

Chief Judge WILSON took no part.

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Submitted June 10, 2024; decided September 19, 2024

Reported below, 2022 NY Slip Op 73574(U).

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 977 (2024)]. Motion for poor person relief dismissed as academic.

Chief Judge WILSON took no part.

PATRICK MURRAY et al., Respondents, v DIANNE BICKERTON, Appellant.

Submitted May 13, 2024; decided September 19, 2024

Reported below, 225 AD3d 1086.

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain a motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in City Court of the City of Cortland (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BENJAMIN KEMP, Respondent.

Submitted August 19, 2024; decided September 19, 2024

Reported below, 213 AD3d 1321.

Motion for leave to withdraw the appeal granted.

In the Matter of the Claim of ANTHONY PUCCIO, Appellant, v ABSOLUTE CHIMNEY & HOME IMPROVEMENT, LLC, et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted May 20, 2024; decided September 19, 2024

Reported below, 222 AD3d 1060.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the July 2021 decision of the Workers' Compensation Board, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the order do not finally determine the proceeding within the meaning of the Constitution.

ARTHUR SAMODOVITZ, Appellant, v UNITED HEALTH SERVICES HOSPITALS, INC., et al., Respondents. (Action No. 1.)

ARTHUR SAMODOVITZ, Appellant, v LEVENE, GOULDIN & THOMPSON, et al., Respondents. (Action No. 2.)

Submitted June 3, 2024; decided September 19, 2024

Reported below, 218 AD3d 1252.

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 905 (2024)].

In the Matter of EDWARD SCHNEIDER, III, Appellant, v TOWN OF EVANS, Respondent.

Submitted May 6, 2024; decided September 19, 2024

Reported below, 221 AD3d 1532.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of PATRICIA WEISS, Appellant, v STEVEN A. PILEWSKI, an Acting Justice of the Supreme Court, Suffolk County, et al., Respondents.

Submitted May 20, 2024; decided September 19, 2024

Reported below, 219 AD3d 1341.

Motion for reargument denied [*see* 41 NY3d 961 (2024)].

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2024 through September 30, 2024)

People v Adames	1st Dept: 227 AD3d 483 (NY)	denied 9/23/24 (Rivera, J.)
People v Akassy	App Div, 1st Dept: 2024 NY Slip Op 65190(U) (NY)	dismissed 9/30/24 (Singas, J.)
People v Alberto	2d Dept: 228 AD3d 781 (Nassau)	denied 9/16/24 (Troutman, J.)
People v Arthur	3d Dept: 228 AD3d 1133 (Schenectady)	denied 9/5/24 (Halligan, J.)
People v Basedow	4th Dept: 207 AD3d 1192 (Oswego)	denied 9/19/24 (Singas, J.)
People v Bellamy	1st Dept: 226 AD3d 623 (Bronx)	denied 9/23/24 (Rivera, J.)
People v Bentley	4th Dept: 228 AD3d 1278 (Oswego)	denied 9/19/24 (Singas, J.)
People v Birch	3d Dept: 228 AD3d 991 (Schenectady)	denied 9/20/24 (Cannataro, J.)
People v Blue	2d Dept: 228 AD3d 951 (Westchester)	denied 9/16/24 (Troutman, J.)
People v Borden	4th Dept: 228 AD3d 1242 (Erie)	denied 9/5/24 (Halligan, J.)
People v Boykins	4th Dept: 229 AD3d 1156 (Onondaga)	denied 9/30/24 (Garcia, J.)
People v Bradshaw	2d Dept: 229 AD3d 563 (Orange)	denied 9/30/24 (Singas, J.)
People v Brissett	2d Dept: 211 AD3d 964 (Richmond)	denied 9/20/24 (Cannataro, J.)
People v Brown (Kasson)	2d Dept: 228 AD3d 883 (Queens)	denied 9/13/24 (Garcia, J.)
People v Brown (Kasson)	2d Dept: 228 AD3d 884 (Queens)	denied 9/13/24 (Garcia, J.)
People v Brown (Terrell)	3d Dept: 227 AD3d 1281 (Broome)	denied 9/20/24 (Cannataro, J.)
People v Bryan	App Term, 1st Dept: 83 Misc 3d 129(A) (NY)	denied 9/23/24 (Rivera, J.)
People v Busgith	1st Dept: 227 AD3d 625 (Bronx)	denied 9/18/24 (Cannataro, J.)
People v Bynum	2d Dept: 228 AD3d 953 (Suffolk)	denied 9/26/24 (Singas, J.)
People v Calderon	1st Dept: 227 AD3d 510 (NY)	denied 9/19/24 (Singas, J.)
People v Carrasco	App Div, 1st Dept: 2024 NY Slip Op 70792(U) (Bronx)	dismissed 9/30/24 (Rivera, J.)
People v Contreras	1st Dept: 228 AD3d 588 (Bronx)	denied 9/12/24 (Wilson, Ch. J.)
People v Cuadrado	3d Dept: 227 AD3d 1174 (Schenectady)	denied 9/19/24 (Singas, J.)
People v Deas	2d Dept: 226 AD3d 823 (Westchester)	denied 9/17/24 (Cannataro, J.)

People v DeJesus	1st Dept: 217 AD3d 584 (Bronx)	denied 9/23/24 (Rivera, J.)
People v Douglas	3d Dept: 226 AD3d 1162 (Ulster)	denied 9/23/24 (Rivera, J.)
People v Drager	4th Dept: 229 AD3d 1143 (Monroe)	denied 9/23/24 (Rivera, J.)
People v Elliot	1st Dept: 227 AD3d 529 (NY)	denied 9/23/24 (Rivera, J.)
People v Favors (Areyna)	4th Dept: 229 AD3d 1371 (Erie)	denied 9/23/24 (Rivera, J.) (Appeal No. 1)
People v Favors (Areyna)	4th Dept: 229 AD3d 1371	denied 9/23/24 (Rivera, J.) (Appeal No. 2)
People v Fleming	App Div, 1st Dept: 2024 NY Slip Op 63921(U) (Bronx)	dismissed 9/23/24 (Rivera, J.)
People v Fomakoye	4th Dept: 229 AD3d 1380 (Erie)	denied 9/30/24 (Cannataro, J.)
People v Gaiter	4th Dept: 224 AD3d 1384 (Erie)	denied reconsideration 9/5/24 (Halligan, J.)
People v Gamble (Charles)	4th Dept: 229 AD3d 1290 (Monroe)	denied 9/30/24 (Garcia, J.) (Appeal No. 1)
People v Gamble (Charles)	4th Dept: 229 AD3d 1294 (Monroe)	denied 9/30/24 (Garcia, J.) (Appeal No. 2)
People v Garcia	2d Dept: 228 AD3d 958 (Queens)	denied 9/5/24 (Halligan, J.)
People v Geer	4th Dept: 224 AD3d 1353 (Cayuga)	denied 9/5/24 (Halligan, J.)
People v Gilbert	4th Dept: 228 AD3d 1341 (Erie)	denied 9/5/24 (Halligan, J.)
People v Gill	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 131(A) (Queens)	denied 9/30/24 (Singas, J.)
People v Graham	2d Dept: 227 AD3d 1107 (Kings)	denied 9/18/24 (Cannataro, J.)
People v Granger (Elie)	App Div, 2d Dept: 2024 NY Slip Op 64283(U) (Queens)	denied reconsideration 9/12/24 (Garcia, J.)
People v Granger (Elie)	App Div, 2d Dept: 2024 NY Slip Op 61662(U) (Queens)	denied reconsideration 9/12/24 (Garcia, J.)
People v Gress	County Ct, 6/13/24 (Ontario)	denied 9/20/24 (Cannataro, J.)
People v Gunn	App Div, 4th Dept, 6/17/24 (Onondaga)	dismissed 9/12/24 (Wilson, Ch. J.)
People v Guzman	2d Dept: 227 AD3d 1107 (Kings)	denied 9/16/24 (Troutman, J.)

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People v Harris	4th Dept: 229 AD3d 1055 (Monroe)	denied 9/19/24 (Singas, J.)
People v Haughton	2d Dept: 229 AD3d 467 (Queens)	denied 9/23/24 (Rivera, J.)
People v Hay	1st Dept: 228 AD3d 567 (Bronx)	denied 9/11/24 (Wilson, Ch. J.)
People v Hillary	1st Dept: 228 AD3d 465 (Bronx)	denied 9/23/24 (Rivera, J.)
People v Hinton (Robert)	4th Dept: 227 AD3d 1497 (Herkimer)	denied 9/26/24 (Singas, J.)
People v Hinton (Robert)	4th Dept: 227 AD3d 1497 (Herkimer)	denied 9/26/24 (Singas, J.) (Appeal No. 1)
People v Hinton (Robert)	4th Dept: 227 AD3d 1498 (Herkimer)	denied 9/26/24 (Singas, J.) (Appeal No. 2)
People v Holmes	3d Dept: 227 AD3d 1184 (Madison)	denied 9/26/24 (Singas, J.)
People v Jackson	App Div, 3d Dept: 2024 NY Slip Op 72059(U) (Clinton)	dismissed 9/30/24 (Garcia, J.)
People v Jesmer	4th Dept: 229 AD3d 1112 (Monroe)	denied 9/12/24 (Garcia, J.)
People v Jesurum	1st Dept: 227 AD3d 416 (NY)	denied 9/20/24 (Cannataro, J.)
People v Johnson	2d Dept: 229 AD3d 639 (Kings)	denied 9/3/24 (Garcia, J.)
People v Lacey	4th Dept: 229 AD3d 1270 (Jefferson)	denied 9/23/24 (Rivera, J.)
People v Lawrence	2d Dept: 227 AD3d 829 (Queens)	denied 9/5/24 (Halligan, J.)
People v Little	4th Dept: 229 AD3d 1156 (Monroe)	denied 9/20/24 (Cannataro, J.)
People v Long	4th Dept: 228 AD3d 1342 (Monroe)	denied 9/18/24 (Singas, J.)
People v Luna	3d Dept: 228 AD3d 1061 (Schenectady)	denied 9/23/24 (Rivera, J.)
People v Malloy	3d Dept: 228 AD3d 1068 (Albany)	denied 9/12/24 (Garcia, J.)
People v Matthews	1st Dept: 228 AD3d 493 (Bronx)	denied 9/30/24 (Rivera, J.)
People v Mazzini-Martinez	1st Dept: 228 AD3d 565 (Bronx)	denied 9/26/24 (Singas, J.)
People v McGuire	4th Dept: 227 AD3d 1499 (Steuben)	denied 9/5/24 (Halligan, J.)
People v McPherson	2d Dept: 228 AD3d 686 (Richmond)	denied 9/16/24 (Troutman, J.)
People v Melendez	4th Dept: 229 AD3d 1169 (Onondaga)	denied 9/24/24 (Cannataro, J.) (Appeal No. 2)
People v Miley	3d Dept: 229 AD3d 969 (Albany)	denied 9/18/24 (Cannataro, J.)

People v Montgomery	3d Dept: 229 AD3d 899 (Albany)	denied 9/19/24 (Singas, J.)
People v Moore	1st Dept: 228 AD3d 491 (NY)	denied 9/23/24 (Rivera, J.)
People v Noboa	1st Dept: 227 AD3d 627 (Bronx)	denied 9/18/24 (Cannataro, J.)
People v Ortega	2d Dept: 228 AD3d 784 (Queens)	denied 9/5/24 (Halligan, J.)
People v Park (James)	1st Dept: 227 AD3d 624 (NY)	denied 9/23/24 (Rivera, J.)
People v Park (James)	App Div, 1st Dept: 2023 NY Slip Op 78794(U) (NY)	denied 9/23/24 (Rivera, J.)
People v Pena	App Term, 1st Dept: 83 Misc 3d 128(A) (NY)	denied 9/19/24 (Singas, J.)
People v Perez	4th Dept: 229 AD3d 1273 (Monroe)	denied 9/30/24 (Garcia, J.)
People v Ramirez	App Div, 1st Dept: 2024 NY Slip Op 60686(U) (Bronx)	denied 9/3/24 (Garcia, J.)
People v Robinson (Jahkim)	4th Dept: 229 AD3d 1369 (Onondaga)	denied 9/23/24 (Rivera, J.)
People v Robinson (Najee)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 129(A) (Kings)	denied* 9/26/24 (Singas, J.)
People v Sarasty	2d Dept: 228 AD3d 962 (Queens)	denied 9/23/24 (Rivera, J.)
People v Scarborough	App Div, 4th Dept: 2023 NY Slip Op 75770(U) (Oneida)	dismissed 9/30/24 (Singas, J.)
People v Shaheed	1st Dept: 228 AD3d 521 (NY)	denied 9/23/24 (Rivera, J.)
People v Sinkler	4th Dept: 229 AD3d 1154 (Monroe)	denied 9/13/24 (Garcia, J.)
People v Smith (James)	1st Dept: 223 AD3d 500 (NY)	denied 9/30/24 (Singas, J.)
People v Smith (Lakye)	1st Dept: 228 AD3d 520 (NY)	denied 9/18/24 (Cannataro, J.)
People v Torres	4th Dept: 229 AD3d 1164 (Monroe)	denied 9/23/24 (Rivera, J.)
People v Vandina	2d Dept: 228 AD3d 888 (Nassau)	denied 9/18/24 (Cannataro, J.)
People v White	4th Dept: 228 AD3d 1317 (Monroe)	denied 9/23/24 (Rivera, J.)
People v Williams (Colyn)	3d Dept: 224 AD3d 998 (Broome)	denied reconsideration 9/18/24 (Cannataro, J.)
People v Williams (Jalil)	2d Dept: 228 AD3d 786 (Kings)	denied 9/20/24 (Cannataro, J.)
People v Williams (Jeffrey)	4th Dept: 228 AD3d 1316 (Wayne)	denied 9/23/24 (Rivera, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Williams* (83 Misc 3d 21 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2024], *lv granted* 42 NY3d 941 [2024]).

People v Williams (Malcolm)	4th Dept: 225 AD3d 1130 (Monroe)	denied 9/24/24 (Wilson, Ch. J.)
People v Wimbush	4th Dept: 228 AD3d 1349 (Monroe)	denied 9/18/24 (Cannataro, J.)
People v Woods	4th Dept: 229 AD3d 1073 (Onondaga)	denied 9/30/24 (Garcia, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(September 1, 2024 through September 30, 2024)

People v Morgan	3d Dept: 230 AD3d 864 (Columbia)	granted 9/11/24 (Powers, J.)
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[245 NE3d 250, 219 NYS3d 874]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEAN
DUFRESNE, Appellant.

Decided April 18, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 18, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Robert M. Mandelbaum, J.), which had adjudicated defendant a level three sexually violent predicate sex offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C).

People v Dufresne, 209 AD3d 541, affirmed.

HEADNOTE**Crimes — Sex Offenders — Sex Offender Registration Act**

The Appellate Division order affirming the Supreme Court order which had adjudicated defendant a level three sexually violent predicate sex offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C) was affirmed (*see People v Boone*, 41 NY3d 573 [2024]).

APPEARANCES OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (*Shaina R. Watrous* of counsel), for appellant.

* Includes only applications that were granted.

Alvin L. Bragg, Jr., District Attorney, New York City (Amanda Katherine Regan, Steven C. Wu and John T. Hughes of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs (*see People v Boone*, 41 NY3d 573 [2024]).

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN.

[245 NE3d 250, 219 NYS3d 874]

In the Matter of ERIN P. GALL, a Justice of the Supreme Court,
Fifth Judicial District, Oneida County.

Decided July 31, 2024

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Hon. Erin P. Gall should be suspended from the office of Justice of the Supreme Court, Fifth Judicial District, Oneida County, and whether suspension should be with or without pay.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Supreme Court Justice from office, with pay, effective immediately, pending review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

Robert F. Julian, P.C., Utica (*Robert F. Julian* of counsel), for petitioner.

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct, respondent.

OPINION OF THE COURT

On the Court's own motion, it is determined that Hon. Erin P. Gall is suspended, with pay, effective immediately, from the office of Justice of Supreme Court, Fifth Judicial District, Oneida County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), pending review of a determination of the State Commission on Judicial Conduct.

Concur: Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN. Judge RIVERA took no part.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent. (App Div No. 2021-05514.)

Decided October 17, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANONYMOUS, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent. (App Div No. 2021-08435.)

Decided October 17, 2024

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

HENRY E. CALABRESE, Respondent, v CITY OF ALBANY, Appellant.

Submitted October 15, 2024; decided October 17, 2024

Reported below, 221 AD3d 1152.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JOSEPH A. DAVIS et al., Appellants, v MARSHALL & STERLING, INC., Defendant and Third-Party Plaintiff-Respondent; NXG INSURANCE AGENCY GROUP, LLC, Third-Party Defendant-Appellant.

Submitted September 30, 2024; decided October 17, 2024

Reported below, 217 AD3d 1073.

Motion by Partnership for New York City for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

DAVID KATLESKI, Appellant, v CAZENOVIA GOLF CLUB, INC., Respondent, et al., Defendants.

Submitted October 7, 2024; decided October 17, 2024

Reported below, 225 AD3d 1030.

Motion by National Golf Club Owners Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

MTAG, Respondent, v DANIEL C. BROWN et al., Defendants, and SANDRA MORRISON, Appellant.

Submitted April 8, 2024; decided October 17, 2024

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]). Motion for a stay dismissed as academic.

NEVADA FUNDING, LLC, Respondent, v ASSOCIATION 800, LLC et al., Defendants, and SHAI HARRIS, Appellant.

Submitted May 6, 2024; decided October 17, 2024

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are

involved (*see* NY Const, art VI, §§ 3 [b] [2], 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for a stay dismissed as academic.

LEATICIA C. OSUAGWU, Respondent, v CHINONYEREM O. OSUAGWU, Appellant.

Decided October 17, 2024

Reported below, 229 AD3d 802.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH GARCIA, Appellant.

Submitted October 7, 2024; decided October 17, 2024

Reported below, 210 AD3d 906.

Motion by The Innocence Project, Inc. for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ARTHUR H. MORGAN JR., Appellant.

Submitted September 30, 2024; decided October 17, 2024

Reported below, 230 AD3d 864.

Motion for assignment of counsel granted and Steven M. Sharp, Esq., P.O. Box 1004, Albany, NY 12201 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SAMUEL SHAW, Also Known as SAV, Appellant.

Submitted October 15, 2024; decided October 17, 2024

Reported below, 229 AD3d 1180.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 North Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v YASIF SIMS, Appellant.

Submitted September 16, 2024; decided October 17, 2024

Reported below, 207 AD3d 882.

Motion for assignment of counsel granted and Noreen McCarthy, Esq., P.O. Box 756, Keene Valley, NY 12943 assigned as counsel to the appellant nunc pro tunc on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID VAUGHN, Appellant.

Submitted September 30, 2024; decided October 17, 2024

Reported below, 217 AD3d 781.

Motion by The Innocence Project, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID VAUGHN, Appellant.

Submitted September 30, 2024; decided October 17, 2024

Reported below, 217 AD3d 781.

Motion by The Legal Aid Society for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RUSSELL DEFREITAS, Appellant, v ERROL D. TOULON, JR., Respondent.

Decided October 17, 2024

Reported below, 226 AD3d 921.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question.

In the Matter of DANIEL T. WARREN, Appellant, v PLANNING BOARD OF THE TOWN OF WEST SENECA et al., Respondents.

Submitted April 22, 2024; decided October 17, 2024

Reported below, 225 AD3d 1248; 225 AD3d 1252.

On the Court's own motion, appeal, insofar as taken from the Appellate Division order affirming the March 2023 Supreme Court order, dismissed, without costs, upon the ground that such order does not finally determine the action/proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order affirming the December 2022 Supreme Court order/judgment, dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the March 2023 Supreme Court order, dismissed upon the ground that such order does not finally determine the action/proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

WILLIAM F. COSTELLO, Respondent, v CURAN & AHLERS, LLP, et al., Appellants.

Submitted June 3, 2024; decided October 22, 2024

Reported below, 224 AD3d 732; 224 AD3d 734.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of CHARLES LORD, Appellant, v HEATHER LORD, Respondent.

Submitted July 1, 2024; decided October 22, 2024

Reported below, 2023 NY Slip Op 77944(U); 2023 NY Slip Op 77945(U).

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 999 (2024)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAYLIN WIGGINS, Appellant.

Submitted August 26, 2024; decided October 22, 2024

Reported below, 225 AD3d 1305.

Motion to vacate this Court's August 1, 2024 dismissal order granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ILANN M. MAAZEL, ESQ., on Behalf of BRIAN SCOTT LORENZO, Appellant, v JOHN C. GARCIA, etc., et al., Respondents.

Submitted July 29, 2024; decided October 22, 2024

Motion for reconsideration of this Court's May 16, 2024 dismissal order denied [see 41 NY3d 989 (2024)].

SARATOGA BDC LIMITED PARTNERSHIP, Respondent, v LYNN M. GRABOWSKI, Appellant.

Submitted July 15, 2024; decided October 22, 2024

Reported below, 2024 NY Slip Op 67875(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5601). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of STRATA SKIN SCIENCES, INC., Appellant, v NEW YORK STATE TAX APPEALS TRIBUNAL et al., Respondents.

Submitted April 29, 2024; decided October 22, 2024

Reported below, 225 AD3d 953.

Motion by Institute for Professionals in Taxation for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

841-853 FEE OWNER, LLC, Respondent, v SPACE INITIATIVES LLC et al., Appellants.

Submitted June 24, 2024; decided October 24, 2024

Reported below, 227 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ALFREDO CRUZ, Appellant, v CITY OF NEW YORK, Respondent.

Submitted July 22, 2024; decided October 24, 2024

Reported below, 197 AD3d 555.

Motion for reargument of motion to dismiss appeal denied with \$100 costs and necessary reproduction disbursements [*see* 41 NY3d 997 (2024)].

EAST FORK FUNDING, LLC, Respondent, and NEW YORK STATE ATTORNEY GENERAL, Intervenor-Respondent, v U.S. BANK, NATIONAL ASSOCIATION, as Trustee for GREENPOINT MORTGAGE FUNDING TRUST MORTGAGE PASS-THROUGH CERTIFICATES, SERIES 2006-AR6, Appellant.

Decided October 24, 2024

See 118 F4th 488.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), in the particular circumstances of this individual case, respectfully declined.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Judge HALLIGAN took no part.

PETER A. MARASCO, as Owner and Lessor of Certain Real Property, Appellant, et al., Plaintiffs, v EXXONMOBIL OIL CORPORATION, Lessee, et al., Respondents.

Submitted July 15, 2024; decided October 24, 2024

Reported below, 224 AD3d 738.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 1014 (2024)].

In the Matter of FELIX PROCACCI, Appellant, v TOWN OF HEMPSTEAD, Respondent.

Submitted July 15, 2024; decided October 24, 2024

Reported below, 222 AD3d 978.

Motion for reargument of motion for leave to appeal denied [see 41 NY3d 910 (2024)].

U.S. BANK TRUST, N.A., as Trustee, Respondent, v PAUL L. GREER JR., Also KNOWN as PAUL L. GREER, et al., Appellants, et al., Defendants.

Submitted July 15, 2024; decided October 24, 2024

Reported below, 223 AD3d 1128; 2024 NY Slip Op 68342(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Judge HALLIGAN took no part.

WEST MOUNTAIN ASSETS LLC, Appellant, v JAMES DOBKOWSKI et al., Respondents. (And a Third-Party Action.)

Submitted June 24, 2024; decided October 24, 2024

Reported below, 228 AD3d 48.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[245 NE3d 1128, 220 NYS3d 679]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NOLBERTO CONTRERAS VARGAS, Respondent.

Decided June 13, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered December 28, 2022. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Deborah Stevens Modica, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree; and (2) ordered a new trial.

People v Vargas, 211 AD3d 1046, reversed.

HEADNOTES

Crimes — Harmless and Prejudicial Error — Improper Admission of Testimony in Violation of Right to Confrontation

1. In the prosecution of defendant for allegedly stabbing his wife, the admission of police testimony recounting out-of-court statements by the victim's daughter describing the attack in violation of defendant's Sixth Amendment right to confrontation was harmless, as the evidence against defendant was overwhelming, particularly as it related to the critical issue of intent. The evidence that was properly admitted left no doubt that defendant acted with the intent to cause the victim serious physical injury, and rendered the improper testimony recounting the daughter's description of the attack redundant and therefore harmless. There was no reasonable possibility that the error might have contributed to defendant's conviction.

Crimes — Harmless and Prejudicial Error — Improper Admission of Statements in Violation of Hearsay Rule

2. In the prosecution of defendant for allegedly stabbing his wife, the errors in admitting the statement by a 911 caller stating that the victim had been stabbed and a statement by defendant's son indicating that defendant was the attacker in violation of the hearsay rule were harmless. Because the statements supplied information properly provided to the jury through several testifying witnesses and the victim's medical records, there was no significant probability that the jury would have acquitted the defendant had it not been for their admission.

APPEARANCES OF COUNSEL

Melinda Katz, District Attorney, Kew Gardens (*Joseph M. DiPietro* of counsel), for appellant.

Patricia Pazner, Appellate Advocates, New York City (*Anna Jouravleva* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for consideration of the facts and issues raised but not determined on appeal to that Court.

Following an incident in which defendant allegedly attacked his wife with a knife, severely injuring her in both the neck and chest, defendant was charged with attempted murder in the second degree (Penal Law §§ 110.00, 125.25 [1]) and assault in the first degree (Penal Law § 120.10 [1] [defendant, “(w)ith intent to cause serious physical injury to another person, . . . causes such injury to such person or to a third person by means of a deadly weapon or a dangerous instrument”]). At trial, the primary disputed issue was intent. The jury convicted defendant of first-degree assault and acquitted him of attempted murder.

The Appellate Division reversed and ordered a new trial, concluding that police testimony recounting out-of-court statements by the victim’s daughter describing the attack violated defendant’s Sixth Amendment right to confrontation, and the admission was not harmless (211 AD3d 1046 [2d Dept 2022]). The Court further noted that two other statements, one by a 911 caller stating that the victim had been stabbed and another by defendant’s son indicating that defendant was the attacker, had been admitted in violation of the hearsay rule, but did not consider whether admission of those two statements was harmless. One Justice dissented, agreeing that the testimony recounting the daughter’s statements violated the Confrontation Clause but concluding that the admission of all three statements was harmless. The dissenting Justice granted leave to appeal.

[1] Before this Court, the parties primarily focus on whether the erroneous admission of testimony reflecting the daughter’s statements was harmless. Applying the standard for constitutional errors, we conclude that it was. The evidence against defendant was overwhelming, particularly as it related to the critical issue of intent (*see People v Mairena*, 34 NY3d 473, 484-485 [2019], citing *People v Crimmins*, 36 NY2d 230, 241 [1975]). Properly admitted evidence demonstrated that the victim and her daughter fled the home seeking help immediately after the attack; one of them called defendant the “culprit” as he attempted to flee; defendant had to be physically subdued by a bystander until his arrest; both women told several witnesses that defendant “stabbed” the victim; the weapon used was a large, sharp knife; medical records reflect

that the victim reported to hospital staff that her husband had stabbed her; and those records, as well as a treating physician's testimony, demonstrate that the victim sustained two serious knife wounds to the neck and chest, both over two inches in length and one of which was a direct stabbing so forceful that it fractured her breastbone. These facts leave no doubt that defendant acted with the intent to cause the victim serious physical injury. For that reason, the properly admitted evidence rendered the improper testimony recounting the daughter's description of the attack redundant and therefore harmless, as "there is no reasonable possibility that the error might have contributed to defendant's conviction" (*Crimmins*, 36 NY2d at 237; see also *People v Douglas*, 4 NY3d 777, 779 [2005]).

[2] The errors in admission of statements by the 911 caller and defendant's son were also harmless and do not warrant a new trial. Because the statements supplied information properly provided to the jury through several testifying witnesses and the victim's medical records, there is no "significant probability . . . that the jury would have acquitted the defendant had it not been for" their admission (*Mairena*, 34 NY3d at 485, quoting *Crimmins*, 36 NY2d at 242).

Judges GARCIA, SINGAS, CANNATARO, TROUTMAN AND HALLIGAN concur. Chief Judge WILSON and Judge RIVERA dissent and vote to affirm for the reasons stated in the Appellate Division memorandum (see *People v Vargas*, 211 AD3d 1046 [2d Dept 2022]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on appeal to that Court, in a memorandum.

[246 NE3d 393, 221 NYS3d 22]

In the Matter of JULIE M. KUCK, Justice of the Lindley Town Court, Steuben County.

Decided July 11, 2024

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Hon. Julie M. Kuck should be suspended from the office of Justice of the Lindley Town Court, Steuben County, and whether suspension should be with or without pay.

HEADNOTE**Judges — Suspension from Office**

The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Hon. Julie M. Kuck is suspended, with pay, effective immediately, from the office of Justice of the Lindley Town Court, Steuben County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN.

[246 NE3d 399, 221 NYS3d 28]

In the Matter of CHRISTINE O'REILLY, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents. (And Three Other Proceedings.)

In the Matter of ATHENA CLARKE, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents. (And Three Other Proceedings.)

Argued September 11, 2024; decided October 17, 2024

SUMMARY

APPEAL, in the first above-entitled group of proceedings, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 21, 2023. The Appellate Division affirmed (1) an order and judgment (one paper) of the Supreme Court, New

York County (Arlene P. Bluth, J.; op 2022 NY Slip Op 30173[U] [2022]), entered in a hybrid proceeding pursuant to CPLR articles 75 and 78, which had (a) denied petitioner Christine O'Reilly's petition to annul the determination to place her on leave without pay and to vacate a September 10, 2021 arbitration award; (b) granted respondents' cross-motion to dismiss the petition; and (c) dismissed the petition; (2) an order and judgment (one paper) of that Supreme Court (Lyle E. Frank, J.; op 2022 NY Slip Op 34806[U] [2022]), entered in a hybrid proceeding pursuant to CPLR articles 75 and 78, which had denied petitioner Lucia Jennifer Lanzer's petition seeking the same relief; (3) an order and judgment (denominated an order), same court and Justice (op 2022 NY Slip Op 34807[U] [2022]), entered in a hybrid proceeding pursuant to CPLR articles 75 and 78, which had denied petitioner Ingrid Romero's petition seeking the same relief; and (4) a judgment (denominated an order) of that Supreme Court (Laurence L. Love, J.; op 2022 NY Slip Op 30758[U]), entered in a hybrid proceeding pursuant to CPLR articles 75 and 78, which had denied petitioner Elizabeth Loiacono's petition seeking the same relief. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order[s] of Supreme Court, properly made?"

APPEAL, in the second above-entitled group of proceedings, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 21, 2023. The Appellate Division affirmed an order of the Supreme Court, New York County (Lynn R. Kotler, J.; op 2022 NY Slip Op 30893[U] [2022]), entered in four hybrid proceedings pursuant to CPLR articles 75 and 78, which had (1) denied each of petitioners' separate petitions seeking (a) reinstatement of their respective teaching positions; (b) a declaration that respondents acted in derogation of Education Law §§ 3020 and 3020-a and denied petitioners' right to due process of law; (c) annulment of respondents' determination placing petitioners on leave without pay; (d) an award of back salary and benefits; and (e) vacatur of an arbitration decision denying petitioners' right to grieve; (2) granted respondents' cross-motion to dismiss the petitions; and (3) dismissed the proceedings. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

Matter of O'Reilly v Board of Educ. of the City Sch. Dist. of the City of N.Y., 213 AD3d 560, affirmed.

Matter of Clarke v Board of Educ. of the City Sch. Dist. of the City of N.Y., 213 AD3d 548, affirmed.

HEADNOTE

Schools — Teachers — Placement of Unvaccinated Teachers on Leave without Pay

Petitioners, tenured public school teachers employed by respondent Board of Education of the City School District of the City of New York, were not entitled to hearings pursuant to Education Law §§ 3020 and 3020-a prior to being placed on leave without pay for failing to submit proof of vaccination in accordance with the COVID-19 vaccination requirement imposed on respondent's employees by the Commissioner of the New York City Department of Health and Mental Hygiene. Statutory hearings are not warranted when employment eligibility conditions are enforced. Petitioners did not face disciplinary proceedings, but instead failed to comply with a condition of employment that was unrelated to job performance, misconduct or competency. In terms of due process, the union negotiated with respondent Board over every aspect of the imposition of the mandate, which in the first instance was imposed by the Health Commissioner. The union subsequently agreed to be bound by the award established by the arbitrator, and once the arbitrator issued the award, teachers received ample notice of the award's provisions. Moreover, petitioners' requests for CPLR article 75 relief were properly rejected because petitioners lacked standing and failed to join the union as a necessary party, as required for petitioners to allege that the union violated its duty of fair representation.

APPEARANCES OF COUNSEL

Jimmy F. Wagner, Brooklyn, and *Aron Law, PLLC*, Brooklyn (*Joseph H. Aron* of counsel), for appellants.

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Jesse A. Townsend*, *Richard Dearing* and *Claude S. Platton* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

On each appeal, the Appellate Division order should be affirmed, with costs, and the certified question not answered as unnecessary.

Petitioners, tenured public school teachers employed by the Board of Education of the City School District of the City of New York (BOE), brought CPLR article 75 and 78 petitions challenging their placement on leave without pay status after they failed to submit proof of vaccination in accordance with the vaccination requirement imposed on BOE employees by the Commissioner of the New York City Department of Health and Mental Hygiene (the Health Commissioner). Because the Appellate Division properly affirmed dismissal of these petitions, we affirm.

In August 2021, during the public health emergency caused by COVID-19, the Health Commissioner determined “that it is necessary for the health and safety of the City and its residents” to require vaccination, and so issued a mandate requiring all BOE staff to provide proof of vaccination by a date certain. The Health Commissioner explained that “the CDC has recommended that school teachers and staff be ‘vaccinated as soon as possible’ because vaccination is ‘the most critical strategy to help schools safely resume full operations,’ ” noting that the New York City Department of Education (DOE) “serves approximately 1 million students across the City, including students in the communities that have been disproportionately affected by the COVID-19 pandemic and students who are too young to be eligible to be vaccinated.” This mandate was later expanded to include employees of other city agencies, as well as individuals entering certain indoor dining, entertainment, and commercial venues. The United Federation of Teachers (UFT), the union representing a majority of teachers in NYC public schools, began negotiations with the BOE over implementation of the requirement and the impact on its members. When those negotiations failed, the parties filed a declaration of impasse in accordance with Civil Service Law § 209, and entered into mediation, followed by arbitration.

In September 2021, the arbitrator issued the Impact Award, which established mechanisms for the vaccine requirement’s implementation. The award provided that “[a]ny unvaccinated employee who has not requested an exemption . . . , or who has requested an exemption which has been denied, may be placed by the DOE on leave without pay” and “[p]lacement on leave without pay for these reasons shall not be considered a disciplinary action for any purpose.” While on leave without pay, employees would remain eligible for health insurance, and “[e]mployees who become vaccinated while on such leave without pay and provide appropriate documentation to the DOE prior to November 30, 2021, shall have a right of return to the same school.” The award outlined separation options for those employees who remained on leave without pay, and advised employees on leave who had not chosen any of the proffered separation options that by December 1, 2021, the DOE “shall seek to unilaterally separate” these employees.

Petitioners were placed on leave without pay after failing to submit proof of vaccination by the deadline. They each filed nearly identical petitions under article 75, seeking to vacate

the Impact Award, and under article 78, seeking to annul their placement on leave without pay and alleging that the BOE violated Education Law §§ 3020 and 3020-a by doing so without providing hearings under those provisions. Four separate Supreme Court judges denied the petitions, generally holding that the article 78 petition was meritless because petitioners were not entitled to Education Law §§ 3020 and 3020-a hearings and that petitioners lacked standing to bring article 75 petitions and failed to join UFT as a necessary party (*O'Reilly v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 2022 NY Slip Op 30173[U] [Sup Ct, NY County 2022]; *Lanzer v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 2022 NY Slip Op 34806[U] [Sup Ct, NY County 2022]; *Romero v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 2022 NY Slip Op 34807[U] [Sup Ct, NY County 2022]; *Loiacono v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 2022 NY Slip Op 30758[U] [Sup Ct, NY County 2022]; *Maniscalco v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 2022 NY Slip Op 30893[U] [Sup Ct, NY County 2022]). On appeal, the Appellate Division affirmed the determinations and dismissed the petitions in two separate decisions (213 AD3d 560 [1st Dept 2023]; 213 AD3d 548 [1st Dept 2023]). The Appellate Division held that “petitioners’ placement on leave for failure to prove vaccination, a condition of employment, is ‘unrelated to job performance, misconduct or competency’ and does not constitute ‘teacher discipline’” subject to the procedures mandated by “Education Law §§ 3020 (Discipline of teachers) and 3020-a (Disciplinary procedures and penalties)” (213 AD3d at 566, quoting *Matter of Beck-Nichols v Bianco*, 20 NY3d 540, 558-559 [2013]; 213 AD3d at 550). We now affirm.

Petitioners were not entitled to the hearing procedures outlined in Education Law §§ 3020 and 3020-a before being placed on leave without pay. These statutory provisions establish a detailed and comprehensive system for conducting disciplinary hearings for tenured teachers. While tenured teachers have a right to these statutory hearings when faced with disciplinary proceedings, these provisions are not applicable to petitioners, who were placed on leave without pay for failure to comply with the vaccine mandate, a condition of employment.

This Court has long distinguished between disciplinary proceedings and employment conditions for employees entitled to statutory civil service protections, and has held that statu-

tory hearings are not warranted when employment eligibility conditions are enforced (see *Matter of Felix v New York City Dept. of Citywide Admin. Servs.*, 3 NY3d 498, 505 [2004]; see also *Matter of New York State Off. of Children & Family Servs. v Lanterman*, 14 NY3d 275, 282-283 [2010]). We have explicitly applied this distinction in the context of tenured teachers, holding that a teacher terminated for failure to comply with a requirement that “defines eligibility for employment” is not entitled to Education Law §§ 3020 and 3020-a hearings (*Beck-Nichols*, 20 NY3d at 558). Petitioners, who do not challenge imposition of the vaccine mandate here, did not face disciplinary proceedings, but instead failed to comply with “a condition of employment” that was “unrelated to job performance, misconduct or competency” (*Felix*, 3 NY3d at 501, 505).

In terms of process, the UFT negotiated with the BOE over every aspect of the imposition of the mandate, which in the first instance was imposed by the Health Commissioner. As set out in Civil Service Law § 209, the UFT and the BOE negotiated, then engaged in mediation, and finally entered into arbitration over the implementation of the mandate and its impact on UFT’s members. Indeed, one of the points of contention between the parties leading to the filing of an impasse declaration concerned the placement of teachers who failed to submit proof of vaccination on leave without pay. The UFT subsequently agreed to be bound by the Impact Award established by the arbitrator, and once the arbitrator issued the award, teachers received ample notice of the Impact Award’s provisions. Under these circumstances, petitioners were not entitled to hearings in accordance with Education Law §§ 3020 and 3020-a (see *Beck-Nichols v Bianco*, 20 NY3d at 558-559), nor were their due process rights violated (see *id.* at 559, citing *Matter of Prue v Hunt*, 78 NY2d 364, 368 [1991]). Accordingly, their requests for article 78 relief were properly denied.

Finally, we agree with the Appellate Division that the requests for article 75 relief were properly rejected because petitioners lacked standing and failed to join UFT as a necessary party, as required for petitioners to allege that UFT violated its duty of fair representation.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN, HALLIGAN and TAYLOR* concur. Judge RIVERA took no part.

* Designated pursuant to NY Constitution, article VI, § 2.

In each case: Order affirmed, with costs, and certified question not answered as unnecessary, in a memorandum.

[246 NE3d 894, 221 NYS3d 451]

In the Matter of ELIZABETH STREET GARDEN, INC., et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Argued May 15, 2024; decided June 18, 2024

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 27, 2023. The Appellate Division modified, on the law and the facts, an order and judgment (one paper, denominated decision and order) of the Supreme Court, New York County (Debra A. James, J.; op 2022 NY Slip Op 33730[U] [2022]), which had, to the extent appealed from, granted the petition to annul the November 9, 2018 negative declaration of respondent New York City Department of Housing Preservation and Development (HPD) as arbitrary and capricious insofar as it found under the State Environmental Quality Review Act (ECL art 8) that a proposed low-income senior housing development would not significantly impact open space resources, and remanded for further proceedings, and which, to the extent cross-appealed from as limited by the briefs, dismissed petitioners' claims that HPD's negative declaration was affected by an error of law in that the proposed project would violate zoning regulations; respondents New York City Planning Commission and New York City Council failed to comply with zoning regulations in conducting the uniform land use review process; and HPD failed to take a hard look at zoning, neighborhood character, public policy, and cumulative impact when issuing the negative declaration; (2) confirmed the negative declaration; and (3) dismissed the CPLR article 78 proceeding. The modification consisted of denying the petition in its entirety. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of Supreme Court, properly made?"

Matter of Elizabeth St. Garden, Inc. v City of New York, 217 AD3d 599, affirmed.

HEADNOTE

Environmental Conservation — Environmental Quality Review — Negative Declaration

Respondent New York City Department of Housing Preservation and Development's negative declaration relating to development of affordable housing was properly issued pursuant to the State Environmental Quality Review Act (ECL art 8), as respondent made a thorough investigation of the problems involved and reasonably exercised its discretion. Respondent identified appropriate areas of concern, took the necessary "hard look," and rationally determined that the project would not have a significant adverse impact on the environment. The environmental assessment statement (EAS) identified the study area as being under-served with respect to open space and concluded that the loss of the garden would cause a decrease in the open space ratio. Accordingly, the EAS then identified and described the open spaces in the study area and determined, based on its consideration of quantitative and qualitative factors, that there would be no significant adverse impact on open space. Respondent also rationally determined that the deficiency caused by the project would be ameliorated by several factors. The EAS further observed that the population that would be added by the project was unlikely to noticeably affect the usage of open space in the area. Moreover, the project would be built to certain construction standards in order to minimize its energy impact. An agency is not required to address every conceivable environmental impact, and petitioners pointed to no published standards for assessing climate change concerns in a project of this type in general, let alone in the specific areas of urban heat and storm-water runoff.

APPEARANCES OF COUNSEL

Sigel Teitelbaum & Evans, LLP, New York City (*Norman H. Siegel, Herbert Teitelbaum* and *Goutam U. Jois* of counsel) and *McLaughlin & Stern, LLP*, New York City (*Steven J. Hyman, Oliver R. Chernin* and *Gabrielle N. Esposito* of counsel), for appellants.

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Jamison Davies, MacKenzie Fillow* and *Richard Dearing* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered as unnecessary.

This CPLR article 78 proceeding challenges a negative declaration issued by respondent New York City Department of Housing Preservation and Development (HPD) relating to development of affordable housing on a lot in the Nolita neighborhood of Manhattan. The property is owned by the City of New York and leased on a month-to-month basis since 1991

to a corporation owned by the late petitioner Allan Reiver.* Beginning in 2005, Reiver used the lot as a green space/sculpture garden accessible through his adjacent art gallery. After the City identified the lot as a potential site for affordable senior housing in 2013, Reiver opened the space to the public directly through a gate on Elizabeth Street. The garden is currently open for a limited number of hours per week and is operated and maintained by volunteers.

The proposed project, a Type I action under the State Environmental Quality Review Act (SEQRA) (ECL art 8), entails construction of a seven-story mixed-use building that will include 123 units of affordable senior housing and at least 6,700 square feet of publicly accessible open space. Because the project involves the transfer of City property to private developers, approval for disposition of the property was also required pursuant to the Uniform Land Use Review Procedure (ULURP) (NY City Charter § 197-c). Reiver and the other petitioners commenced this CPLR article 78 proceeding challenging both the negative declaration issued by the lead agency, HPD, and the approval of the ULURP application by both the New York City Planning Commission and the City Council.

Judicial review of a SEQRA determination is generally limited to whether the determination is arbitrary and capricious, an abuse of discretion, or affected by an error of law (*see Matter of Chinese Staff & Workers' Assn. v Burden*, 19 NY3d 922, 924 [2012]; CPLR 7803 [3]). More specifically, we are concerned with whether the lead agency “identified the relevant areas of environmental concern, took a ‘hard look’ at them, and made a ‘reasoned elaboration’ of the basis for its determination” (*Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400, 417 [1986] [citations omitted]). The court’s role is not “to weigh the desirability of any action or choose among alternatives,” but to ensure that “agencies will honor their mandate regarding environmental protection by complying strictly with prescribed procedures and giving reasoned consideration to all pertinent issues revealed in the process” (*Jackson*, 67 NY2d at 416-417). In other words, “[w]hile judicial review must be meaningful, the courts may not substitute their

* Allan Reiver died during the pendency of this litigation. The proceeding survives as to the remaining petitioners—the corporate lessee of the property, the not-for-profit organization that manages the operation of the property, the limited liability company that owns the adjacent property, and a local resident (*see* CPLR 1015).

judgment for that of the agency” (*Matter of Riverkeeper, Inc. v Planning Bd. of Town of Southeast*, 9 NY3d 219, 232 [2007] [internal quotation marks and citations omitted]).

Here, HPD identified appropriate areas of concern, took the necessary “hard look,” and rationally determined that the project would not have a significant adverse impact on the environment. In particular, using the methodology and guidelines set forth in the then-applicable 2014 City Environmental Quality Review (CEQR) Technical Manual, the environmental assessment statement (EAS) identified the study area as being underserved with respect to open space and concluded that the loss of the garden would cause a decrease in the open space ratio. Accordingly, the EAS then identified and described the open spaces in the study area and determined, based on its consideration of quantitative and qualitative factors, that there would be no significant adverse impact on open space. HPD rationally determined that the deficiency caused by the project would be ameliorated by several factors—including the quality of the remaining open space, the project’s addition of a 0.15-acre open space resource for public use, and the proximity of Washington Square Park. The EAS further observed that the population that would be added by the project was unlikely to noticeably affect the usage of open space in the area.

The argument that HPD failed to take a hard look at public policy in the area of sustainability and the impact of climate change likewise lacks merit. The project will be built to Passive House construction standards in order to minimize its energy impact. Furthermore, neither the CEQR Technical Manual, which is largely focused on reducing greenhouse gas emissions, nor the Mayor’s executive order on climate action (NY City Executive Order [de Blasio] No. 26), committing to the principles and goals of the Paris Agreement, establish standards for evaluating a project’s impact in the area of climate change. The agency is not required to address “every conceivable environmental impact” (*Matter of Neville v Koch*, 79 NY2d 416, 425 [1992]) and petitioners point to no published standards for assessing climate change concerns in a project of this type in general, let alone in the specific areas of urban heat and stormwater runoff. Ultimately, a negative declaration is properly issued where, as here, “the agency has made a thorough investigation of the problems involved and reasonably exercised its discretion” (*Matter of Spitzer v Farrell*, 100 NY2d 186, 190 [2003] [internal quotation marks, brackets and citation omitted]).

Petitioners' contentions related to the project's compliance with local zoning requirements are not the proper subject of this proceeding. "[E]xcept where the proposed action is a zoning amendment, SEQRA review may not serve as a vehicle for adjudicating legal issues concerning compliance with local government zoning" (*Matter of WEOK Broadcasting Corp. v Planning Bd. of Town of Lloyd*, 79 NY2d 373, 382 [1992] [internal quotation marks and citation omitted]; see also NY City Charter § 197-c [a] [3], [4]).

Petitioners' remaining arguments are unavailing.

RIVERA, J. (dissenting). New York City is in the throes of an environmental crisis (*AdaptNYC*, Mayor's Office of Climate & Environmental Justice, <https://climate.cityofnewyork.us/initiatives/adaptnyc/> [accessed June 2, 2024]). At the same time, New York City is also in dire need of affordable housing to counteract the steep rise in rents that has caused population displacement and homelessness at levels not seen since the Great Depression (Alex Horowitz & Adam Staveski, *New York's Housing Shortage Pushes Up Rents and Homelessness*, Pew Charitable Trusts, May 25, 2023, <https://www.pewtrusts.org/en/research-and-analysis/articles/2023/05/25/new-yorks-housing-shortage-pushes-up-rents-and-homelessness> [accessed June 3, 2024] ["The (rate of homelessness exacerbated by housing shortages) problem is acute in New York City, where 73 of every 10,000 people lack a home"]; *Basic Facts About Homelessness*, Coalition for the Homeless, <https://www.coalitionforthehomeless.org/basic-facts-about-homelessness-new-york-city/> [accessed June 4, 2024]). The City says that it can and will address both these challenges. This appeal puts those dual commitments to the test.

Respondent New York City Housing Preservation and Development (HPD) conducted an initial environmental assessment of a proposed construction project on New York City-owned property that would demolish a community garden currently on the project site. HPD determined that although the study area has an open space deficiency, and the project would meaningfully reduce the existing publicly-available open space, the project would not have a significant effect on environmental quality. However, HPD failed to take the requisite hard look at the climate change impact of the project, including the reduction in open space, and did not provide a reasoned elaboration for its determination. The Appellate Division thus erroneously concluded that HPD complied with both state and city environ-

mental quality review laws. I cannot agree with the majority's overly deferential approach that allows for less than rigorous environmental assessment. I dissent.

I.

A.

As the Earth's surface continues to heat at a rapid pace, global warming transforms our planet in dangerous and irreversible ways, leading to extreme weather, increased pollution, species extinction and disruption of life as we know it (*New Analysis of National Climate Plans: Insufficient Progress Made, COP28 Must Set Stage for Immediate Action*, United Nations Climate Change, Nov. 14, 2023, available at <https://unfccc.int/news/new-analysis-of-national-climate-plans-insufficient-progress-made-cop28-must-set-stage-for-immediate> [accessed June 4, 2024]; *State of the Global Climate 2023*, World Meteorological Organization, Mar. 19, 2024, available at <https://wmo.int/publication-series/state-of-global-climate-2023> [accessed June 4, 2024]). In the face of this reality, the United Nations has declared that access to a clean, healthy and sustainable environment is a universal human right (*GA/12437: With 161 Votes in Favour, 8 Abstentions, General Assembly Adopts Landmark Resolution Recognizing Clean, Healthy, Sustainable Environment as Human Right*, United Nations Meetings Coverage & Press Releases, July 28, 2022, available at <https://press.un.org/en/2022/ga12437.doc.htm>). The world's scientific community and diverse general population have reached consensus: global warming threatens human survival. Nearly two thirds of 1.2 million persons surveyed worldwide said climate change is a global emergency and they support more comprehensive climate policies (*The Peoples' Climate Vote*, United Nations Development Programme, Jan. 26, 2021, <https://www.undp.org/publications/peoples-climate-vote> [accessed June 4, 2024]).

Almost a decade ago, in December 2015, world leaders at the United Nations Climate Change Conference entered the Paris Agreement, an international binding treaty on climate change intended to reduce global warming, joined by 196 parties, including the United States and the European Union (Environment and Conservation: Climate Change Paris Agreement, TIAS No. 16-1104 [Dec. 12, 2015]; *The Paris Agreement*, United Nations: Climate Action, <https://www.un.org/en/climatechange/paris-agreement> [accessed June 2, 2024]; Tanya Somanader,

the White House President Barack Obama Blog, *President Obama: The United States Formally Enters the Paris Agreement*, <https://obamawhitehouse.archives.gov/blog/2016/09/03/president-Obama-United-states-formally-enters-Paris-agreement> [Sept. 3, 2013, 10:41 a.m.; accessed June 2, 2024]).¹ The Agreement set a target of “substantially reduc[ing] global greenhouse gas emissions to hold global temperature increase to well below 2°C above pre-industrial levels and pursue efforts to limit it to 1.5°C above pre-industrial levels, recognizing that this would significantly reduce the risks and impacts of climate change” (*The Paris Agreement*, United Nations: Climate Action, <https://www.un.org/en/climatechange/paris-agreement> [accessed June 2, 2024]). It also sought to increase financial resources so that countries could achieve these targets, and set in place a framework to evaluate individual countries’ progress.

Despite the hope that governments were finally on track to stave off the worst of the effects of global warming, the news is disheartening.

In 2022, the Secretary-General issued the following statement:

“The jury has reached a verdict. And it is damning . . . We are on a fast track to climate disaster. Major cities under water. Unprecedented heatwaves. Terrifying storms. Widespread water shortages. The extinction of a million species of plants and animals. This is not fiction or exaggeration . . . This is a climate emergency. Climate scientists warn that we are already perilously close to tipping points that could lead to cascading and irreversible climate impacts” (*SG/SM/21228: Secretary-General Warns of Climate Emergency, Calling Intergovernmental Panel’s Report ‘a File of Shame’, While Saying Leaders ‘Are Lying’, Fuelling Flames*, United Nations Meetings Coverage & Press Releases, Apr. 4, 2022, available at <https://press.un.org/en/2022/sgsm21228.doc.htm> [accessed June 4, 2024]).

According to the 2023 report from the United Nations Intergovernmental Panel on Climate Change:

“Human activities, principally through emissions of

1. The United States rejoined the agreement in 2021, after the prior administration withdrew in 2017.

greenhouse gases, have unequivocally caused global warming, with global surface temperature reaching 1.1°C above 1850-1900 in 2011-2020. Global greenhouse gas emissions have continued to increase, with unequal historical and ongoing contributions arising from unsustainable energy use, land use and land-use change, lifestyles and patterns of consumption and production across regions, between and within countries, and among individuals” (Intergovernmental Panel on Climate Change, Climate Change 2023 Synthesis Report, *Summary for Policymakers* at 4 [2023], available at https://www.ipcc.ch/report/ar6/syr/downloads/report/IPCC_AR6_SYR_SPM.pdf [accessed June 11, 2024]).

Furthermore:

“In urban areas, observed climate change has caused adverse impacts on human health, livelihoods and key infrastructure. Hot extremes have intensified in cities. Urban infrastructure, including transportation, water, sanitation and energy systems have been compromised by extreme and slow-onset events, with resulting economic losses, disruptions of services and negative impacts to well-being. Observed adverse impacts are concentrated amongst economically and socially marginalised urban residents” (*id.* at 6).

As Climate Action Tracker, an independent scientific project, summarized:

“[t]he new IPCC report on climate science has reinforced the absolute urgency of closing the 2030 emissions gap if there is to be any chance of limiting warming to 1.5°C . . . [By 2030] *global emissions must be cut by 50%, and governments are nowhere near this*” (*Global Update: Climate Target Updates Slow as Science Demands Action*, Climate Action Tracker, available at <https://climateactiontracker.org/publications/global-update-september-2021/> [accessed June 11, 2024] [emphasis added]).

However, there are environmental projects that can bring relief, even if the world is behind schedule on achieving the Paris Agreement target reductions. Indeed, the United Nations

has recognized the importance of green spaces in the race to save the planet, noting:

“Parks, green spaces and waterways are important public spaces in most cities. They offer solutions to the effects of rapid, unsustainable urbanization on health and well-being. The social and economic benefits of urban green spaces are equally important, and should be viewed in the context of global issues such as climate change, as well as other priorities set out in the SDGs, including sustainable cities, public health and nature conservation. . . . Increasing the number and quality of green spaces has the potential to mitigate short-lived climate pollutants that produce a strong global warming effect and contribute significantly to more than 7 million premature air-pollution related deaths annually. . . . For every tree strategically planted to provide shade, there could be a direct reduction of approximately 10 kg in carbon emissions from power plants through reduced demand for air conditioning. . . . Therefore, investments in city parks, green spaces, and waterways are an effective and economical way to both promote health and mitigate climate change” (Nathalie Röbel, *Green Spaces: An Invaluable Resource for Delivering Sustainable Urban Health*, UN Chronicle, <https://www.un.org/en/chronicle/article/green-spaces-invaluable-resource-delivering-sustainable-urban-health> [accessed June 3, 2024]).

B.

In New York City, ongoing climate change has been the catalyst for extreme weather events, including Superstorm Sandy and Hurricane Ida, which have caused death and billions of dollars in property damage and revenue losses (*Hurricane Sandy: Impact of Hurricane Sandy*, NYC Community Development Block Grant Disaster Recovery, <https://www.nyc.gov/site/cdbgdr/hurricane-sandy/hurricane-sandy.page> [accessed June 3, 2024]; *Hurricane Ida: Overview*, NYC Community Development Block Grant Disaster Recovery, <https://www.nyc.gov/site/cdbgdr/hurricane-ida/hurricane-ida.page> [accessed June 3, 2024]).

In full appreciation of the City’s global standing and potential leadership on this issue, New York City has declared a public

policy to mitigate climate change effects and the damage and inequalities that result from environmental disasters. On June 2, 2017, the City’s mayor issued Executive Order No. 26, which declares, “[W]e all have a moral, economic, public health, and security imperative to act to protect our planet, fellow human beings, and future generations” (NY City Executive Order [de Blasio] No. 26 [June 2, 2017]). The order further provides that “climate action taken by cities in the United States and around the world can result in 40% of the pollution reduction needed globally to limit warming to only 1.5 degrees Celsius,” and, “the many benefits of climate action by cities also address issues of inequality including the expanding wealth gap, the lack of housing, the accessibility of public transit, aging infrastructure, and other major urban challenges” (*id.*). The Executive Order declares that the City adopts and commits to the principles and goals of the Paris Agreement. Section 1 of the Executive Order states:

“To protect our residents and all human beings from the effects of climate change, New York City will adopt the principles and goals of the Paris Agreement to deliver climate actions that are consistent with or greater than its own commitments to reduce its greenhouse gas emissions 80% by 2050 and that support the critical goal of holding the increase in the global average temperature to below 2° Celsius above pre-industrial levels and pursuing efforts to limit the temperature increase to 1.5° Celsius above pre-industrial levels, as set forth in the Paris Agreement, which entered into force on November 4, 2016” (*id.*).

Like the United Nations, the Mayor’s Office of Climate and Environmental Justice has reaffirmed what City administrators, scientists and community advocates, have known for years: green space is essential for “[e]nsuring access to nature, improving stormwater management, and combatting extreme heat” (*Green Space*, Mayor’s Office of Climate and Environmental Justice, <https://climate.cityofnewyork.us/subtopics/green-space/> [accessed June 2, 2024]).

II.

For decades, spanning back into the prior century, New York City has failed to adequately address the affordable housing needs of our diverse communities. Inaction alone is not the

cause of the current crisis. Instead, New York City administrators have promoted commercial real estate development without also providing residential housing for the vast majority of the City's population that cannot afford skyrocketing rents or home prices. Without rent regulation or crammed living arrangements most low-income and middle-class New Yorkers cannot afford to live comfortably in the City where they were born, grew up, and work. Moreover, zoning and a legacy of redlining has segregated the City along racial and ethnic lines (see generally *A Brief History of Redlining*, Environment & Health Data Portal, <https://a816-dohbesp.nyc.gov/IndicatorPublic/data-stories/redlining/> [June 3, 2024]; see Anbinder, *"Power to the Neighborhoods!" New York City Growth Politics, Neighborhood Liberalism, and the Origins of the Modern Housing Crisis* at 13-14, Joint Center for Housing Studies of Harvard University [Mar. 2024], available at https://www.jchs.harvard.edu/sites/default/files/research/files/harvard_jchs_power_neighborhoods_anbinder_2024.pdf [accessed June 3, 2024] ["(I)n middle-class white neighborhoods . . . , neighborhoodism became a cudgel wielded to resist racial integration and affordable housing Subsequently, New Yorkers enacted laws and implemented processes that slowed the pace of development by requiring neighborhood input. In the parts of the city where the anti-growth vision was most appealing, these reforms became the neighborhood liberals' most pressing goal; today, it remains their most enduring legacy"]).

New York City continues to struggle with this affordable housing crisis and gentrification's displacement of low-income residents, especially residents of color. According to HPD, "[n]early all low-income New Yorkers are rent-burdened, allocating more than 30% of their income towards rent. Among households who earned less than \$50,000 without rental assistance, 86% were rent burdened" (*New York City's Vacancy Rate Reaches Historic Low of 1.4 Percent, Demanding Urgent Action & New Affordable Housing*, NYC Housing Preservation & Development, Feb. 8, 2024, <https://www.nyc.gov/site/hpd/news/007-24/new-york-city-s-vacancy-rate-reaches-historic-low-1-4-percent-demanding-urgent-action-new#/0> [accessed June 2, 2024]). The City Comptroller has declared that New York City is facing the tightest housing market in over 50 years, with rental vacancy rates falling to a multi-decade low, including fewer than 1% of vacant apartments with rents below \$1,650 in 2023 (Office of New York City Comptroller Brad Lander,

Spotlight: New York City's Housing Supply Challenge [Feb. 13, 2024], <https://comptroller.nyc.gov/reports/spotlight-new-york-citys-housing-supply-challenge/> [accessed June 2, 2024]). Deputy Mayor for Housing, Economic Development and Workforce Maria Torres-Springer has concluded that “to meet this need and turn the tide on our long-standing housing crisis, we need . . . to advance proposals and projects that will allow us to build and preserve more housing in every neighborhood across the city” (*New York City's Vacancy Rate Reaches Historic Low of 1.4 Percent, Demanding Urgent Action & New Affordable Housing*, NYC Housing Preservation & Development, Feb. 8, 2024, <https://www.nyc.gov/site/hpd/news/007-24/new-york-citys-vacancy-rate-reaches-historic-low-1-4-percent-demanding-urgent-action-new#/0> [accessed June 2, 2024]). Nevertheless, the City's commitment to building affordable housing in every neighborhood to address this crisis and counteract redlining remains unrealized (David Brand & Jaclyn Jeffrey-Wilensky, *NYC data shows deep disparities in affordable housing creation*, Gothamist, Mar. 7, 2024, <https://gothamist.com/news/nyc-data-shows-deep-disparities-in-affordable-housing-creation> [accessed June 3, 2024]). For example:

“The city has financed roughly 24,000 apartments with rents capped for low- and middle-income tenants since . . . the start of 2022. Most are located in densely populated parts of the city that are predominantly Black and Latino, like Central Brooklyn and the South Bronx . . . Just one new affordable unit has been built or financed in the 6th Council District, which covers the Upper West Side. In the 5th Council District on the Upper East Side, the number is 15. Both neighborhoods are among the wealthiest in New York City, census data shows” (*id.*).

This segregation, redlining and dearth of affordable housing in wealthier neighborhoods has left communities of color bearing the brunt of environmental contaminants. In New York and other cities,

“neighborhoods that are poorer and have more residents of color can be 5 to 20 degrees Fahrenheit hotter in summer than wealthier, whiter parts of the same city . . . In the 20th century, local and federal officials, usually white, enacted policies that reinforced racial segregation in cities and diverted

investment away from minority neighborhoods in ways that created large disparities in the urban heat environment” (Brad Plumer and Nadja Popovich, *How Decades of Racist Housing Policy Left Neighborhoods Sweltering*, NY Times, Aug. 24, 2020, <https://www.nytimes.com/interactive/2020/08/24/climate/racism-redlining-cities-global-warming.html> [accessed June 4, 2024]; Jaclyn Jeffrey-Wilensky, *For NYC, the legacy of redlining is in the air we breathe*, Gothamist, Apr. 1, 2022, <https://gothamist.com/news/for-nyc-the-legacy-of-redlining-is-in-the-air-we-breathe> [accessed June 4, 2024] [“On average, residents of formerly redlined neighborhoods are sicker, have more pregnancy and birth complications, are more vulnerable to extreme heat and die younger than their neighbors living in areas with more favorable ratings from the Home Owners’ Loan Corporation”]).

Against this historical backdrop of ineffective housing policies and environmental justice gaps, the City has attempted to address the continuing need for affordable housing and fulfill its commitment to greener neighborhoods, and open spaces. This appeal involves a development project at the intersection of both these public policies.

III.

The proposed project is a mixed-use development consisting of 123 units of affordable senior housing and ground-floor retail space. The development is slated for construction in the lower Manhattan neighborhood known as “Nolita,” which is near the cultural centers of Little Italy, Chinatown and the Lower East Side. Historically, the area and nearby neighborhoods were the home of recent arrivals, including Puerto Rican,² Chinese, Italian, and Jewish New Yorkers. They and their descendants built and maintained thriving ethnic and religious communities and

2. Most of these new arrivals were immigrants, with the exception of Puerto Ricans, who, under the Jones Act of 1917, are United States citizens by birth (46 USC § 50101). Nevertheless, Puerto Rico holds a colonial status under the United States government and its residents do not receive full benefits of other United States citizens (*United States v Vaello Madero*, 596 US 159, 162 [2022]; Natalie Gomez-Velez, *De Jure Separate and Unequal Treatment of the People of Puerto Rico and the U.S. Territories*, 91 Fordham L Rev 1727, 1731 [2023]).

contributed to the City's economic stability.³ The area has changed dramatically over the years and, through gentrification, has become unaffordable to most low and middle-income individuals or for those living in these areas requires they pay an excessive amount of their income in rent (Public Affairs, *New York City gentrification creating urban 'islands of exclusion,' study finds*, UC Berkeley News, Apr. 10, 2019, <https://news.berkeley.edu/2019/04/10/new-york-city-gentrification-creating-urban-islands-of-exclusion-study-finds/>).

The area has the highest median monthly rent in the City (Haven Green ULURP Application, citing Community District 2's Statement of Needs for Fiscal Year 2018). It is one of only two community districts in Manhattan in which the population is currently equal to or more than 75% white (*There Is No Alternative*, Haven Green [Nov. 19, 2018], citing Department of City Planning, *Demographic Profiles of ACS 5 Year Estimates at the Neighborhood Tabulation Area [NTA] level*, NYC Open Data, https://data.cityofnewyork.us/City-Government/Demographic-Profiles-of-ACS-5-Year-Estimates-at-th/8cwr-7pqn/about_data [accessed June 3, 2024]). Only 93 units of affordable housing have been built in the district since 2014 (*There Is No Alternative*, Haven Green [Nov. 19, 2018]; see also Department of Housing Preservation and Development, *Affordable Housing Production by Building*, NYC Open Data, <https://data.cityofnewyork.us/Housing-Development/Affordable-Housing-Production-by-Building/hg8x-zxpr/data> [accessed June 3, 2024]).

The area also suffers from the environmental problems typical of highly developed urban neighborhoods—traffic congestion, air and noise pollution, and limited open spaces. Indeed, this area is considered “underserved” for open space because there are only 0.193 acres of open space per 1,000 residents—well below the citywide community district median of 1.5 acres per 1,000 residents and city planning goals of 2.5 acres per 1,000 residents. As the City recognizes, the challenges of living in the area are heightened by the effects of climate change,

3. According to the 1960 census, the area that now includes the Garden was 39% Italian and 9% Puerto Rican (see U.S. Bureau of the Census, *U.S. Censuses of Population and Housing: 1960, Census Tracts, Final Report PHC[1]-104, Part 1, New York, N.Y.* at 118, available at <https://www2.census.gov/library/publications/decennial/1960/population-and-housing-phc-1/41953654v7.zip> [accessed June 4, 2024]; 1960 US Census Map No. 4, *Census Tracts in the New York SMSA*, available at https://archive.lib.msu.edu/DMC/US_Census_Maps/pdfs/00000004.pdf).

which include extreme heat, more and intense heat waves, and extreme rainfall that causes flooding and other stormwater damage (*AdaptNYC*, Mayor's Office of Climate & Environmental Justice, <https://climate.cityofnewyork.us/initiatives/adaptnyc/> [accessed June 2, 2024]).

The project would be built on City-owned land that is currently leased and partially used as a 20,235 square foot sculpture and community garden, known as the Elizabeth Street Garden, which would be demolished under the plan. Like other proposed land development, the project is subject to New York State's and City's Environmental Quality Review laws (SEQRA and CEQR, respectively), and in 2018 HPD became the lead agency for SEQRA and CEQR purposes (ECL 8-0109 [2]; CEQR 7 [a]). The agency's "initial determination . . . under SEQRA and CEQR is whether an [environmental impact statement] is required, which in turn depends on whether an action may or will not have a significant effect on the environment" (*Chinese Staff & Workers Assn. v City of New York*, 68 NY2d 359, 364 [1986]).

In late 2018, HPD issued an environmental assessment statement (EAS) and a negative declaration which determined that the project will not have a significant environmental effect. The EAS found, in part, that the project as planned "would result in a decrease in the total, active, and passive open space ratios in an area underserved by open space" but nonetheless concluded that the project "would not result in a significant adverse open space impact." The EAS also found that relative to a no action condition in the neighborhood, there would be a 2.24% reduction in open space, to 0.149 acres of open space per 1,000 residents, and that the with-action active open space ratio would decrease by 0.13% to 0.124 acres per 1,000 residents.

In reaching its conclusions, HPD followed the CEQR Technical Manual (CEQRTM), which "provides guidance for city agencies, project sponsors, the public, and other entities in the procedures and substance of the City's Environmental Quality Review (CEQR) process" (New York City Mayor's Office of Environmental Coordination, 2014 CEQR Technical Manual at INTRODUCTION-1 [Mar. 2014], https://www.nyc.gov/assets/oec/technical-manual/2014/Documents/2014_ceqr_technical_manual_rev_04_27_2016.pdf [accessed

June 4, 2024]).⁴ As described in the CEQRTM, if the study area's existing open space is adequate, decreases in open space ratios that approach or exceed 5% may be significant and require more detailed analysis. If the study area has a low open space ratio, as is the case here, even decreases below 5% may require detailed analysis. A detailed analysis under the CEQRTM requires the lead agency to disaggregate the study area population by age, types and quality of open space, and utilization rate of open space in the neighborhood. Although the criteria for determining the boundaries of study area or neighborhood has several factors, in general for the open space analysis, the study area is defined as "a reasonable walking distance that users would travel to reach local open spaces and recreation areas—typically 0.5 mile for residential users and 0.25 mile from commercial projects with a worker population" although the boundaries "should reflect existing conditions and may be irregularly shaped" (*id.* at 7-5 7-6). The CEQRTM further provides that a finding of a quantitative adverse impact on open space, requires that

"[t]he adequacy of the open space in the study area should be considered in order to determine whether [the] change in open space conditions and/or utilization results in a significant adverse effect to open space. To make this determination, the type of open space (active or passive), its capacity and conditions, the distribution of open space, whether the area is considered 'well-served' or 'underserved' by open space, the distance to regional parks, the connectivity of open space, and any additional open space provided by the project, including rooftop gardens, greenhouses, new active or passive open space, should be considered in relation to the quantitative changes identified above. These considerations may vary in importance depending on the project and the area in which it is located. For instance, provisions of new active open space may carry more weight in an area where a large residential population would be added as a result of the project" (2014 CEQR Technical Manual at 7-16).

HPD conducted its qualitative analysis of open space in the study area by identifying and inventorying open spaces by

4. The CEQRTM has been revised since HPD issued the EAS and negative declaration but the revisions do not affect the analysis here.

their location, size, owner, type, utilization, equipment, hours, and condition. HPD concluded that a “deficiency of open space resources . . . would be ameliorated by several factors” because the majority of the open spaces are in good or excellent condition, eight nearby community gardens exist in the study area, nearby Washington Square Park is a “destination park” as defined under the CEQRTM, and a 0.15-acre open space would be constructed on the project site. Citing these qualitative factors, the EAS concluded the project would not significantly exacerbate the existing open space deficiency. The EAS and negative declaration obviated the need to prepare an environmental impact statement (EIS), which is the culmination of a fuller environmental review process (6 NYCRR 617.6 [a] [2]).

IV.

Petitioners are a neighborhood resident, two commercial entities and a nonprofit created after the project was slated for development in 2013.⁵ They commenced this CPLR article 78 proceeding against respondents HPD, Torres-Springer in her capacity as HPD Commissioner, the New York City Council, and the New York City Planning Commission. The petition alleges various causes of actions based on alleged flaws in the EAS and environmental review process and asserts that the negative declaration should be nullified and respondents ordered to conduct a more comprehensive environmental review, with greater community participation, and the preparation of an EIS.

Supreme Court voided the negative declaration based on the lack of a significant adverse impact on open space and remitted to respondents for a full EIS. The Appellate Division reversed, confirmed the negative declaration, denied the petition and dismissed the proceeding (217 AD3d 599, 600 [1st Dept 2023]). The Appellate Division granted petitioners leave to appeal and certified the question of whether its decision was properly made.

I would reverse because HPD did not take a hard look at the significant effects on the environment due to the diminution in open space and how the project advances or frustrates the

5. The individual lessee of the parcel was also a named petitioner, but he passed away during the litigation.

City's climate change agenda.⁶ Notably, HPD's conclusion that certain alternative spaces mitigate the open space impact lacks reasoned elaboration as to how the existing open space shortfall—which already accounts for these alternatives—can overcome a further diminution.

V.

A.

“The Legislature adopted SEQRA with the express intent that ‘the protection and enhancement of the environment, human and community resources shall be given appropriate weight with social and economic considerations in public policy’ and that SEQRA’s policies, statutes and regulations should be implemented ‘to the fullest extent possible’ ” (*Matter of New York City Coalition to End Lead Poisoning v Vallone*, 100 NY2d 337, 347 [2003], quoting ECL 8-0103 [7], [6]). Because SEQRA requires an agency

“to adopt procedures necessary to implement the requirements of the statute provided that such ‘procedures shall be no less protective of environmental values [than the procedures provided in SEQRA]’, although procedures more protective of the environment can be adopted[, an agency’s] determination must be judged not only according to the requirements of SEQRA but also according to the regulations promulgated by the City of New York in CEQR to the extent those regulations are more protective of the environment” (*Chinese Staff & Workers Assn.*, 68 NY2d at 364, quoting ECL 8-0113 [3] [a]).

And since agency regulations must accord with the City’s stated public policy, the agency’s environmental review may not undermine the City’s climate change agenda. Thus, an agency’s “initial determination . . . under SEQRA and CEQR is whether an EIS is required, which in turn depends on whether an action may or will not have a significant effect on the environment” (*id.* at 364, citing ECL 8-0109 [2]; CEQR 7 [a]).

“Where an agency determines that an EIS is not required, it will issue a negative declaration” (*Matter of Chinese Staff &*

6. I agree with the majority that petitioners’ remaining claims are without merit (majority mem at 996).

Workers' Assn. v Burden, 19 NY3d 922, 924 [2012] [internal quotation marks and citation omitted]). “[T]he threshold triggering an EIS is relatively low” (*id.*), as “the legislative mandate [is] that an EIS be prepared when there is to be any proposed action that ‘may have a significant effect on the environment’” (*Inland Vale Farm Co. v Stergianopoulos*, 65 NY2d 718, 720 [1985], quoting ECL 8-0109 [2]).

As we have explained, when conducting an EIS,

“[f]irst, the project sponsor or the lead state agency on the project may conduct an optional ‘scoping session,’ exploring the method to be used in assessing the project’s environmental impact (see 6 NYCRR 617.8). Next, the lead agency must prepare or cause to be prepared a draft environmental impact statement (DEIS), to be filed with the Department of Environmental Conservation, which surveys the relevant environmental risks posed by the proposed project (ECL 8-0109; 6 NYCRR 617.12 [b] [6]). After the DEIS has been finished and publicly reviewed, the agency prepares and files a final environmental impact statement (FEIS) (ECL 8-0109 [6]). The DEIS and FEIS must analyze the ‘environmental impact and any unavoidable adverse environmental effects’ of the project under review, as well as ‘alternatives to the proposed action . . . , including a “no-action alternative” . . . and mitigation measures’ (*Matter of Jackson*, 67 NY2d at 416 [citations omitted]). Finally, before approving the project, the agency must ‘make an explicit finding that the requirements of [SEQRA] have been met and that[,] consistent with social, economic[,] and other essential considerations, to the maximum extent practicable, adverse environmental effects revealed in the environmental impact statement process will be minimized or avoided’ (ECL 8-0109 [8]). By administrative regulation, such finding must be contained in a written findings statement, which considers the conclusions reached in the FEIS, weighs and balances the relevant environmental impacts, and ‘provide[s] a rationale for the agency’s decision’ (6 NYCRR 617.11 [c], [d]). . . .

“At each step, the agency must provide for public

comment, usually through a written public comment period (*see* 6 NYCRR 617.8 [e]; 617.9 [a] [2]-[5]; 617.11 [a], [b]; *see generally* *Matter of Jackson*, 67 NY2d at 415-416 [summarizing SEQRA process, including public comment requirements])” (*Matter of Friends of P.S. 163, Inc. v Jewish Home Lifecare, Manhattan*, 30 NY3d 416, 425-426 [2017]).

As we stated in *Matter of Gernatt Asphalt Prods. v Town of Sardinia*, our review of the agency’s determination is circumscribed (87 NY2d 668, 688 [1996]).

“A court’s authority to examine a SEQRA review conducted by an entity that was required to do so is limited to reviewing whether the determination was made in violation of lawful procedure, was affected by an error of law or was arbitrary and capricious or an abuse of discretion. The relevant question before the court is ‘whether the agency identified the relevant areas of environmental concern, took a “hard look” at them, and made a “reasoned elaboration” of the basis for its determination’” (*id.*, quoting *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400, 417 [1986]).

Furthermore, “[i]t is not our role to weigh the desirability of any proposed actions or choose among alternatives but only to insure that the agency has satisfied the substantive and procedural requirements of SEQRA and of the regulations implementing it” (*Matter of Village of Westbury v Department of Transp. of State of N.Y.*, 75 NY2d 62, 66 [1989], citing *Matter of Jackson*, 67 NY2d at 416).

The “hard look” standard has its origins in federal case law from the DC Circuit adopted by the United States Supreme Court (*Pikes Peak Broadcasting Co. v Federal Communications Commn.*, 422 F2d 671, 682 [DC Cir 1969]; *Colorado Interstate Gas Co. v FPC*, 324 US 581, 595 [1945]; *Kleppe v Sierra Club*, 427 US 390, 410 n 21 [1976]; *Natural Resources Defense Council, Inc. v Morton*, 458 F2d 827, 838 [DC Cir 1972]; Patrick Garry, *Judicial Review and the “Hard Look” Doctrine*, 7 Nev LJ 151 [2006]). It is essentially an arbitrary and capricious standard of review, a test of whether the agency engaged in reasoned decisionmaking and whether its process was effective and meaningful (*Chinese Staff & Workers Assn.*, 68 NY2d at 363-364). It is not an opportunity for a court to weigh the benefits of the proposal or to substitute its own policy prefer-

ences (*Matter of Gordon v Rush*, 100 NY2d 236, 244 [2003]). That is for the agency.

B.

Based on this well-settled law and HPD's own findings, the negative declaration lacks legal and factual support. HPD found that the area suffers from a deficiency of open space and that the project would further reduce that amount. When an area is already below target for open land, a meaningful diminution—here a 2% reduction in the total open space ratio and a 11% reduction in the passive open space ratio—“may . . . have a significant effect on the environment” (*Chinese Staff & Workers Assn.*, 68 NY2d at 364). Put another way, the status quo is already bad and unsustainable. Further reduction has two negative results. First, it means diminished opportunity for public enjoyment of undeveloped land and the attendant physical and emotional benefits of that use (Alison Rodriguez, US Dept of Agriculture Blog, *Improving Urban Health through Green Space*, <https://www.usda.gov/media/blog/2017/11/28/improving-urban-health-through-green-space> [Nov. 28, 2017; accessed June 2, 2024]). Second, an additional reduction in open space may undermine efforts to mitigate the effects of climate change.

As the City recognizes, climate change is *the* global environmental issue. HPD as the City's lead agency on the project is required to consider whether the project will have an adverse climate change impact, is consistent with the Paris Agreement and furthers or undermines the City's broader climate change goals. The majority's claim that there are no standards to guide HPD ignores the simple fact that the City has a climate change agenda, adopted the Paris Agreement and announced the importance of both green and open spaces to those climate change goals (*Action on Global Warming: NYC's Green New Deal*, City of New York [Apr. 22, 2019], <https://www.nyc.gov/office-of-the-mayor/news/209-19/action-global-warming-nyc-s-green-new-deal#/0> [accessed June 2, 2024]). Thus, HPD has guideposts for its environmental assessment and compliance.

Notably, in support of their claims, petitioners submitted an affidavit from Adrian Benepe, Commissioner of the Department of Parks and Recreation from 2002 until 2012, and now Senior Vice President and Director of National Programs for The Trust for Public Land, stating that green open spaces with trees, like Elizabeth Street Garden, are part of the City's green

infrastructure that mitigates stormwater runoff and rising temperatures, and that this is important with climate change. Petitioners also submitted an affidavit from Geoffrey K. Clark, hired by Elizabeth Street Garden, stating that because “the current land use is misrepresented” the EAS and negative declaration do not meet the threshold of a “hard look,” and the open space in the proposed project may be more shaded than the garden. Just so.

Indeed, as Supreme Court concluded:

“respondents . . . fail to explain how the qualitative assessment reduces the significance of the quantitative reduction in open space caused by the project. Even if, assuming arguendo, the qualitative assessment identified factors that would mitigate the impact of the significant decline in the open space ratio caused by the project, there is no evidence that in the current record that such mitigations are sufficient to overcome such significance” (2022 NY Slip Op 33730[U], *18-19 [Sup Ct, NY County 2022]).

I agree that HPD did not give a hard look to these environmental issues and did not provide a reasonable elaboration for their determination (*Matter of Gernatt Asphalt Prods.*, 87 NY2d at 688).

Contrary to the respondents’ claims, and the majority’s conclusion, HPD could not determine at this stage of environmental review whether the project’s street-level, publicly-available open space, would offset the increase in deficiency because the project space would be available for more hours and days per year than the Elizabeth Street Garden. The City ignores that it could have negotiated longer hours with the Garden, and petitioners maintain that the lessee was willing to do so. Nor could respondents conclude that the existence of other open space in the vicinity would mitigate the impact, like the qualitative analysis under CEQRTM of the condition, utilization rates, and types of usage of open space in the study area. As recognized in the EAS, even accounting for those other spaces, the study area was underserved for open space. In any case, whether the other spaces were viable alternatives could not be determined without community input regarding obstacles to utilization, including longer distances from home, overcrowding in smaller spaces, accessible transportation and the lack of amenities and programming provided by the Garden

in comparison to surrounding lots and parks. As required by SEQRA and CEQR, the adequacy of these alternatives could only be determined by preparation of an EIS and fuller community engagement.

Given that “the threshold triggering an EIS is relatively low” (*Matter of Chinese Staff & Workers Assn.*, 19 NY3d at 924) and “the legislative mandate [is] that an EIS be prepared when there is to be any proposed action that *may* have a significant effect on the environment” (*Inland Vale Farm Co.*, 65 NY2d at 720 [internal quotation marks and citation omitted]), HPD erred in issuing a negative declaration and failing to establish how a project that exacerbates the open space deficiency in the area may not possibly affect environmental quality.

The fact is that the City is committed to providing affordable housing. Having assumed that obligation, it is the City’s legal and moral responsibility to ensure that the housing is located in sustainable neighborhoods. After all, the tenants most in need—like the intended tenants of the proposed project—are entitled to a high-quality environment, just like their wealthier and better-resourced peers.

Critically, a reversal here would not sound the death knell of the project, it would only require HPD to conduct a more comprehensive environmental review process, in accordance with the law and the City’s climate change agenda. The results of that review may support the project as currently proposed, or may identify other alternatives that enhance the project and provide even greater social and economic benefits to the community. Affordable housing and climate change efforts are not mutually exclusive goals. Respondents, not the courts, would weigh the relevant factors and make a determination on the environmental impact of the project, but as it now stands, HPD has not complied with its legal mandate.

Therefore, I would reverse the Appellate Division, invalidate the negative declaration, and remand the matter to respondents to conduct a full environmental review and prepare an EIS.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion.

Order affirmed, with costs, and certified question not answered as unnecessary, in a memorandum.

[246 NE3d 916, 221 NYS3d 473]

In the Matter of DANIEL KARLIN, Appellant, v TINA M. STANFORD, as Chair of the Board of Parole, Respondent.

Argued May 16, 2024; decided July 31, 2024

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 27, 2022. The Appellate Division affirmed a judgment (denominated decision/order/judgment) of the Supreme Court, Albany County (Gerald W. Connolly, J.), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to review a determination of the Board of Parole finding that petitioner had violated the conditions of his postrelease supervision; and (2) dismissed the proceeding.

Matter of Karlin v Stanford, 209 AD3d 1189, affirmed.

HEADNOTE

Parole — Special Conditions — Prohibition on Viewing and Accessing Materials Depicting Sexual Activity or Nudity

In a CPLR article 78 proceeding to challenge the revocation of petitioner's parole for using his computer to access materials depicting sexual activity and nudity in violation of one of his parole conditions, petitioner failed to establish a violation of his First Amendment rights. The restrictions the parole condition imposed on petitioner were a relaxation of the original ban on his access to the Internet and were carefully circumscribed to accommodate his request for a computer with Internet access to allow him to complete college coursework while ensuring the safety of the public.

APPEARANCES OF COUNSEL

Cornell Law School First Amendment Clinic, Ithaca (*Christina N. Neitzey* and *Mark H. Jackson* of counsel), for appellant.

Letitia James, Attorney General, Albany (*Kate H. Nepveu, Barbara D. Underwood* and *Jeffrey W. Lang* of counsel), for respondent.

New York Civil Liberties Union Foundation, New York City (*Daniel R. Lambright* and *Christopher T. Dunn* of counsel), for New York Civil Liberties Union, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Petitioner was convicted of multiple criminal sex offenses from incidents involving several male children in his care when

he was a teenager. He was conditionally released to parole supervision in September 2018 and was adjudicated a level three violent sex offender. Among other things, his conditions of release barred him from “own[ing], possess[ing], purchas[ing], or hav[ing] control of any computer, computer related material, electronic storage devices, communication devices and/or the internet” unless he obtained prior written permission from his parole officer.

Thereafter, petitioner enrolled in college courses. In December 2018, petitioner requested a computer with Internet access for school. His parole officer approved his request, subject to the following special conditions, which petitioner certified that he had read and understood:

1. “I will provide all personal, business, phone, internet service provider and/or any related records to my Parole Officer upon request.”
2. “I will provide all user ID’s and passwords for the device or any programs, upon request by my Parole Officer.”
3. “I will cooperate with unannounced examinations directed by my Parole Officer of any/all computer(s) and storage devices, whether installed within a device or removable. I understand that an examination may entail my Parole Officer seizing the device(s).”
4. “I will install or allow to be installed, at my own expense, equipment and/or software to monitor or limit computer use, as directed by my Parole Officer.”
5. “I will not access any social media sites or applications including, but not limited to Facebook, Instagram, Classmates, YouTube, etc.”
6. “I will not access or use any dating, chat, or instant messaging sites.”
7. “I will not employ any cleaning utility or defragmentation technology that prevents the recovery or tracing of information by overwriting and destroying data beyond recovery. I agree not to employ any form of encryption or cryptography.”
8. “I will shall [sic] not view, access, possess and/or download any materials depicting sexual activity, nudity, or erotic images.”

During a random search of the computer, petitioner’s parole officer found evidence that he had violated the last special condition (identified as “ADD8”). Petitioner pleaded guilty to using the computer to access materials depicting sexual activ-

ity and nudity. As a result, his parole was revoked for 22 months, after which he was rereleased on parole without the special conditions. Petitioner commenced this CPLR article 78 proceeding to challenge the revocation of his parole on the ground that ADD8 was unconstitutional under the First Amendment of the United States Constitution.

Although parolees indisputably possess First Amendment rights, because they remain under penal supervision, the compelling governmental interest in protection of the community and advancement of their rehabilitation allow for greater restrictions on their constitutional rights than the rights of the public at large (see *Samson v California*, 547 US 843, 850, 853 [2006]; *Morrissey v Brewer*, 408 US 471, 482 [1972]). A person released on parole remains in the “legal custody” of the Department of Corrections and Community Supervision (Executive Law § 259-i [2] [b]). At the same time, parolees “enjoy greater freedom in many respects than a [person who is incarcerated]” (*Birzon v King*, 469 F2d 1241, 1243 [2d Cir 1972]).

Here, petitioner’s initial conditions of release—which he does not challenge—wholly barred him from accessing the Internet.¹ When granting petitioner’s request for a relaxation of that condition to allow him to complete college coursework, the Board of Parole imposed several conditions, including ADD8, as a limitation on his use of the Internet and to facilitate his parole officer’s ability to monitor his Internet usage. The restrictions ADD8 imposed on petitioner are a relaxation of the original ban on his access to the Internet and are carefully circumscribed to accommodate his request while ensuring the safety of the public. Petitioner therefore has failed to establish a violation of his First Amendment rights (see *United States v Myers*, 426 F3d 117, 126 [2d Cir 2005]; *United States v Reeves*, 591 F3d 77, 82-83 [2d Cir 2010]).² Although petitioner contends that, standing alone, ADD8 would bar him from reading clas-

1. Because petitioner does not challenge the total Internet ban, the constitutionality of that condition is not properly before us. We note that, subsequent to petitioner’s parole revocation, the Board of Parole settled a separate action (see *Jones v Stanford*, 489 F Supp 3d 140 [ED NY 2020]), in which it stipulated that it would not impose wholesale restrictions on a sex offender registrant’s access to the Internet where that person had not “used the internet to facilitate the commission of their underlying sex offense” (*id.* at 143).

2. Under the particular circumstances here, we have no occasion to determine the applicable standard of review, because the condition limiting the use of the computer with Internet access provided for educational purposes would survive regardless of the level of scrutiny applied.

sics or going to an art museum, that condition is part of a set of conditions clearly aimed at Internet access. The violations to which he pleaded guilty involved the use of his computer to access the Internet for purposes not within the limited exception granted him.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and MANZANET-DANIELS* concur. Judge HALLIGAN took no part.

Order affirmed, without costs, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2024 through October 31, 2024)

People v Adams	4th Dept: 227 AD3d 1462 (Monroe)	denied 10/1/24 (Halligan, J.)
People v Anthony	App Div, 2d Dept: 2024 NY Slip Op 71425(U) (Suffolk)	withdrawn 10/22/24 (Troutman, J.)
People v Ashton (Kirk)	4th Dept: 229 AD3d 1322 (Monroe)	denied 10/30/24 (Rivera, J.) (Appeal No. 1)
People v Ashton (Kirk)	4th Dept: 229 AD3d 1324 (Monroe)	denied 10/30/24 (Rivera, J.) (Appeal No. 2)
People v Barber	4th Dept: 229 AD3d 1295 (Oswego)	denied 10/8/24 (Garcia, J.)
People v Bartee	App Term, 1st Dept: 83 Misc 3d 126(A) (Bronx)	denied 10/23/24 (Troutman, J.)
People v Bean	4th Dept: 229 AD3d 1231 (Monroe)	denied 10/23/24 (Rivera, J.)
People v Bell	4th Dept: 229 AD3d 1178 (Wayne)	denied 10/24/24 (Garcia, J.)
People v Bentley	App Div, 4th Dept, 3/25/24 (Livingston)	dismissed 10/7/24 (Halligan, J.)
People v Bolus	2d Dept: 229 AD3d 465 (Queens)	denied 10/1/24 (Halligan, J.)
People v Bonilla	3d Dept: 229 AD3d 850 (Albany)	denied 10/23/24 (Troutman, J.)
People v Bradford*	App Div, 4th Dept, 3/29/24 (Steuben)	denied reconsideration 9/18/24 (Wilson, Ch. J.)
People v Brewer	App Div, 4th Dept, 5/6/24 (Onondaga)	dismissed 10/15/24 (Wilson, Ch. J.)

* Designated pursuant to NY Constitution, article VI, § 2.

* Omitted from September 2024 list.

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People v Brown (Corey)	1st Dept: 228 AD3d 465 (NY)	denied 10/15/24 (Wilson, Ch. J.)
People v Brown (Keith)	4th Dept: 224 AD3d 1308 (Monroe)	denied 10/16/24 (Wilson, Ch. J.)
People v Burgos	1st Dept: 220 AD3d 513 (NY)	denied 10/21/24 (Troutman, J.)
People v Callara	4th Dept: 229 AD3d 1247 (Orleans)	granted 10/30/24 (Cannataro, J.)
People v Camino	App Term, 1st Dept: 83 Misc 3d 128(A) (NY)	denied 10/23/24 (Troutman, J.)
People v Campbell	4th Dept: 229 AD3d 1372 (Erie)	denied 10/30/24 (Cannataro, J.)
People v Cheatham	2d Dept: 221 AD3d 827 (Richmond)	denied reconsideration 10/23/24 (Troutman, J.)
People v Cochrane	3d Dept: 228 AD3d 1082 (Broome)	denied 10/29/24 (Cannataro, J.)
People v Cooper BB.	3d Dept: 229 AD3d 944 (Chemung)	denied 10/29/24 (Singas, J.)
People v Copeland	2d Dept: 229 AD3d 564 (Queens)	denied 10/28/24 (Rivera, J.)
People v Dover	App Term, 1st Dept: 82 Misc 3d 132(A) (NY)	denied 10/29/24 (Cannataro, J.)
People v Dublino (Mark)	App Div, 4th Dept: 2024 NY Slip Op 68538(U) (Erie)	dismissed 10/15/24 (Wilson, Ch. J.)
People v Dublino (Mark)	App Div, 4th Dept: 2024 NY Slip Op 68539(U) (Erie)	dismissed 10/15/24 (Wilson, Ch. J.)
People v Duvert	2d Dept: 229 AD3d 638 (Kings)	denied 10/23/24 (Troutman, J.)
People v Edwards	1st Dept: 227 AD3d 513 (NY)	denied 10/23/24 (Troutman, J.)
People v Elabbar*	2d Dept: 228 AD3d 957 (Queens)	denied 9/18/24 (Wilson, Ch. J.)
People v Escobar	County Court, 5/24/24 (Genesee)	denied 10/1/24 (Halligan, J.)
People v Fields	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 84 Misc 3d 19 (Queens)	denied 10/24/24 (Singas, J.)
People v Forney	App Div, 3d Dept: 2024 NY Slip Op 72774(U) (Schuyler)	dismissed 10/25/24 (Halligan, J.)
People v Franklin	App Div, 4th Dept, 8/9/24 (Oneida)	dismissed 10/31/24 (Singas, J.)
People v Galindo	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 78 Misc 3d 134(A) (Queens)	granted 10/21/24 (Wilson, Ch. J.)

* Omitted from September 2024 list.

People v Gertz	App Div, 3d Dept: 2024 NY Slip Op 72468(U) (Ulster)	dismissed 10/23/24 (Halligan, J.)
People v Gilliam	2d Dept: 229 AD3d 565 (Queens)	denied 10/30/24 (Rivera, J.)
People v Govan	1st Dept: 226 AD3d 522 (NY)	denied 10/29/24 (Cannataro, J.)
People v Griffin	App Div, 2d Dept: 2024 NY Slip Op 70281(U) (Orange)	dismissed 10/22/24 (Troutman, J.)
People v Gurney	County Court, 6/25/24 (Monroe)	denied 10/31/24 (Singas, J.)
People v Hall	App Div, 1st Dept: 2024 NY Slip Op 70797(U) (NY)	dismissed 10/22/24 (Troutman, J.)
People v Hancock	4th Dept: 229 AD3d 1229 (Monroe)	denied 10/29/24 (Singas, J.)
People v Harper*	4th Dept: 229 AD3d 1146 (Monroe)	denied 9/18/24 (Wilson, Ch. J.)
People v Hatch	3d Dept: 230 AD3d 908 (Madison)	denied 10/30/24 (Singas, J.)
People v Herrera-Cruz	4th Dept: 229 AD3d 1369 (Onondaga)	denied 10/17/24 (Wilson, Ch. J.)
People v Hinton (Robert)	4th Dept: 227 AD3d 1497 (Herkimer)	denied reconsideration 10/30/24 (Singas, J.)
People v Hinton (Robert)	4th Dept: 227 AD3d 1497 (Herkimer)	denied reconsideration 10/30/24 (Singas, J.) (Appeal No. 1)
People v Hinton (Robert)	4th Dept: 227 AD3d 1498 (Herkimer)	denied reconsideration 10/30/24 (Singas, J.) (Appeal No. 2)
People v Hudson (Sejour)	4th Dept: 229 AD3d 1354 (Erie)	denied 10/29/24 (Cannataro, J.) (Appeal No. 1)
People v Hudson (Sejour)	4th Dept: 229 AD3d 1355 (Erie)	denied 10/29/24 (Cannataro, J.) (Appeal No. 2)
People v Jimenez	2d Dept: 229 AD3d 568 (Westchester)	denied 10/8/24 (Garcia, J.)
People v Johnson	4th Dept: 229 AD3d 1300 (Onondaga)	denied 10/29/24 (Cannataro, J.)
People v Joseph	2d Dept: 229 AD3d 641 (Kings)	denied 10/23/24 (Troutman, J.)
People v Khan	2d Dept: 229 AD3d 468 (Queens)	denied 10/23/24 (Troutman, J.)

* Omitted from September 2024 list.

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People v Man Man	3d Dept: 228 AD3d 1134 (Albany)	denied 10/23/24 (Troutman, J.)
People v Matthews (Tramel)	3d Dept: 228 AD3d 1129 (Clinton)	denied 10/23/24 (Troutman, J.)
People v Matthews (Wilfred)	1st Dept: 228 AD3d 521 (NY)	denied 10/29/24 (Cannataro, J.)
People v McClain	4th Dept: 228 AD3d 1241 (Onondaga)	denied 10/1/24 (Halligan, J.)
People v McNealy	3d Dept: 230 AD3d 917 (Broome)	denied 10/31/24 (Singas, J.)
People v Miller	2d Dept: 229 AD3d 724 (Nassau)	denied 10/23/24 (Rivera, J.)
People v Mitchell	3d Dept: 228 AD3d 997 (Otsego)	denied 10/23/24 (Troutman, J.)
People v Morocco*	2d Dept: 228 AD3d 957 (Queens)	denied 9/18/24 (Wilson, Ch. J.)
People v Mulligan	4th Dept: 229 AD3d 1247 (Monroe)	denied 10/1/24 (Halligan, J.)
People v Munoz-Zuleta	2d Dept: 229 AD3d 641 (Rockland)	denied 10/22/24 (Troutman, J.)
People v Nasyrova	2d Dept: 230 AD3d 1161 (Queens)	denied 10/29/24 (Garcia, J.)
People v Nathan	App Div, 2d Dept: 2024 NY Slip Op 71434(U) (Nassau)	dismissed 10/29/24 (Cannataro, J.)
People v Ney	4th Dept: 229 AD3d 1251 (Wyoming)	denied 10/30/24 (Singas, J.)
People v Orta	2d Dept: 230 AD3d 516 (Kings)	denied 10/31/24 (Singas, J.)
People v Patterson	3d Dept: 227 AD3d 1231 (Saratoga)	denied 10/30/24 (Rivera, J.)
People v Penfold	4th Dept: 229 AD3d 1299 (Wyoming)	denied 10/29/24 (Cannataro, J.)
People v Perkins	4th Dept: 229 AD3d 1223 (Ontario)	denied 10/30/24 (Singas, J.)
People v Pierre	4th Dept: 221 AD3d 1570 (Wyoming)	denied 10/1/24 (Halligan, J.)
People v Pitt	2d Dept: 227 AD3d 1112 (Queens)	denied 10/15/24 (Wilson, Ch. J.)
People v Renner	App Term, 2d Dept, 9th & 10th Jud Dists: 2024 NY Slip Op 69871(U) (Orange)	dismissed 10/8/24 (Garcia, J.)
People v Rivera	2d Dept: 226 AD3d 929 (Suffolk)	denied 10/30/24 (Cannataro, J.)
People v Robinson	4th Dept: 225 AD3d 1266 (Livingston)	denied 10/1/24 (Halligan, J.)
People v Rodgers	2d Dept: 228 AD3d 961 (Nassau)	denied 10/22/24 (Troutman, J.)

* Omitted from September 2024 list.

People v Sanchez	App Div, 1st Dept: 2024 NY Slip Op 71226(U) (NY)	dismissed 10/22/24 (Garcia, J.)
People v Seymour	App Term, 2d Dept, 9th & 10th Jud Dists: 84 Misc 3d 23 (Suffolk)	denied 10/23/24 (Troutman, J.)
People v Shaw	3d Dept: 228 AD3d 1129 (Clinton)	denied 10/23/24 (Troutman, J.)
People v Soto	1st Dept: 224 AD3d 612 (NY)	denied 10/18/24 (Garcia, J.)
People v Tawfiles	App Term, 1st Dept: 83 Misc 3d 127(A) (NY)	denied 10/22/24 (Troutman, J.)
People v Taylor (James)	App Div, 4th Dept, 8/20/24 (Niagara)	dismissed 10/23/24 (Rivera, J.)
People v Taylor (Lasmire)	3d Dept: 228 AD3d 1144 (Albany)	denied 10/28/24 (Rivera, J.)
People v Toran	4th Dept: 229 AD3d 1228 (Onondaga)	denied 10/8/24 (Garcia, J.)
People v Torres	2d Dept: 229 AD3d 469 (Orange)	denied 10/22/24 (Troutman, J.)
People v Trzuskot	App Div, 1st Dept: 2023 NY Slip Op 68798(U) (NY)	dismissed 10/29/24 (Cannataro, J.)
People v Ward	3d Dept: 228 AD3d 1134 (Albany)	denied 10/23/24 (Troutman, J.)
People v Wendy B.-S.	4th Dept: 229 AD3d 1317 (Erie)	denied 10/31/24 (Singas, J.)
People v White	2d Dept: 228 AD3d 889 (Queens)	denied 10/24/24 (Garcia, J.)
People v Williams (Edward)	1st Dept: 227 AD3d 480 (Bronx)	denied ¹ 10/22/24 (Troutman, J.)
People v Williams (Edwin)	1st Dept: 227 AD3d 480 (Bronx)	denied ² 10/22/24 (Troutman, J.)
People v Wimberly	3d Dept: 228 AD3d 1177 (Albany)	denied 10/23/24 (Troutman, J.)
People v Word	App Div, 1st Dept: 2024 NY Slip Op 67402(U) (NY)	denied reconsideration 10/22/24 (Troutman, J.)
People v Wynn	App Div, 1st Dept: 2024 NY Slip Op 66525(U) (NY)	dismissed 10/23/24 (Rivera, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Omar Johnson* (225 AD3d 453 [1st Dept 2024], *lv granted* 42 NY3d 939 [2024]).

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Omar Johnson* (225 AD3d 453 [1st Dept 2024], *lv granted* 42 NY3d 939 [2024]).

DAVID AMENEYRO, Respondent, v PERLA XOCHITL HERNANDEZ, Appellant.

Submitted July 22, 2024; decided November 21, 2024

Reported below, 228 AD3d 803, 2024 NY Slip Op 03396; 228 AD3d 803, 2024 NY Slip Op 03397.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

AMERISOURCEBERGEN DRUG CORPORATION et al., Respondents-Appellants, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Appellants-Respondents.

Decided November 21, 2024

Reported below, 227 AD3d 1286.

Appeal and cross-appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANONYMOUS, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided November 21, 2024

Appeal dismissed without costs, by the Court sua sponte, upon the ground that no substantial constitutional question is directly involved.

BANK OF AMERICA, N.A., etc., Respondent, v FEDIE R. REDD, Appellant.

Submitted August 5, 2024; decided November 21, 2024

Reported below, 2024 NY Slip Op 68794(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

BANK OF NEW YORK MELLON, etc., Appellant, v DANIEL SANTOS,
Respondent.

Decided November 21, 2024

Reported below, 2024 NY Slip Op 71065(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

EZRASONS, INC., as a Shareholder of and Derivatively on Behalf
of BARCLAYS PLC, Appellant, v SIR NIGEL RUDD et al.,
Respondents, et al., Defendant.

Submitted November 12, 2024; decided November 21, 2024

Reported below, 217 AD3d 406.

Motion by Securities Industry and Financial Markets Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

EZRASONS, INC., as a Shareholder of and Derivatively on Behalf
of BARCLAYS PLC, Appellant, v SIR NIGEL RUDD et al.,
Respondents, et al., Defendant.

Submitted November 18, 2024; decided November 21, 2024

Reported below, 217 AD3d 406.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellants, and HINA NAVEED et al., Intervenors-Appellants.

Submitted November 12, 2024; decided November 21, 2024

Reported below, 225 AD3d 98.

Motion by New York Immigration Coalition et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

GRAND SOUTH POINT, LLC, Doing Business as THE GRAND REHABILITATION AND NURSING AT SOUTH POINT, et al., Appellants, v MARY T. BASSETT, as Commissioner of Health, et al., Respondents.

Decided November 21, 2024

Reported below, 230 AD3d 49.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

REBECCA R. HAUSSMANN, as Trustee of the KONSTANTIN S. HAUSSMANN TRUST, et al., Appellants, v WERNER BAUMANN et al., Respondents, et al., Defendants.

Submitted November 12, 2024; decided November 21, 2024

Reported below, 217 AD3d 569.

Motion by Securities Industry and Financial Markets Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

REBECCA R. HAUSSMANN, as Trustee of the KONSTANTIN S. HAUSSMANN TRUST, et al., Appellants, v WERNER BAUMANN et al., Respondents, et al., Defendants.

Submitted November 18, 2024; decided November 21, 2024

Reported below, 217 AD3d 569.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of JOHNSON & JOHNSON et al., Respondents, v
NORTHWELL HEALTH INC., Appellant.

In the Matter of JACQUELINE MOLINE, Appellant, v JOHNSON &
JOHNSON et al., Respondents.

Submitted October 28, 2024; decided November 21, 2024

Reported below, 231 AD3d 481.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

BRIAN J. KEGELMAN et al., Appellants, v TOWN OF OTSEGO, Respondent.

Decided November 21, 2024

Reported below, 229 AD3d 998.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

ABDELNASSER NOFAL, etc., Appellant, v MOHDJAMIL YOUSEF, etc., et al., Respondents.

Decided November 21, 2024

Reported below, 228 AD3d 772.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CADARELL D. CLARK, Appellant.

Submitted October 21, 2024; decided November 21, 2024

Reported below, 230 AD3d 153.

Motion for assignment of counsel granted and Mary M. Whiteside, Esq., 11045 Camarillo Street, Unit 110, West Toluca Lake, CA 91602 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS GALINDO, Appellant.

Submitted November 18, 2024; decided November 21, 2024

Reported below, 78 Misc 3d 134(A), 2023 NY Slip Op 50455(U).

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

JEAN-PASCAL SIMON, Appellant, v FRANCINVEST, S.A., et al., Defendants, and FRENCH AMERICAN SURGERY CENTER, INC., et al., Respondents.

Decided November 21, 2024

Reported below, 226 AD3d 576.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

ALI TUCKETT, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 129488.)

Submitted November 18, 2024; decided November 21, 2024

Reported below, 222 AD3d 1348.

Motion by The Innocence Network for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JACKIE WEISBROD-MOORE, Appellant, v CAYUGA COUNTY, Respondent, et al., Defendants.

Submitted November 12, 2024; decided November 21, 2024

Reported below, 216 AD3d 1459.

Motion by City of New York for leave to file a brief amicus curiae and to participate in oral argument on the appeal herein granted. The proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JACKIE WEISBROD-MOORE, Appellant, v CAYUGA COUNTY, Respondent, et al., Defendants.

Submitted November 18, 2024; decided November 21, 2024

Reported below, 216 AD3d 1459.

Motion by County of Westchester for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JACKIE WEISBROD-MOORE, Appellant, v CAYUGA COUNTY, Respondent, et al., Defendants.

Submitted November 18, 2024; decided November 21, 2024

Reported below, 216 AD3d 1459.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of JOHN A. WILLIAMS III, Appellant, v BRITTANY PANZARINO, Respondent. (And Another Proceeding.)

Submitted June 3, 2024; decided November 21, 2024

Reported below, 226 AD3d 916; 226 AD3d 919.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed the November 2022 Family Court order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CHI BARTRAM WRIGHT, Respondent, v STATE OF NEW YORK, Appellant.

Submitted November 4, 2024; decided November 21, 2024

Reported below, 221 AD3d 132.

Motion by CHILD USA for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ALHASSAN ABDULFATTAH, Appellant, v RIVERBAY CORPORATION
et al., Respondents, et al., Defendant.

Submitted June 17, 2024; decided November 25, 2024

Reported below, 2024 NY Slip Op 66648(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CERTAIN UNDERWRITERS AT LLOYDS LONDON Who Subscribe to
Certificate Nos. 18131021, 18131998, 18132351, 18132356,
Respondent, v DENNY MARTIN, MD, et al., Appellants.

Submitted June 17, 2024; decided November 25, 2024

Reported below, 226 AD3d 559.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the June 2023 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of DIANA FIGUEROA, Respondent, v LUIS R.
FIGUEROA, Appellant.

Submitted July 8, 2024; decided November 25, 2024

Reported below, 214 AD3d 868.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* 41 NY3d 901 [2024]; *see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]). Motion for poor person relief dismissed as academic.

In the Matter of NOE M. MORALES MEJIA, Respondent, v NEW
YORK CITY TRANSIT AUTHORITY et al., Appellants, and CITY
OF NEW YORK et al., Respondents.

Submitted July 1, 2024; decided November 25, 2024

Reported below, 224 AD3d 546; 2024 NY Slip Op 67618(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to this Court, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION. JAMES McWILLIAMS, Respondent, v A.O. SMITH WATER PRODUCTS Co. et al., Defendants, and JENKINS BROS., Appellant.

Submitted June 17, 2024; decided November 25, 2024

Reported below, 224 AD3d 597.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth., lv dismissed* 14 NY3d 748 [2010]).

In the Matter of ALLAN O. PELCAK, JR., Appellant, v LAURA J. MATOUSEK, Respondent.

Submitted July 15, 2024; decided November 25, 2024

Reported below, 228 AD3d 665.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that the Court lacks jurisdiction to entertain it (*see* NY Const, art VI, § 3).

FELIPE A. RUISECH et al., Appellants, v STRUCTURE TONE INC., Initially Sued Herein as STRUCTURE TONE GLOBAL SERVICES, INC., et al., Respondents. (And Third-Party Actions.)

Submitted April 15, 2024; decided November 25, 2024

Reported below, 208 AD3d 412.

Motion by Structure Tone Inc., etc. and cross-motion by Tishman Speyer Properties, L.P. and 200 Park, L.P. insofar as sought to dismiss the appeal as against Structure Tone Inc., etc. as untimely granted; motion and cross-motion otherwise denied.

In the Matter of the FORECLOSURE OF TAX LIENS BY COUNTY OF ALBANY. COUNTY OF ALBANY, Respondent; PHOENIX OF ALBANY, Appellant.

Submitted July 15, 2024; decided November 26, 2024

Reported below, 224 AD3d 1194.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MARC DESIR, Appellant, v ROBERT F. QUINLAN, a Justice of the Supreme Court, Suffolk County, Respondent.

Submitted September 9, 2024; decided November 26, 2024

Reported below, 229 AD3d 547.

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

Judge HALLIGAN took no part.

ANNETTE GAFFNEY, Appellant, v NEW YORK CITY TRANSIT AUTHORITY et al., Respondents, et al., Defendant.

Submitted September 16, 2024; decided November 26, 2024

Reported below, 210 AD3d 426.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 41 NY3d 1011 (2024)].

In the Matter of DANIEL KARLIN, Appellant, v TINA M. STANFORD, as Chair of the Board of Parole, Respondent.

Submitted September 16, 2024; decided November 26, 2024

Reported below, 209 AD3d 1189.

Motion for reargument denied [*see* 42 NY3d 1015 (2024)].

Judge HALLIGAN took no part.

TINA LATTIMORE, Plaintiff, and KEVIN MARTIN, Appellant, v
JAMES MONTGOMERY et al., Respondents.

Submitted October 21, 2024; decided November 26, 2024

Reported below, 2024 NY Slip Op 73541(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

JAZMON MORRISON, Respondent, v SOUTH UNION RD HC, LLC,
et al., Appellants.

Submitted July 8, 2024; decided November 26, 2024

Reported below, 225 AD3d 1209.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JIMMY
BARNES, Appellant.

Submitted July 29, 2024; decided November 26, 2024

Reported below, 220 AD3d 955.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Matter of Haverstraw Park v Runcible Props. Corp.*, 33 NY2d 637, 637 [1973]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCHELL
HERNANDEZ, Appellant.

Submitted November 25, 2024; decided November 26, 2024

Reported below, 213 AD3d 425.

Motion by Letitia James, Attorney General of the State of New York, for an order pursuant to Executive Law § 71, permitting movant to file a brief and to participate in oral argument of the appeal, granted.

Judge HALLIGAN took no part.

In the Matter of the Claim of STEVE PERSAUD, Appellant, v ASH & PETERKIN CENTRAL LOCK COMPANY, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted August 19, 2024; decided November 26, 2024

Reported below, 227 AD3d 1336.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

GHEORGHE PETRE, Appellant, v JOSEPH LUCIA, et al., Respondents.

Submitted July 29, 2024; decided November 26, 2024

Reported below, 228 AD3d 591.

Motion, insofar as it seeks leave to appeal from the 2021 and 2023 Supreme Court orders, dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]); motion for leave to appeal otherwise dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

MAKTUMMA TESHABAEVA et al., Respondents, v FAMILY HOME CARE SERVICES OF BROOKLYN & QUEENS, INC., et al., Appellants.

Submitted July 8, 2024; decided November 26, 2024

Reported below, 227 AD3d 487.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of TOWN OF COPAKE et al., Appellants, et al.,
 Petitioners, v NEW YORK STATE OFFICE OF RENEWABLE EN-
 ERGY SITING et al., Respondents, and ALLIANCE FOR CLEAN
 ENERGY NEW YORK, INC., Intervenor-Respondent.

Submitted August 12, 2024; decided November 26, 2024

Reported below, 216 AD3d 93; 2023 NY Slip Op 74039(U).

Motion for reconsideration of this Court's May 16, 2024 dis-
 missal order dismissed as untimely (*see* Rules of Ct of Appeals
 [22 NYCRR] § 500.24 [b]) [*see* 41 NY3d 990 (2024)].

U.S. BANK NATIONAL ASSOCIATION, Respondent, v MARC DESIR,
 Appellant.

Submitted September 9, 2024; decided November 26, 2024

Reported below, 2024 NY Slip Op 70554(U).

Motion for leave to appeal dismissed upon the ground that
 the order sought to be appealed from does not finally determine
 the action within the meaning of the Constitution. Motion for
 ancillary relief dismissed upon the ground that this Court does
 not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

Judge HALLIGAN took no part.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2024 through November 30, 2024)

People v Akassy	App Div, 1st Dept: 2024 NY Slip Op 65190(U) (NY)	denied reconsideration 11/6/24 (Singas, J.)
People v Alsina	1st Dept: 231 AD3d 450 (NY)	denied 11/27/24 (Rivera, J.)
People v Anderson	2d Dept: 223 AD3d 912 (Suffolk)	denied 11/27/24 (Cannataro, J.)
People v Bailey	4th Dept: 230 AD3d 1543 (Erie)	denied 11/27/24 (Rivera, J.)
People v Barlow	1st Dept: 231 AD3d 493 (NY)	denied 11/26/24 (Garcia, J.)
People v Batista	1st Dept: 230 AD3d 1038 (NY)	denied 11/27/24 (Rivera, J.)

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People v Bermudez	4th Dept: 224 AD3d 1383 (Erie)	denied 11/8/24 (Halligan, J.)
People v Bradley	4th Dept: 227 AD3d 1420 (Cayuga)	denied 11/4/24 (Halligan, J.)
People v Brown (Donald)	App Term, 2d Dept, 9th & 10th Jud Dists: 83 Misc 3d 130(A) (Westchester)	denied 11/26/24 (Halligan, J.)
People v Brown (Laura)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 134(A) (Queens)	denied 11/26/24 (Wilson, Ch. J.)
People v Butler	2d Dept: 230 AD3d 1334 (Queens)	denied 11/22/24 (Garcia, J.)
People v Cantie	2d Dept: 229 AD3d 465 (Kings)	denied 11/25/24 (Troutman, J.)
People v Cerone	4th Dept: 229 AD3d 1375 (Livingston)	denied 11/26/24 (Wilson, Ch. J.)
People v Chamol	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 11/27/24 (Rivera, J.)
People v Conry	2d Dept: 230 AD3d 596 (Kings)	denied 11/26/24 (Wilson, Ch. J.)
People v Darling	3d Dept: 229 AD3d 907 (Albany)	denied 11/26/24 (Wilson, Ch. J.)
People v Davis	1st Dept: 228 AD3d 585 (NY)	denied 11/7/24 (Halligan, J.)
People v Deas	2d Dept: 228 AD3d 954 (Kings)	denied 11/26/24 (Halligan, J.)
People v Demilio	2d Dept: 227 AD3d 1098 (Dutchess)	denied 11/26/24 (Wilson, Ch. J.)
People v Dunn	4th Dept: 229 AD3d 1227 (Onondaga)	denied 11/26/24 (Wilson, Ch. J.) (Appeal No. 1)
People v Edwards	2d Dept: 230 AD3d 1250 (Kings)	denied 11/6/24 (Singas, J.)
People v Fleck	App Div, 2d Dept: 2024 NY Slip Op 74412(U) (Nassau)	dismissed 11/26/24 (Halligan, J.)
People v Foltin	4th Dept: 231 AD3d 1517 (Onondaga)	denied 11/27/24 (Rivera, J.)
People v Goines	4th Dept: 229 AD3d 1248 (Niagara)	denied 11/26/24 (Wilson, Ch. J.)
People v Grafton	2d Dept: 230 AD3d 1335 (Nassau)	denied 11/25/24 (Garcia, J.)
People v Gray	1st Dept: 230 AD3d 1039 (Bronx)	denied 11/27/24 (Rivera, J.)
People v Gress	County Ct, 6/13/24 (Ontario)	denied reconsideration 11/27/24 (Cannataro, J.)
People v Harris (Albert)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 81 Misc 3d 127(A) (Queens)	denied 11/27/24 (Rivera, J.)
People v Harris (Eric)	2d Dept: 230 AD3d 1336 (Richmond)	denied 11/26/24 (Wilson, Ch. J.)

People v Haynesworth	2d Dept: 227 AD3d 828 (Kings)	denied 11/26/24 (Wilson, Ch. J.)
People v Herbert	3d Dept: 230 AD3d 1433 (Schenectady)	denied 11/26/24 (Wilson, Ch. J.)
People v Hudson	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 11/26/24 (Wilson, Ch. J.)
People v Johnson	1st Dept: 230 AD3d 1071 (Bronx)	denied 11/13/24 (Singas, J.)
People v Krista M.G.	4th Dept: 228 AD3d 1300 (Jefferson)	denied 11/26/24 (Wilson, Ch. J.)
People v Lafferty	4th Dept: 227 AD3d 1480 (Wayne)	denied reconsideration 11/25/24 (Singas, J.)
People v Lewis	4th Dept: 228 AD3d 1247 (Jefferson)	denied 11/4/24 (Halligan, J.)
People v Lynch	4th Dept: 225 AD3d 1243 (Herkimer)	denied reconsideration 11/27/24 (Cannataro, J.)
People v Macaluso	2d Dept: 230 AD3d 1158 (Dutchess)	denied 11/4/24 (Garcia, J.)
People v Martinez	1st Dept: 231 AD3d 410 (Bronx)	denied 11/25/24 (Singas, J.)
People v McDaniels	1st Dept: 231 AD3d 495 (Bronx)	denied 11/26/24 (Wilson, Ch. J.)
People v McPhaul	1st Dept: 230 AD3d 1040 (NY)	denied 11/22/24 (Garcia, J.)
People v Milord	4th Dept: 230 AD3d 1567 (Monroe)	denied 11/27/24 (Rivera, J.)
People v Murray	4th Dept: 229 AD3d 1123 (Monroe)	denied 11/4/24 (Halligan, J.)
People v Norman	1st Dept: 230 AD3d 1075 (NY)	denied 11/27/24 (Rivera, J.)
People v Ortiz	2d Dept: 230 AD3d 1163 (Kings)	denied 11/19/24 (Garcia, J.)
People v Pressley	2d Dept: 229 AD3d 468 (Richmond)	denied 11/26/24 (Wilson, Ch. J.)
People v Putnam (Jacob)	4th Dept: 229 AD3d 1274 (Erie)	denied 11/26/24 (Halligan, J.) (Appeal No. 1)
People v Putnam (Jacob)	4th Dept: 229 AD3d 1274 (Erie)	denied 11/26/24 (Halligan, J.) (Appeal No. 2)
People v Rainey	4th Dept: 229 AD3d 1129 (Jefferson)	denied 11/4/24 (Halligan, J.)
People v Renderos-Flores	App Term, 2d Dept, 9th & 10th Jud Dists: 83 Misc 3d 133(A) (Nassau)	denied 11/27/24 (Rivera, J.)
People v Robinson	2d Dept: 230 AD3d 1340 (Queens)	denied 11/27/24 (Rivera, J.)
People v Rodriguez-Osorio	County Ct, 9/12/24 (Monroe)	denied 11/26/24 (Halligan, J.)

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People v Rodriguez-Rivera	4th Dept: 203 AD3d 1624 (Erie)	denied 11/26/24 (Wilson, Ch. J.)
People v Rondon-Rondon	App Term, 1st Dept: 83 Misc 3d 126(A) (Bronx)	denied 11/27/24 (Rivera, J.)
People v Santiago	App Term, 1st Dept: 83 Misc 3d 137(A) (NY)	denied 11/27/24 (Rivera, J.)
People v Savage	4th Dept: 231 AD3d 1495 (Erie)	denied 11/27/24 (Rivera, J.)
People v Scavone	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 134(A) (Richmond)	denied 11/25/24 (Singas, J.)
People v Scottmanson	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 11/25/24 (Garcia, J.)
People v Sease	2d Dept: 229 AD3d 810 (Queens)	denied 11/20/24 (Garcia, J.)
People v Shaheed	3d Dept: 230 AD3d 1433 (Schenectady)	denied 11/26/24 (Wilson, Ch. J.)
People v Singh	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 132(A) (Queens)	denied 11/25/24 (Singas, J.)
People v Smith (Bruce)	4th Dept: 229 AD3d 1110 (Monroe)	denied 11/26/24 (Wilson, Ch. J.)
People v Smith (Patrick)	App Div, 2d Dept: 2024 NY Slip Op 73978(U) (Westchester)	dismissed 11/26/24 (Wilson, Ch. J.)
People v Spencer*	4th Dept: 225 AD3d 1200 (Monroe)	denied 5/28/24 (Wilson, Ch. J.)
People v Staton	App Div, 2d Dept: 2023 NY Slip Op 77548(U) (Queens)	dismissed 11/27/24 (Cannataro, J.)
People v Stukes	1st Dept: 228 AD3d 536 (Bronx)	denied 11/20/24 (Rivera, J.)
People v Svendsen	1st Dept: 231 AD3d 451 (Bronx)	denied 11/27/24 (Cannataro, J.)
People v Swizzle	4th Dept: 224 AD3d 1383 (Erie)	denied 11/8/24 (Halligan, J.)
People v Thomas	1st Dept: 225 AD3d 503 (NY)	denied 11/13/24 (Rivera, J.)
People v Tillmon	4th Dept: 228 AD3d 1343 (Cayuga)	denied 11/4/24 (Halligan, J.)
People v Vaquero	2d Dept: 230 AD3d 1165 (Westchester)	denied 11/26/24 (Garcia, J.)
People v Vasquez	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 11/25/24 (Garcia, J.)
People v Wagoner	4th Dept: 230 AD3d 1593 (Cattaraugus)	dismissed 11/26/24 (Cannataro, J.)
People v White (Iona)	4th Dept: 230 AD3d 1533 (Jefferson)	denied 11/26/24 (Halligan, J.) (Appeal No. 1)

* Omitted from the May 2024 list.

People v White (Iona) 4th Dept: 230 AD3d 1539 (Jefferson) denied 11/26/24
(Halligan, J.)
(Appeal No. 2)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(November 1, 2024 through November 30, 2024)

People v Zubidi 1st Dept: 233 AD3d 55 (NY) granted 11/12/24
(Rodriguez III, J.)

In the Matter of FEIFEI GU, Appellant, v LETITIA JAMES et al.,
Respondents.

Submitted October 7, 2024; decided December 12, 2024

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for a stay dismissed as academic.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellant, and HINA NAVEED et al., Intervenors-Appellants.

Submitted November 25, 2024; decided December 12, 2024

Reported below, 225 AD3d 98.

Motion by Richard Briffault et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellant, and HINA NAVEED et al., Intervenors-Appellants.

Submitted November 25, 2024; decided December 12, 2024

Reported below, 225 AD3d 98.

* Includes only applications that were granted.

Motion by Common Cause New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellant, and HINA NAVEED et al., Intervenors-Appellants.

Submitted November 25, 2024; decided December 12, 2024

Reported below, 225 AD3d 98.

Motion by Ron Hayduk for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellant, and HINA NAVEED et al., Intervenors-Appellants.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 225 AD3d 98.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

VITO J. FOSSELLA et al., Respondents, v ERIC ADAMS, in His Official Capacity as Mayor of the City of New York, et al., Defendants, CITY COUNCIL OF THE CITY OF NEW YORK, Appellant, and HINA NAVEED et al., Intervenors-Appellants.

Submitted November 25, 2024; decided December 12, 2024

Reported below, 225 AD3d 98.

Motion by Dēmos for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of IOANNIS KANTARAKIAS, Appellant, v HYUN CHIN KIM, Respondent.

Decided December 12, 2024

Reported below, 226 AD3d 1020.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents, and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW YORK, INC., Intervenor-Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 220 AD3d 487.

Motion by The Innocence Project, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v NEW YORK CITY POLICE DEPARTMENT et al., Respondents, and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW YORK, INC., Intervenor-Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 220 AD3d 487.

Motion by NAACP Legal Defense and Educational Fund, Inc. for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v
NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW
YORK, INC., Intervenor-Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 220 AD3d 487.

Motion by Common Cause New York et al. for leave to file a brief amici curiae on the appeal herein denied (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [“Amicus curiae relief will be denied where acceptance of the amicus curiae submission may cause the recusal or disqualification of one or more Judges of the Court”]).

Judge HALLIGAN took no part.

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v
NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW
YORK, INC., Intervenor-Appellant.

Submitted December 9, 2024; decided December 12, 2024

Reported below, 220 AD3d 487.

Motion by Reporters Committee for Freedom of the Press et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES
EVERSON, Appellant.

Submitted December 9, 2024; decided December 12, 2024

Reported below, 229 AD3d 1349.

Motion for assignment of counsel granted and Bradley E. Keem, Esq., c/o Keem Appeals, PLLC, 333 East Onondaga Street, Suite 311, Syracuse, NY 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HENRY
FUENTES, Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 81 Misc 3d 136(A), 2023 NY Slip Op 51399(U).

Motion by Scott Lockwood for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HENRY
FUENTES, Appellant.

Submitted December 9, 2024; decided December 12, 2024

Reported below, 81 Misc 3d 136(A), 2023 NY Slip Op 51399(U).

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HENRY
FUENTES, Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 81 Misc 3d 136(A), 2023 NY Slip Op 51399(U).

Motion by The Legal Aid Society for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCH-
ELL HERNANDEZ, Appellant.

Submitted December 2, 2024; decided December 12, 2024

Reported below, 213 AD3d 425.

Motion by District Attorneys Association of the State of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge HALLIGAN took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v Mc-KENZIE WILLIS, Appellant.

Submitted December 9, 2024; decided December 12, 2024

Reported below, 79 Misc 3d 127(A), 2023 NY Slip Op 50631(U).

Motion by Center on Race, Inequality, and the Law for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AMADO ZUBIDI, Appellant.

Submitted December 9, 2024; decided December 12, 2024

Reported below, 233 AD3d 55.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

GINA ROBINSON, Appellant, v FASHION DISTRICT DENTAL et al., Respondents.

Decided December 12, 2024

Reported below, 2024 NY Slip Op 75231(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of ROBERT SHERR, Appellant, v DAVID F. EVERETT,
a Justice of the Supreme Court, Westchester County, Re-
spondent.

Decided December 12, 2024

Reported below, 228 AD3d 872.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

ARI TEMAN, Appellant, v ERIC BRAVERMAN, M.D, et al., Respon-
dents, et al., Defendants.

Decided December 12, 2024

Reported below, 2023 NY Slip Op 76159(U); 2024 NY Slip Op 60324(U); 41 NY3d 1012.

Appeal, insofar as taken from the November 2023 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from an Appellate Division order dismissing an appeal from an order entered upon default (*see* CPLR 5511); appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of MICHAEL CAZZARI, Appellant, v THOMAS P. DI-
NAPOLI, as State Comptroller, Respondent.

Submitted August 5, 2024; decided December 17, 2024

Reported below, 224 AD3d 1075.

Motion for leave to appeal dismissed for failure to demon-
strate timeliness as required by the Rules of the Court of Ap-
peals (*see* 22 NYCRR 500.22 [b] [2]).

GOVERNMENT EMPLOYEES INSURANCE COMPANY et al., Respon-
dents, v IGOR MAYZENBERG et al., Appellants, et al., De-
fendants.

Decided December 17, 2024

See 121 F4th 404.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issue presented is to be considered after briefing and argument.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

CAROL L. JONES, Individually and as Executor of the Estate of DONALD J. JONES, Deceased, et al., Appellants, v TOWN OF CARROLL et al., Respondents.

Submitted July 22, 2024; decided December 17, 2024

Reported below, 225 AD3d 1271.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT HARRIS, Appellant.

Submitted August 19, 2024; decided December 17, 2024

Reported below, 228 AD3d 1186.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

In the Matter of JEFFREY TERBORG, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted July 15, 2024; decided December 17, 2024

Reported below, 2023 NY Slip Op 75057(U).

Motion for reargument of motion for leave to appeal denied [*see* 41 NY3d 974 (2024)].

In the Matter of KRISTI L. TRUESDELL, Appellant, v NANCY L. DECKER, Respondent. (Proceeding No. 1) (And Another Related Proceeding.)

In the Matter of NANCY L. DECKER, Respondent, v KRISTI L. TRUESDELL, Appellant. (Proceeding No. 3.)

In the Matter of DONALD E. DECKER, Respondent, v KRISTI L. TRUESDELL, Appellant. (Proceeding No. 4.)

Submitted July 29, 2024; decided December 17, 2024

Reported below, 228 AD3d 1082.

Motion, insofar as it seeks leave to appeal from the portions of the Appellate Division order dismissing appellant's appeals to that Court from the April 2022 Family Court order and the July 2022 Family Court order granting her motion to relieve assigned counsel and to be heard upon submission, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE BANK OF NEW YORK MELLON, Formerly Known as THE BANK OF NEW YORK, Respondent, v ADAM PLOTCH LLC, Appellant, et al., Defendants.

Submitted September 3, 2024; decided December 19, 2024

Reported below, 226 AD3d 497.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CENTRAL MORTGAGE COMPANY, Respondent, v WAEI ABOELATIF, Appellant, et al., Defendants.

Submitted October 28, 2024; decided December 19, 2024

Reported below, 2024 NY Slip Op 61367(U).

Motion for reargument of motion for leave to appeal denied [*see* 42 NY3d 903 (2024)].

In the Matter of CHERYL D.U., Appellant, v EHGIE E.U., Respondent.

Submitted September 23, 2024; decided December 19, 2024

Reported below, 2024 NY Slip Op 72340(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

SEAN M. MCCARTHY, Appellant, v COUNTY OF NASSAU, NEW YORK et al., Respondents, et al., Defendants.

Submitted October 7, 2024; decided December 19, 2024

Reported below, 230 AD3d 485.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARCELO MELCHIORRE, Respondent.

Submitted September 23, 2024; decided December 19, 2024

Reported below, 83 Misc 3d 132(A), 2024 NY Slip Op 51169(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

GRETCHEN REVERE et al., Appellants, v ROBERT BURKE, D.O., et al., Defendants, and STELLA M. CASTRO, M.D., et al., Respondents.

Submitted September 3, 2024; decided December 19, 2024

Reported below, 229 AD3d 1212.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth., lv dismissed* 14 NY3d 748 [2010]).

DIANE ZELENKA, Respondent, v ADAM B. HERTZ, Appellant.

Submitted September 23, 2024; decided December 19, 2024

Reported below, 230 AD3d 539.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[249 NE3d 30, 224 NYS3d 4]

In the Matter of JULIE M. KUCK, a Justice of the Lindley Town Court, Steuben County.

Decided November 21, 2024

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, of whether the suspension of the Honorable Julie M. Kuck, from the office of Justice of the Lindley Town Court, Steuben County, imposed by order of the Court of Appeals dated and effective July 11, 2024 (42 NY3d 985 [2024]), should be terminated.

HEADNOTE

Judges — Suspension from Office — Termination of Suspension

The Court of Appeals, on its own motion, terminated the suspension of a Town Court Justice from office.

APPEARANCES OF COUNSEL

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On the Court's own motion, it is determined that the suspension of the Honorable Julie M. Kuck, from the office of Justice of the Lindley Town Court, Steuben County, imposed by order of this Court dated and effective July 11, 2024 (42 NY3d 985 [2024]), is hereby terminated.

Concur: Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN. Judge RIVERA took no part.

[249 NE3d 1203, 225 NYS3d 183]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRANDON WILLIAMS, Appellant.

Argued October 16, 2024; decided November 21, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 6, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Michael Aloise, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the second degree.

People v Williams, 204 AD3d 704, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Admission of Codefendant's Statement

Assuming, without deciding, that the introduction of codefendant's statement was a *Bruton* error (see *Bruton v United States*, 391 US 123 [1968]), any such error was harmless. The evidence of defendant's guilt, specifically the incriminating testimony of two acquaintances who were eyewitnesses to the crime, was overwhelming and there was no reasonable possibility that the admission of codefendant's statement affected the verdict.

APPEARANCES OF COUNSEL

Twyla Carter, *The Legal Aid Society*, New York City (*Steven R. Berko* of counsel), and *Latham & Watkins LLP*, New York City (*Jonathan Lippman*, *Richard D. Owens*, *Sara Gail Prudenti*, *Caroline C. Marshall*, *Alon Handler*, *Juan M. Palacio Moreno* and *Lydia Franzek* of counsel), for appellant.

Melinda Katz, *District Attorney*, Kew Gardens (*Christopher J. Blira-Koessler* and *John M. Castellano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Assuming, without deciding, that the introduction of codefendant's statement was a *Bruton* error (see *Bruton v United States*, 391 US 123 [1968]), any such error was harmless. The evidence of defendant's guilt, specifically the incriminating testimony of two acquaintances who were eyewitnesses to the

crime, was overwhelming and there is no reasonable possibility that the admission of codefendant's statement affected the verdict (*see People v Ceden*, 27 NY3d 110, 121-122 [2016]; *People v Hardy*, 4 NY3d 192, 198 [2005]; *People v Crimmins*, 36 NY2d 230, 241 [1975]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, in a memorandum.

[249 NE3d 1204, 225 NYS3d 184]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE PETERS, Appellant.

Argued October 15, 2024; decided November 25, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 27, 2021. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate, on the ground of ineffective assistance of appellate counsel, an order of that Court entered August 8, 2012 (op 98 AD3d 587 [2012]), which had affirmed a judgment of the Supreme Court, Kings County (Anne G. Feldman, J.). The judgment had convicted defendant, upon a jury verdict, of murder in the first degree and criminal possession of a weapon in the second degree.

People v Peters, 198 AD3d 987, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Appellate Counsel

An order of the Appellate Division which denied defendant's application for a writ of error coram nobis to vacate, on the ground of ineffective assistance of appellate counsel, a prior order of the Appellate Division, was affirmed. Counsel did not present any claim raised below and thus raised no reviewable issues on appeal. Defendant is not precluded from filing another coram nobis application at the Appellate Division raising the ineffectiveness of his appellate counsel on his direct appeal of the judgment of conviction and sentence, nor is he precluded from filing a coram nobis application on any new grounds not previously raised before the Appellate Division.

APPEARANCES OF COUNSEL

Eric Nelson, Staten Island, for appellant.

Eric Gonzalez, District Attorney, Brooklyn (Solomon Neubort and Leonard Joblove of counsel), for respondent.

OPINION OF THE COURT

Order affirmed. A Judge of this Court granted defendant leave to appeal from the Appellate Division's denial of his coram nobis petition (39 NY3d 1112 [2023]). Counsel does not present any claim raised below and thus raises no reviewable issues on appeal. Defendant is not precluded from filing another coram nobis application at the Appellate Division raising the ineffectiveness of his appellate counsel on his direct appeal of the judgment of conviction and sentence (*see People v D'Alessandro*, 13 NY3d 216, 220-221 [2009]), nor is he precluded from filing a coram nobis application on any new grounds not previously raised before the Appellate Division.

Concur: Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN.

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(December 1, 2024 through December 31, 2024)

Gray v Samaritan Hosp. County Ct, 9/4/24 (Rensselaer) 12/3/24

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2024 through December 31, 2024)

People v Al-Madri	App Term, 1st Dept: 82 Misc 3d 132(A) (NY)	denied 12/12/24 (Garcia, J.)
People v Alba	1st Dept: 224 AD3d 461 (NY)	granted 12/30/24 (Troutman, J.)
People v Anderson	4th Dept: 220 AD3d 1223 (Yates)	granted 12/27/24 (Wilson, Ch. J.)
People v Arthur	1st Dept: 230 AD3d 1041 (NY)	denied 12/30/24 (Wilson, Ch. J.)
People v Banga	3d Dept: 231 AD3d 1296 (Schenectady)	denied 12/17/24 (Rivera, J.)
People v Barksdale	1st Dept: 231 AD3d 494 (NY)	denied 12/30/24 (Wilson, Ch. J.)
People v Bathrick	County Ct, 10/7/24 (Rensselaer)	denied 12/30/24 (Singas, J.)

People v Bess	App Div, 2d Dept: 2024 NY Slip Op 76888(U) (Kings)	dismissed 12/30/24 (Cannataro, J.)
People v Bey	County Ct, 9/16/24 (Onondaga)	denied 12/17/24 (Rivera, J.)
People v Bond	App Div, 4th Dept, 10/15/24 (Oneida)	dismissed 12/17/24 (Rivera, J.)
People v Brandon P.	2d Dept: 230 AD3d 1337 (Queens)	denied 12/30/24 (Wilson, Ch. J.)
People v Burris	2d Dept: 231 AD3d 1063 (Queens)	denied 12/17/24 (Garcia, J.) (Matter No. 1)
People v Calhoun (Deashae)	1st Dept: 231 AD3d 630 (NY)	denied 12/5/24 (Singas, J.)
People v Calhoun (Deashe)	1st Dept: 231 AD3d 630 (NY)	denied 12/5/24 (Singas, J.)
People v Campbell	2d Dept: 231 AD3d 1168 (Richmond)	denied 12/19/24 (Garcia, J.)
People v Caro	2d Dept: 219 AD3d 499 (Richmond)	denied 12/2/24 (Halligan, J.)
People v Chung	2d Dept: 231 AD3d 744 (Queens)	denied 12/9/24 (Garcia, J.)
People v Coates	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 12/4/24 (Singas, J.)
People v Colin	1st Dept: 231 AD3d 633 (NY)	denied 12/17/24 (Garcia, J.)
People v Corines	App Div, 2d Dept: 2024 NY Slip Op 74284(U) (Westchester)	dismissed 12/30/24 (Wilson, Ch. J.)
People v Crosby	2d Dept: 230 AD3d 597 (Kings)	denied 12/9/24 (Halligan, J.)
People v Cruceta-Castillo	1st Dept: 231 AD3d 683 (NY)	denied 12/30/24 (Singas, J.)
People v Curtis	1st Dept: 231 AD3d 654 (Bronx)	denied 12/30/24 (Singas, J.)
People v Dublino	4th Dept: 229 AD3d 1075 (Erie)	denied 12/30/24 (Wilson, Ch. J.)
People v Early	County Ct, 7/26/24 (Monroe)	denied 12/30/24 (Wilson, Ch. J.)
People v Everett	3d Dept: 231 AD3d 1296 (Schenectady)	denied 12/17/24 (Rivera, J.)
People v Garcia	App Div, 4th Dept, 10/3/24 (Ontario)	dismissed 12/30/24 (Singas, J.)
People v Gilmore	2d Dept: 226 AD3d 1047 (Orange)	denied 12/2/24 (Halligan, J.)
People v Gonzalez	2d Dept: 232 AD3d 625 (Kings)	denied 12/30/24 (Garcia, J.)
People v Gregg	2d Dept: 219 AD3d 503 (Richmond)	denied 12/2/24 (Halligan, J.)

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People v Guerrero	1st Dept: 231 AD3d 653 (NY)	denied 12/17/24 (Rivera, J.)
People v Guin	2d Dept: 229 AD3d 567 (Kings)	denied 12/2/24 (Halligan, J.)
People v Heusel	2d Dept: 231 AD3d 746 (Kings)	denied 12/30/24 (Singas, J.)
People v Heverly	4th Dept: 230 AD3d 1534 (Steuben)	denied 12/31/24 (Singas, J.)
People v Higgs	1st Dept: 231 AD3d 522 (Bronx)	denied 12/9/24 (Garcia, J.)
People v Hussain	2d Dept: 230 AD3d 1336 (Queens)	denied 12/30/24 (Cannataro, J.)
People v J	App Div, 3d Dept: 2024 NY Slip Op 69100(U) (Albany)	denied 12/30/24 (Cannataro, J.)
People v Jacobs	App Term, 1st Dept: 84 Misc 3d 126(A) (NY)	denied 12/30/24 (Singas, J.)
People v Johnson	1st Dept: 231 AD3d 679 (NY)	denied 12/12/24 (Singas, J.)
People v Jones (Al-Khidr)	1st Dept: 230 AD3d 1067 (NY)	denied 12/30/24 (Cannataro, J.)
People v Jones (Pierre)	4th Dept: 228 AD3d 1359 (Onondaga)	denied 12/30/24 (Cannataro, J.)
People v Joseph	3d Dept: 227 AD3d 1233 (Albany)	denied 12/30/24 (Cannataro, J.)
People v Kirlew	1st Dept: 231 AD3d 678 (Bronx)	denied 12/30/24 (Cannataro, J.)
People v Kratz	4th Dept: 231 AD3d 1529 (Onondaga)	denied 12/30/24 (Wilson, Ch. J.)
People v Law	3d Dept: 231 AD3d 1306 (Montgomery)	denied 12/30/24 (Singas, J.)
People v Lopez	App Div, 2d Dept: 2024 NY Slip Op 70595(U) (Richmond)	dismissed 12/30/24 (Wilson, Ch. J.)
People v Lorenzo	4th Dept: 230 AD3d 1564 (Erie)	denied 12/12/24 (Garcia, J.)
People v Maldonado	1st Dept: 230 AD3d 1069 (Bronx)	denied 12/27/24 (Rivera, J.)
People v Manning	4th Dept: 227 AD3d 1439 (Monroe)	denied 12/30/24 (Cannataro, J.)
People v Marte-Flores	App Term, 1st Dept: 84 Misc 3d 126(A) (Bronx)	denied 12/30/24 (Wilson, Ch. J.)
People v Mastin (Montek)	4th Dept: 232 AD3d 1268 (Erie)	denied 12/30/24 (Singas, J.) (Appeal No. 1)
People v Mastin (Montek)	4th Dept: 232 AD3d 1272 (Erie)	denied 12/30/24 (Singas, J.) (Appeal No. 2)
People v McCorkle	2d Dept: 230 AD3d 1337 (Richmond)	denied 12/30/24 (Cannataro, J.)
People v McKnight	4th Dept: 230 AD3d 1544 (Erie)	denied 12/9/24 (Garcia, J.)

People v McPherson	4th Dept: 230 AD3d 1593 (Monroe)	denied 12/30/24 (Singas, J.)
People v Mills	4th Dept: 232 AD3d 1267 (Erie)	denied 12/30/24 (Singas, J.)
People v Mishli	2d Dept: 231 AD3d 967 (Rockland)	denied 12/30/24 (Cannataro, J.)
People v Mobley	1st Dept: 231 AD3d 523 (Bronx)	denied 12/19/24 (Garcia, J.)
People v Orenstein	1st Dept: 230 AD3d 1068 (NY)	denied 12/9/24 (Garcia, J.)
People v Patton	2d Dept: 229 AD3d 808 (Nassau)	denied 12/30/24 (Wilson, Ch. J.)
People v Perez	1st Dept: 231 AD3d 599 (Bronx)	denied 12/30/24 (Cannataro, J.)
People v Petit	2d Dept: 230 AD3d 1337 (Queens)	denied 12/17/24 (Rivera, J.)
People v Pica-Torres	3d Dept: 230 AD3d 855 (Broome)	denied 12/5/24 (Troutman, J.)
People v Pringle	4th Dept: 229 AD3d 1234 (Onondaga)	denied 12/30/24 (Wilson, Ch. J.)
People v Pugh	4th Dept: 230 AD3d 1564 (Erie)	denied 12/12/24 (Garcia, J.)
People v Quist	App Term, 1st Dept: 84 Misc 3d 126(A) (NY)	denied 12/30/24 (Singas, J.)
People v Ramirez-Ortiz	3d Dept: 231 AD3d 1434 (Saratoga)	denied 12/19/24 (Garcia, J.)
People v Ramos	App Div, 3d Dept: 2024 NY Slip Op 69100(U) (Albany)	denied 12/30/24 (Cannataro, J.)
People v Roberts	1st Dept: 228 AD3d 488 (NY)	denied 12/30/24 (Wilson, Ch. J.)
People v Santiago (Jose)	1st Dept: 231 AD3d 524 (Bronx)	denied 12/9/24 (Garcia, J.)
People v Santiago (Sekou)	2d Dept: 231 AD3d 871 (Queens)	denied 12/30/24 (Garcia, J.)
People v Seabrook	1st Dept: 231 AD3d 457 (NY)	denied 12/30/24 (Cannataro, J.)
People v Smith (Mark)	4th Dept: 228 AD3d 1324 (Monroe)	granted 12/30/24 (Singas, J.)
People v Smith (Tonia)	4th Dept: 224 AD3d 1278 (Steuben)	denied 12/30/24 (Wilson, Ch. J.)
People v Soberanis	1st Dept: 231 AD3d 494 (NY)	denied 12/30/24 (Wilson, Ch. J.)
People v Stewart	4th Dept: 231 AD3d 1480 (Oswego)	denied 12/17/24 (Rivera, J.)
People v Taveras	1st Dept: 228 AD3d 410 (Bronx)	denied 12/30/24 (Cannataro, J.)
People v Thomas	1st Dept: 231 AD3d 524 (NY)	denied 12/17/24 (Garcia, J.)
People v Vargas	App Div, 3d Dept: 2024 NY Slip Op 74164(U) (Broome)	denied 12/5/24 (Garcia, J.)

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People v Wagoner	App Div, 4th Dept: 2024 NY Slip Op 74366(U) (Cattaraugus)	denied 12/17/24 (Rivera, J.)
People v Webb	2d Dept: 231 AD3d 1063 (Queens)	denied 12/17/24 (Garcia, J.) (Matter No. 2)
People v Wernle	4th Dept: 229 AD3d 1281 (Monroe)	denied 12/3/24 (Halligan, J.)
People v Williams (Jeffrey)	4th Dept: 228 AD3d 1316 (Wayne)	denied reconsideration 12/17/24 (Rivera, J.)
People v Williams (John)	2d Dept: 232 AD3d 735 (Kings)	denied 12/30/24 (Singas, J.)
People v Wynerman	App Div, 1st Dept: 2024 NY Slip Op 74123(U) (NY)	dismissed 12/17/24 (Garcia, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(December 1, 2024 through December 31, 2024)

People v Tapia	1st Dept: 230 AD3d 1009 (NY)	granted 12/5/24 (Mendez, J.)
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[250 NE3d 1169, 226 NYS3d 137]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
ANTWYNE LUCAS, Appellant.

Argued April 18, 2024; decided May 23, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 12, 2023. The Appellate Division affirmed a judgment of the Supreme Court, Richmond County (Mario F. Mattei, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Lucas, 215 AD3d 763, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Impeach Prosecution Witness with Prior Inconsistent Statement — Record Inadequate to Establish Ineffective Assistance

1. The record on direct appeal in defendant's robbery prosecution was inadequate to establish that defendant's trial counsel rendered ineffective assistance.

* Includes only applications that were granted.

tance by failing to impeach a detective, who testified that the victim had identified defendant as the gunman in a lineup, with his suppression hearing testimony that the victim was unsure if defendant was the gunman. The contention that defense counsel unreasonably failed to impeach the detective with his own inconsistent testimony was not without some significance, but required consideration of matters outside the record to determine whether this was trial strategy. The possibility could not be ruled out that counsel may have elected to avoid calling the credibility of a sympathetic victim, a priest, into question during the cross-examination of the detective, and instead opted to focus the jury's attention on a different prior inconsistent statement, namely, the detective's sworn allegation in the felony complaint naming the codefendant as the gunman. Further, counsel may have concluded that raising the inconsistency risked reinforcing to the jury that the victim did, in fact, identify defendant as the gunman at the time of the lineup—even if he did so equivocally—which may have buttressed the detective's assertion that he merely made a clerical error in identifying the codefendant as the gunman in the complaint.

Crimes — Right to Counsel — Effective Representation — Failure to Request Cross-Racial Identification Instruction

2. For the reasons set forth in *People v Watkins* (42 NY3d 635 [2024]), defense counsel's consent to the omission of a cross-racial identification instruction prior to the decision in *People v Boone* (30 NY3d 521 [2017]), which made such an instruction mandatory upon request, did not alone amount to ineffective assistance of counsel.

APPEARANCES OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (*Anders Nelson* of counsel), for appellant.

Michael E. McMahon, District Attorney, Staten Island (*Timothy Pezzoli, Thomas B. Litsky, James Joseph Gandia* and *Rhys Johnson* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Antwyne Lucas contends that his trial counsel was ineffective based on two errors: the failure to request a cross-racial identification instruction, and the failure to impeach a key prosecution witness at trial with his own inconsistent testimony at a suppression hearing. We hold that, on this record, defendant has not established that his trial counsel failed to provide meaningful representation (*see People v Baldi*, 54 NY2d 137 [1981]; *Strickland v Washington*, 466 US 668 [1984]).

The robbery for which defendant was convicted occurred in June 2016. At trial, the People played a 911 call in which the victim, a priest heading to his church before morning services,

said that a man had approached him on his left side, pulled out a gun, and demanded his keys, wallet, and cell phone. The victim further reported that a second man approached on the right, “kind of hemm[ing]” him in, and after the victim handed over his property, the gunman punched him, knocking him to the ground, and the men left in the victim’s car. When asked for a description of the assailants, the victim said, “It happened so fast, they were two Black, African-American men, they pulled a gun on me.” The People also played a surveillance video of the crime at trial, which showed two men cross the street, approach the victim from behind, and stand on either side of him before the victim fell to the ground and the two men drove off in the victim’s car.

Surveillance footage led police to an abandoned house, where they found defendant and his codefendant, Kerry Pack, on the day of the robbery. The victim’s cell phone case, along with two hats that appeared to match those worn by the perpetrators, was found in the house. Later that evening, the victim picked defendant out of a lineup. According to the suppression hearing testimony of Detective Alberto Morales, the victim identified defendant as “one of the guys that mugged me,” and stated that defendant “could have been the one with the gun,” but “he wasn’t too sure.” The victim did not say anything else in the lineup room, and Detective Morales testified that he had no further discussions with the victim about the identification at that point. The court denied defendant’s motion to suppress the lineup identification as unduly suggestive, a ruling that defendant does not challenge on appeal.

In the sworn felony complaint filed the day after the arrest and identification lineup, Detective Morales alleged that “based upon information from [the victim], as well as defendant Pack’s own statements,” Pack and defendant acted in concert to steal property from the victim and named Pack as the gunman. Defendant and Pack were subsequently charged in one indictment and, at trial, the People pursued both principal and accessory liability theories, under which defendant could be held criminally liable for the actions of his codefendant if “acting with the mental culpability required for the commission [of robbery], he solicit[ed], request[ed], command[ed], importune[d], or intentionally aid[ed] such person to engage in such conduct” (Penal Law § 20.00).

At the trial, held in September 2017, the People contended that the victim had accurately identified defendant as the gun-

man, and that regardless of who possessed the gun, defendant was acting in concert with Pack to commit the robbery. The victim testified that he had picked the gunman out of a lineup and was “positive” about the identification at that time, but in court he was unable to identify defendant as the person he had previously picked out of the lineup. Accordingly, Detective Morales was permitted to testify on direct examination pursuant to CPL 60.25 that the victim had identified defendant in a lineup. On cross-examination, defense counsel confronted Morales with the felony complaint naming Pack as the gunman, but Morales testified that he had simply made “a mistake,” and “got the names mixed up.” Morales testified that the victim told him that defendant was the one who held the gun, took his property, and punched him. Defense counsel did not impeach Morales with his inconsistent suppression hearing testimony that the victim “wasn’t too sure” whether defendant in fact held the gun.

Defendant testified in his own defense. He confirmed that he was depicted in the surveillance video of the robbery but claimed he “had nothing to do with that.” He stated that he had followed Pack in approaching the victim only to ask for a cigarette and change, but Pack unexpectedly pulled a gun, took the victim’s property, and knocked him to the ground. Defendant further testified that he then pulled Pack off the victim and fearfully left with him in the victim’s car. Defendant denied ever hitting the victim, demanding his property, possessing the gun, or positioning his body to prevent the victim from escaping during the robbery.

At the charge conference, defense counsel requested the pattern jury charge for one-witness identifications, noting that defendant contested the victim’s identification of him as the gunman. Over the prosecutor’s objection, the court agreed to give the “Witness Plus” identification charge (*see* CJI2d[NY] Identification—Witness Plus). At the time of trial, that pattern charge included recommended language pertaining to the cross-race effect, to be added to the list of factors affecting the accuracy of identification testimony “if placed in issue by the evidence” (*id.* [as rev Jan. 2011]). The court stated on the record that “the difference in race . . . was not an issue during the trial” because “there [was] no expert.” Counsel responded, “Correct,” consenting to the omission of the cross-racial identification charge.

Defendant was convicted on a jury verdict of robbery in the first degree and sentenced. On appeal, the Appellate Division

affirmed (215 AD3d 763 [2d Dept 2023]). As relevant here, the panel concluded that “viewing the record in its entirety, the defendant received meaningful representation” (*id.* at 764). On this record, we agree.

[1] We cannot conclude that counsel’s failure to impeach Detective Morales with his suppression hearing testimony that the victim was unsure if defendant was the gunman establishes ineffective assistance of counsel. “The lack of an adequate record bars review on direct appeal wherever the record falls short of establishing conclusively the merit of the defendant’s claim” (*People v Lopez-Mendoza*, 33 NY3d 565, 573 [2019] [alterations omitted]). Here, the contention that defense counsel unreasonably failed to impeach a key prosecution witness with inconsistencies between his trial testimony and his testimony at the suppression hearing is “not without some significance, but requires consideration of matters outside the record to determine whether this was trial strategy” (*People v Nicholson*, 26 NY3d 813, 832 [2016]). For example, on this record we cannot rule out the possibility that counsel may have elected to avoid calling the credibility of a sympathetic victim into question during the cross-examination of Detective Morales, and instead opted to focus the jury’s attention on a different prior inconsistent statement, namely, the detective’s sworn allegation in the felony complaint naming Pack as the gunman. Further, counsel may have concluded that raising the inconsistency risked reinforcing to the jury that the victim did, in fact, identify defendant as the gunman at the time of the lineup—even if he did so equivocally—which may have buttressed the detective’s assertion that he merely made a clerical error in identifying Pack as the gunman in the complaint.

[2] Moreover, for the reasons set forth in *People v Watkins* (42 NY3d 635 [2024] [decided today]), the failure to request a cross-racial identification instruction prior to this Court’s decision in *People v Boone* (30 NY3d 521 [2017]), which made such an instruction mandatory upon request, does not alone amount to ineffective assistance of counsel.

TROUTMAN, J. (concurring). I agree with the majority that, on this record, defendant “has not established that his trial counsel failed to provide meaningful representation” (majority mem at 1056). However, to the extent that the majority’s reasoning conflicts with my dissent in *People v Watkins* (42 NY3d 635 [2024] [decided today]), I disagree.

Additionally, I do not find persuasive the majority's theory as to why counsel may have elected not to "impeach Detective Morales with his suppression hearing testimony that the victim was unsure if defendant was the gunman" (majority mem at 1059). I find it implausible that counsel would have done so to "avoid calling the credibility of a sympathetic victim into question during the cross-examination of Detective Morales" (*id.*). By impeaching Detective Morales, counsel would have been impeaching that officer's account, not the credibility of a sympathetic victim.

What truly differentiates this case from *Watkins* is defendant's choice to take the stand and place himself at the scene of the crime. By doing that, the focus of the defense switched from the victim's identification to defendant's credibility. Being that "the People pursued both principal and accessorial liability theories" (majority mem at 1057), defendant sought to convince the jury both that he was not the gunman and that he did not participate in the robbery.

The fact that defense counsel did not bolster defendant's credibility in certain ways did not, under these facts, amount to ineffective assistance of counsel. As we have previously stated, "The Constitution entitles a criminal defendant to a fair trial, not a perfect one" (*People v Smith*, 97 NY2d 324, 330 [2002]). Furthermore, "a reviewing court must be careful not to 'second-guess' counsel, or assess counsel's performance 'with the clarity of hindsight,' effectively substituting its own judgment of the best approach to a given case" (*People v Nicholson*, 26 NY3d 813, 831 [2016, Rivera, J.]). "The test is 'reasonable competence, not perfect representation' " (*id.*).

Accordingly, I concur in the result insofar as it affirms the order of the Appellate Division.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge TROUTMAN concurs in result in an opinion, in which Judge RIVERA concurs.

Order affirmed, in a memorandum.

[250 NE3d 1196, 226 NYS3d 164]

FELIPE A. RUISECH et al., Appellants, v STRUCTURE TONE INC., Initially Sued Herein as STRUCTURE TONE GLOBAL SERVICES, INC., Respondent/Second Third-Party Plaintiff-Respondent, et al., Respondents. TISHMAN SPEYER PROPERTIES, L.P., et al, Third-Party Plaintiffs-Respondents/Third Third-Party Plaintiffs-Respondents, v CBRE, INC., Third-Party Defendant-Respondent. A-VAL ARCHITECTURAL METAL III, LLC, Second Third-Party Defendant-Respondent/Third Third-Party Defendant-Respondent.

Argued and submitted October 15, 2024; decided November 25, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 16, 2022. The Appellate Division order, insofar as appealed from, modified, on the law, so much of an order of the Supreme Court, New York County (Paul A. Goetz, J.; op 2020 NY Slip Op 34111[U] [2020]), as, to the extent appealed from as limited by the briefs, had denied the motion of defendants 200 Park, L.P. (Park) and Tishman Speyer Properties, L.P. (Tishman), the motion of defendant CBRE, Inc., and the motion of defendant Structure Tone Inc., initially sued herein as Structure Tone Global Services, Inc. (ST), for summary judgment insofar as they sought (1) to dismiss plaintiffs' Labor Law § 241 (6) claim, predicated on Industrial Code (12 NYCRR) § 23-1.7 (d) and (e) (2) as against Park, CBRE, and ST; and (2) to dismiss plaintiffs' Labor Law § 200 and common-law negligence claims as against them. The modification consisted of (1) granting Park, CBRE and ST summary judgment dismissing plaintiffs' Labor Law § 241 (6) claim in its entirety as against them; and (2) granting Park and Tishman, CBRE and ST summary judgment dismissing the Labor Law § 200 and common-law negligence claims as against them.

Ruisech v Structure Tone Inc., 208 AD3d 412, modified.

HEADNOTES

Appeal — Timeliness — Motion for Leave to Appeal — Start of 30-Day Period for Making Motion Where Order Served by Filing on Trial Court's Electronic Docket

1. Defendant's motion to dismiss the appeal as against it was granted, where plaintiffs' motion for leave to appeal to the Court of Appeals was filed 31 days after defendant served plaintiffs with a copy of the Appellate Division order by filing on the trial court's New York State Courts Electronic

Filing System (NYSCEF) docket and was therefore untimely. To be effective to start CPLR 5513 (b)'s 30-day clock, service must comply with CPLR 2103. CPLR 2103 (b) (7), in turn, empowers the Chief Administrative Judge to authorize electronic service. Under Uniform Rules for Trial Courts (22 NYCRR) § 202.5-b (h) (2), in actions that are subject to electronic filing, parties may serve "notice of entry of an order" by filing "a copy of the order . . . and written notice of its entry" on its NYSCEF site, thus causing that site to transmit "notification of receipt of the documents, which shall constitute service thereof by the filer." The relevant rules are not limited to service of trial court orders; and they neither prohibit nor render ineffective service of an intermediate appellate court order with notice of its entry by filing on the trial court's NYSCEF docket—as opposed to the NYSCEF docket of the intermediate appellate court. Thus, in an electronic filing case, service via filing on the NYSCEF docket for the trial court is effective to start CPLR 5513 (b)'s 30-day clock.

Labor — Safe Place to Work — Industrial Code Violations — Slipping Hazard

2. In plaintiff's action arising from an incident in which he slipped on concrete pebbles believed to have come from the installation of a metal channel in the floor of the construction site where he was working, defendants were not entitled to summary judgment dismissing plaintiff's Labor Law § 241 (6) claims. Defendants failed to demonstrate that the concrete pebbles that allegedly created the slipping hazard were integral to the work, because they did not conclusively show that the pebbles were inherent to the task at hand, and not avoidable without obstructing the work or imperiling the worker. As to the section 241 (6) claims predicated on a violation of Industrial Code (12 NYCRR) § 23-1.7 (d), defendants did not demonstrate that the concrete pebbles were not a "foreign substance" because, at the time of the alleged injury, the pebbles were not a component of the floor and were not necessary to the floor's functionality. Additionally, given plaintiff's deposition testimony that he was injured after slipping on the pebbles, defendants did not demonstrate that the pebbles did not cause a "slippery condition" within the meaning of that provision. Regarding Industrial Code § 23-1.7 (e) (2), this provision is not limited to "tripping" hazards, but also encompasses "other hazards" that may arise from the described conditions.

Labor — Safe Place to Work — Parties Liable — No Supervisory Control over Operation

3. In plaintiff's action arising from an incident in which he slipped on concrete pebbles believed to have come from the installation of a metal channel in the floor of the construction site where he was working, the Appellate Division properly granted defendants summary judgment dismissing plaintiffs' Labor Law § 200 and common-law negligence claims. Defendants—an out-of-possession landlord, a building manager, and a tenant not occupying the space during construction—demonstrated that they exercised no supervisory control over the operation and thus were not liable for any defect or dangerous condition arising from the contractor's methods.

APPEARANCES OF COUNSEL

John E. Lavelle Law Firm P.C., Williston Park (*John E. Lavelle* of counsel), and *The Barnes Firm, P.C.*, Garden City (*Richard P. Amico* of counsel), for appellants.

Barry McTiernan & Moore, LLC, New York City (*Allison A. Snyder* and *William D. Joyce III* of counsel), for Structure Tone Inc., respondent.

Gallo Vitucci Klar LLP, New York City (*C. Briggs Johnson* of counsel), for CBRE, Inc., respondent.

Smith Mazure, P.C., New York City (*Louise M. Cherkis* of counsel), for Tishman Speyer Properties, L.P., and another, respondents.

Pisciotti Lallis Erdreich, White Plains (*Danny C. Lallis* of counsel), for A-Val Architectural Metal III, LLC, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division insofar as appealed from should be modified, without costs, in accordance with this memorandum and, as so modified, affirmed.

CPLR 5513 (b) provides that a motion for leave to appeal must be made within 30 days of “the date of service by a party upon the party seeking permission of a copy of the judgment or order to be appealed from and written notice of its entry.” Where the Appellate Division has already denied a timely motion for permission to appeal the judgment or order, a subsequent motion for leave to appeal must be made within 30 days of service of “a copy of [the] . . . order [denying permission] and written notice of its entry” (CPLR 5513 [b]; *see also* 5514 [a]). We evaluate timeliness for purposes of CPLR 5513 (b) on a party-by-party basis (*see Matter of Judge Rotenberg Educ. Ctr. v Maul*, 90 NY2d 932, 932 [1997] [dismissing motion for leave to appeal as against some parties but not others]; *see also Matter of Judge Rotenberg Educ. Ctr. v Maul*, 91 NY2d 298, 300 n 1 [1998] [explaining that the “motion for leave to appeal with regard to (one party) was untimely and was dismissed”]). Thus, an untimely motion must be dismissed as against that party (*see* CPLR 5513 [b]; 5514 [a]; *Matter of Judge Rotenberg Educ. Ctr.*, 90 NY2d at 932).

To be effective to start CPLR 5513 (b)’s 30-day clock, service must comply with CPLR 2103. CPLR 2103 (b) (7), in turn, empowers the Chief Administrative Judge to authorize electronic service. The Chief Administrative Judge has exercised this authority by promulgating Uniform Rules for Trial Courts (22 NYCRR) § 202.5-b (h) (2), which provides that in actions—such as this one—that are subject to electronic filing, parties may serve “notice of entry of an order” by filing “a

copy of the order . . . and written notice of its entry” on its New York State Courts Electronic Filing System (NYSCEF) site, thus causing that site to transmit “notification of receipt of the documents, which shall constitute service thereof by the filer” (*see also* 22 NYCRR 202.5-bb [a] [1] [making section 202.5-b applicable to all electronic filing cases]). The relevant rules are not limited to service of trial court orders; and they neither prohibit nor render ineffective service of an intermediate appellate court order with notice of its entry by filing on the trial court’s NYSCEF docket—as opposed to the NYSCEF docket of the intermediate appellate court (*see generally* CPLR 2103 [b] [7]; 5513 [b]; 22 NYCRR 202.5-b—202.5-bb). Thus, in an electronic filing case, service via filing on the NYSCEF docket for the trial court is effective to start CPLR 5513 (b)’s 30-day clock.

[1] Here, plaintiffs moved for leave to appeal before this Court 31 days after defendant Structure Tone Inc. (Structure Tone) served plaintiffs by filing on the trial court’s NYSCEF docket. Plaintiffs’ motion to this Court was therefore untimely as to Structure Tone and, consequently, the portion of the motion to dismiss the appeal as against Structure Tone should be granted (*see* 42 NY3d 1030 [2024] [decided today]). However, as to defendants 200 Park, LP (200 Park), Tishman Speyer Properties, L.P. (Tishman), and CBRE, Inc. (CBRE), the motion was timely.

* * *

On their motions for summary judgment, 200 Park and CBRE did not meet their *prima facie* burden to demonstrate, as a matter of law, entitlement to dismissal of plaintiffs’ Labor Law § 241 (6) claims.¹ As relevant to these claims, plaintiff testified during depositions that, while attempting to install a 500-pound glass panel into a metal channel cut into the floor of the construction site, he slipped on concrete pebbles—that he believed came from the installation of the metal channel—and sustained injuries to his spine. Plaintiff testified that he was not involved in the creation of the channel or the pebbles. Instead, that work was performed by a separate crew hired by his employer.

1. Plaintiffs did not cross-appeal from Supreme Court’s order, which dismissed their Labor Law § 241 (6) claims as against Tishman, and those predicated on a violation of Industrial Code (12 NYCRR) § 23-1.7 (e) (1) (2020 NY Slip Op 34111[U] [Sup Ct, NY County 2020]). Those claims therefore were not before the Appellate Division and are outside the scope of this appeal.

[2] First, 200 Park and CBRE failed to demonstrate that the concrete pebbles that allegedly created the slipping hazard were integral to the work, because they did not conclusively show that the pebbles were “inherent to the task at hand, and not . . . avoidable without obstructing the work or imperiling the worker” (*Bazdaric v Almah Partners LLC*, 41 NY3d 310, 320 [2024]). As to the section 241 (6) claims predicated on a violation of Industrial Code § 23-1.7 (d), 200 Park and CBRE did not demonstrate that the concrete pebbles were not a “foreign substance” because, at the time of the alleged injury, the pebbles were “not a component of the [floor] and w[ere] not necessary to the [floor]’s functionality” (*id.* at 319). Additionally, given plaintiff’s deposition testimony that he was injured after slipping on the pebbles, 200 Park and CBRE did not demonstrate that the pebbles did not cause a “slippery condition” within the meaning of that provision (*id.*). Regarding Industrial Code § 23-1.7 (e) (2), this provision is not limited to “tripping” hazards, but also encompasses “other hazards” that may arise from the described conditions (12 NYCRR 23-1.7 [e]; *see* subd [e] [2]). Defendants’ remaining arguments as to the inapplicability of subdivision (e) (2) lack merit.²

[3] Finally, the Appellate Division properly granted 200 Park, Tishman, and CBRE summary judgment dismissing plaintiffs’ Labor Law § 200 and common-law negligence claims. These parties—an out-of-possession landlord, a building manager, and a tenant not occupying the space during construction, respectively—demonstrated that they “exercise[d] no supervisory control over the operation” and thus were not liable for any “defect or dangerous condition aris[ing] from the contractor’s methods” (*Comes v New York State Elec. & Gas Corp.*, 82 NY2d 876, 877 [1993]). Plaintiffs failed to raise any triable issue of fact in response.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from modified, without costs, in accordance with the memorandum herein and, as so modified, affirmed.

2. The Appellate Division erred in concluding that Industrial Code § 23-1.7 (e) (2) was inapplicable because plaintiff’s injury did not occur in a “passageway” (208 AD3d 412, 414 [1st Dept 2022]). While subdivision (e) (1) applies to “passageways,” subdivision (e) (2) applies to “floors, platforms[,] and similar areas where persons work or pass” (*compare* 12 NYCRR 23-1.7 [e] [1], *with* para [2]).

In the Matter of the Claim of STEVEN ALMINDO, Appellant. NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent. COMMISSIONER OF LABOR, Respondent. (And Four Other Related Claims.)

Submitted May 20, 2024; decided January 9, 2025

Reported below, 223 AD3d 5.

Motion, insofar as it seeks leave to appeal as against the Commissioner of Labor, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise granted.

VIRGINIA ARIAS et al., Appellants, v JOHN VECCHIONE, DDS, et al., Respondents, et al., Defendants.

Submitted August 5, 2024; decided January 9, 2025

Reported below, 224 AD3d 568.

Motion, insofar as it seeks leave to appeal as against defendant John Vecchione, DDS, dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied.

BRIAN BURROWS et al., Appellants, v 75-25 153RD STREET, LLC, Respondent.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 215 AD3d 105.

Motion by The Legal Aid Society for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

BRIAN BURROWS et al., Appellants, v 75-25 153RD STREET, LLC, Respondent.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 215 AD3d 105.

Motion by New York Apartment Association et al. for leave to appear amici curiae on the appeal herein granted to the extent

that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

BRIAN BURROWS et al., Appellants, v 75-25 153RD STREET, LLC,
Respondent.

Submitted January 6, 2025; decided January 9, 2025

Reported below, 215 AD3d 105.

Motion by Tenant Voices et al. for leave to file a brief amicus curiae granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ANDREW M. CUOMO, Respondent, v NEW YORK STATE COMMISSION ON ETHICS AND LOBBYING IN GOVERNMENT, Appellant.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 228 AD3d 175.

Motion by Elena Ruth Sassower, insofar as it seeks leave to file a brief amicus curiae on the appeal herein, denied (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [“Amicus curiae relief will be denied where acceptance of the amicus curiae submission may cause the recusal or disqualification of one or more Judges of the Court”]); motion otherwise denied.

Chief Judge WILSON and Judge CANNATARO took no part.

EZRASONS, INC., as a Shareholder of and Derivatively on Behalf of BARCLAYS PLC, Appellant, v SIR NIGEL RUDD et al., Respondents, et al., Defendant.

Submitted December 23, 2024; decided January 9, 2025

Reported below, 217 AD3d 406.

Motion by Charles K. Whitehead et al. for leave to appear amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge GARCIA took no part.

In the Matter of FLAIR BEVERAGES CORP., Appellant, v NEW YORK STATE TAX APPEALS TRIBUNAL et al., Respondents.

Decided January 9, 2025

Reported below, 229 AD3d 1012.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ERIN P. GALL, a Justice of the Supreme Court, Fifth Judicial District, Oneida County, Petitioner. NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted December 30, 2024; decided January 9, 2025

Motion to withdraw request for review granted.

Judge RIVERA took no part.

GLEN OAKS VILLAGE OWNERS, INC. et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 227 AD3d 523.

Motion by Sabin Center for Climate Change Law for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

TAMMY L. KELLY et al., as Guardians of the Person and Property of JOHN M. MOUDY, Respondents, v NICHOLAS J. PROHASKA, Defendant, and SNAP-ON CREDIT LLC, Appellant.

Submitted July 29, 2024; decided January 9, 2025

Reported below, 224 AD3d 1254.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MEKAYLA S. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MELANIE H., etc., Appellant. (Appeal No. 1.)

In the Matter of GABRIEL H. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MELANIE H., etc., Appellant. (Appeal No. 2.)

Submitted July 29, 2024; decided January 9, 2025

Reported below, 229 AD3d 1040; 229 AD3d 1047.

Motion for leave to appeal granted. Motion for financial relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANGELA VV., Appellant.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 229 AD3d 955.

Motion to vacate this Court's December 10, 2024 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD MARTINEZ-FERNANDEZ, Appellant.

Submitted December 16, 2024; decided January 9, 2025

Reported below, 79 Misc 3d 127(A), 2023 NY Slip Op 50630(U).

Motion by Fines and Fees Justice Center et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEREK SARGEANT, Appellant.

Submitted December 23, 2024; decided January 9, 2025

Reported below, 230 AD3d 1341.

Motion for assignment of counsel granted and Patricia Pazner, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FELIX TAPIA, Appellant.

Submitted December 30, 2024; decided January 9, 2025

Reported below, 230 AD3d 1009.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MC-KENZIE WILLIS, Appellant.

Submitted December 16, 2024; decided January 9, 2025

Reported below, 79 Misc 3d 127(A), 2023 NY Slip Op 50631(U).

Motion by Fines and Fees Justice Center et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

ZARKO SVATOVIC, Appellant, v JACQUELINE SHABOT, Respondent.

Submitted July 29, 2024; decided January 9, 2025

Reported below, 226 AD3d 608.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT CASTILLO, Appellant, v DERMOT SHEA,
as Police Commissioner of the City of New York, et al.,
Respondents.

Submitted October 21, 2024; decided January 14, 2025

Reported below, 226 AD3d 531.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* Rules of Ct of Appeals [22 NYCRR] § 500.22 [b] [2]).

GEORGETTE FLEISCHER, Appellant, v JOHN J. ZHANG, M.D., et
al., Respondents.

Submitted November 4, 2024; decided January 14, 2025

Reported below, 228 AD3d 484.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JIANHAI XU, Appellant, v CASTLETON COMMODITIES INTERNATIONAL LLC, Respondent.

Submitted November 4, 2024; decided January 14, 2025

Reported below, 225 AD3d 412.

Motion for reargument of motion for leave to appeal denied [*see* 42 NY3d 904 (2024)].

In the Matter of DANIEL JONES, Appellant, v COUNTY OF ERIE et
al., Respondents.

Submitted September 9, 2024; decided January 14, 2025

Reported below, 2024 NY Slip Op 71956(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for financial relief dismissed as academic.

LEHMAN BROTHERS INTERNATIONAL (EUROPE) (IN ADMINISTRATION), Appellant, v AG FINANCIAL PRODUCTS, INC., Respondent.

Submitted October 7, 2024; decided January 14, 2025

Reported below, 225 AD3d 474.

Motion by Deutsche Bank AG for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA took no part.

LEHMAN BROTHERS INTERNATIONAL (EUROPE) (IN ADMINISTRATION), Appellant, v AG FINANCIAL PRODUCTS, INC., Respondent.

Submitted September 30, 2024; decided January 14, 2025

Reported below, 225 AD3d 474.

Motion by Clayton P. Gillette for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA took no part.

JEFF LUCAS, Appellant, v VERIZON COMMUNICATIONS, INC., et al., Respondents.

Submitted October 21, 2024; decided January 14, 2025

Reported below, 220 AD3d 484.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 42 NY3d 902 (2024)].

In the Matter of STOKER OLUKOTUN-WILLIAMS, Appellant, v GERALD GARDNER et al., Respondents.

Submitted November 4, 2024; decided January 14, 2025

Reported below, 221 AD3d 1164.

Motion for reargument of motion for leave to appeal denied [*see* 42 NY3d 902 (2024)].

In the Matter of CHRISTINE O'REILLY, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents. (And Three Other Proceedings.)

In the Matter of ATHENA CLARKE, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents. (And Three Other Proceedings.)

Submitted November 25, 2024; decided January 14, 2025

Reported below, 213 AD3d 560; 213 AD3d 548.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 42 NY3d 986 (2024)].

Judge RIVERA took no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BLUE, Appellant.

Submitted November 25, 2024; decided January 14, 2025

Reported below, 202 AD3d 546.

Motion for reargument etc. denied [*see* 42 NY3d 584 (2024)].

U.S. BANK NATIONAL ASSOCIATION, Not it its Individual Capacity But Solely as Trustee for the RMAC TRUST, SERIES 2016-CTT, Appellant, v CASSANDRA FOX, Respondent, et al., Defendants.

Submitted October 28, 2024; decided January 14, 2025

Reported below, 216 AD3d 445.

Motion for reargument of motion for leave to appeal denied [*see* 42 NY3d 903 (2024)].

Judge HALLIGAN took no part.

WELLS FARGO BANK, N.A., Respondent, v JAMES C. DUBARRY, Appellant, et al., Defendants.

Submitted October 28, 2024; decided January 14, 2025

Reported below, 230 AD3d 1187.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[251 NE3d 1245, 227 NYS3d 245]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERRY WATKINS, Appellant.

Argued November 20, 2024; decided December 12, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 17, 2023. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Charles A. Schiano, Jr., J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a weapon in the second degree.

People v Watkins, 221 AD3d 1430, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant's argument regarding whether the initial stop of defendant constituted a level four encounter with police was unpreserved for review by the Court of Appeals.

APPEARANCES OF COUNSEL

Julie A. Cianca, Public Defender, Rochester (*Jane I. Yoon* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Martin P. McCarthy, II*, of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The argument defendant raises on this appeal, whether the initial stop of defendant constituted a level four encounter with police, is unpreserved for our review (*see* CPL 470.05 [2]; *People v Graham*, 25 NY3d 994, 996-997 [2015]; *see generally* *People v De Bour*, 40 NY2d 210 [1976]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, in a memorandum.

[252 NE3d 502, 227 NYS3d 563]

In the Matter of FRANCO COMPAGNONE, Appellant, v THOMAS P. DiNAPOLI, as State Comptroller, Respondent.

Argued November 19, 2024; decided December 12, 2024

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from a judgment of that Court, entered January 26, 2023, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division confirmed the determination denying petitioner's application for accidental disability retirement benefits and dismissed the petition.

Matter of Compagnone v DiNapoli, 213 AD3d 7, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement

Substantial evidence supported respondent's determination denying petitioner former police officer's application for accidental disability retirement benefits on the ground that the incident—petitioner fell into a hole while on patrol—was not an “accident” under Retirement and Social Security Law § 363 because it resulted from a risk inherent in petitioner's job. Petitioner was injured when, on routine patrol, he fell into a hole in the ground in an unlit area at night while investigating a suspicious light from within a vacant house that was under construction. On the record here, respondent reasonably and plausibly determined that petitioner's risk of being injured by an unseen hazard while investigating a potential crime in the dark was inherent in his ordinary job duties as a patrol officer.

APPEARANCES OF COUNSEL

Schwab & Gasparini, PLLC, White Plains (Warren J. Roth and Victor Aqeel of counsel), for appellant.

Letitia James, Attorney General, Albany (Dustin J. Brockner, Barbara D. Underwood and Andrea Oser of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, with costs.

Petitioner, a former police officer, was injured when, on routine patrol, he fell into a hole in the ground in an unlit area at night while investigating a suspicious light from within a vacant house that was under construction. He then applied for accidental disability retirement (ADR) benefits (*see* Retirement and Social Security Law § 363). During the ensuing hearing, petitioner testified that at the time of the incident, he was assigned to patrol the midnight shift, and his job duties included “looking for any suspicious parties.” A hearing exhibit described the duties of the patrol division of petitioner’s department as including “[p]rotection of persons and property,” “[g]eneral crime prevention,” and “[p]reliminary investigations of crime.” Petitioner testified that he fell into the hole while walking alongside the house. He further testified that the hole had been dug for a sewer line, and that he knew at the time that the house was under construction. Respondent denied petitioner’s application, as relevant here, on the ground that the incident was not an “accident” under Retirement and Social Security Law § 363 because it resulted from a risk inherent in petitioner’s job.

Substantial evidence supports respondent’s determination (*see Matter of Rawlins v Teachers’ Retirement Sys. of the City of N.Y.*, 42 NY3d 315, 318-319 [2024]). As our case law makes clear, an incident caused by “a risk inherent in the petitioner’s regular [job] duties” is not an accident for purposes of ADR benefits (*Matter of Kelly v DiNapoli*, 30 NY3d 674, 683 [2018] [brackets omitted], quoting *Matter of Hambel v Regan*, 174 AD2d 891, 892-893 [3d Dept 1991], *affd for reasons stated below* 78 NY2d 1092 [1991]). In determining whether an accident occurred, respondent appropriately considered whether, at the time of the incident, petitioner was “acting within the scope of [his] ‘ordinary employment duties, considered in view of [his] particular employment,’ ” and whether the incident was caused by “an inherent risk of [those] regular duties” (*id.* at 684, quoting *Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982]). On this record, respondent “reasonabl[y] and plausibl[y]” determined that petitioner’s risk of being injured by an unseen hazard while investigating a potential crime in

the dark was inherent in his ordinary job duties as a patrol officer (*id.*, quoting *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494, 499 [2011]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Judgment affirmed, with costs, in a memorandum.

[252 NE3d 501, 227 NYS3d 562]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH GARCIA, Appellant.

Argued November 20, 2024; decided December 12, 2024

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 16, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Evelyn L. Braun, J.), which had convicted defendant, after a nonjury trial, of assault in the second degree, criminal possession of a weapon in the fourth degree, and endangering the welfare of a child. The appeal to the Appellate Division brought up for review the denial, after a hearing (Deborah Stevens Modica, J.), of that branch of defendant's omnibus motion which was to suppress identification evidence.

People v Garcia, 210 AD3d 906, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant's argument that the showup identification procedure was unduly suggestive because of its collective nature—defendant was presented for identification alongside his two codefendants—and, specifically, that the strength of the victim's identification as to one of the codefendants infected the identification of defendant, was unpreserved.

APPEARANCES OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (*David Fitzmaurice* of counsel), for appellant.

Melinda Katz, District Attorney, Kew Gardens (*Christopher J. Blira-Koessler* and *John M. Castellano* of counsel), for respondent.

Steptoe LLP, New York City (*James L. Brochin, Michelle L. Levin, Gilana Keller, Ciara Davis* and *Meredith Lewis* of

counsel), and *The Innocence Project*, New York City (*Matthew A. Wasserman* of counsel), for The Innocence Project, Inc., *amicus curiae*.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's argument that the showup identification procedure was unduly suggestive because of its collective nature—defendant was presented for identification alongside his two codefendants—and, specifically, that the strength of the victim's identification as to one of the codefendants infected the identification of defendant is unpreserved (*see* CPL 470.05 [2]; *cf. People v Cedeno*, 27 NY3d 110, 123 n 3 [2016]). Defendant's remaining arguments lack merit.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, in a memorandum.

APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2025 through January 31, 2025)

AL 557 Doe v Central Val.
Cent. Sch. Dist.

4th Dept: 227 AD3d 1559

1/28/25

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2025 through January 31, 2025)

People v Abdullah	2d Dept: 230 AD3d 1334 (Kings)	denied 1/21/25 (Troutman, J.)
People v Adams	4th Dept: 232 AD3d 1302 (Livingston)	denied 1/27/25 (Singas, J.)
People v Allen	4th Dept: 232 AD3d 1256 (Oswego)	denied 1/17/25 (Singas, J.)
People v Bah	1st Dept: 231 AD3d 451 (NY)	denied 1/21/25 (Troutman, J.)
People v Balla	App Term, 1st Dept: 84 Misc 3d 127(A) (Bronx)	denied 1/23/25 (Cannataro, J.)
People v Bautista-Gonzalez	2d Dept: 224 AD3d 845 (Kings)	denied 1/30/25 (Halligan, J.)
People v Bermudez-Cedillos	2d Dept: 228 AD3d 681 (Suffolk)	denied 1/22/25 (Cannataro, J.)
People v Branch	1st Dept: 232 AD3d 480 (NY, Bronx)	denied 1/28/25 (Garcia, J.)

MEMORANDA

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People v Brown	4th Dept: 230 AD3d 1593 (Jefferson)	denied 1/22/25 (Cannataro, J.)
People v Castro	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 84 Misc 3d 130(A) (Queens)	denied 1/8/25 (Garcia, J.)
People v Chourb	4th Dept: 232 AD3d 1272 (Cayuga)	denied 1/15/25 (Garcia, J.)
People v Cisse	1st Dept: 228 AD3d 440 (NY)	denied 1/22/25 (Wilson, Ch. J.)
People v Clark	1st Dept: 231 AD3d 456 (Bronx)	denied 1/21/25 (Troutman, J.)
People v Cooper	4th Dept: 232 AD3d 1302 (Cayuga)	denied 1/17/25 (Halligan, J.)
People v Correa	1st Dept: 228 AD3d 409 (NY)	denied 1/21/25 (Troutman, J.)
People v Cruz	App Term, 1st Dept: 83 Misc 3d 137(A) (Bronx)	denied 1/21/25 (Troutman, J.)
People v Dirschberger	3d Dept: 230 AD3d 876 (Albany)	denied 1/21/25 (Troutman, J.)
People v Earl	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 84 Misc 3d 44 (Queens)	denied 1/27/25 (Singas, J.)
People v Ehinmiakhena	App Term, 1st Dept: 82 Misc 3d 132(A) (NY)	granted 1/8/25 (Troutman, J.)
People v Encarnacion	App Term, 1st Dept: 84 Misc 3d 127(A) (Bronx)	denied 1/10/25 (Wilson, Ch. J.)
People v Etienne	2d Dept: 233 AD3d 705 (Queens)	denied 1/31/25 (Garcia, J.)
People v Figueroa	4th Dept: 230 AD3d 1581 (Genesee)	denied 1/2/25 (Singas, J.)
People v Forsythe	4th Dept: 230 AD3d 1544 (Oneida)	denied 1/30/25 (Halligan, J.)
People v Fowler	2d Dept: 232 AD3d 908 (Kings)	denied 1/28/25 (Garcia, J.)
People v Franco	1st Dept: 231 AD3d 566 (Bronx)	denied 1/21/25 (Troutman, J.)
People v Galloway	1st Dept: 232 AD3d 477 (NY)	denied 1/15/25 (Garcia, J.)
People v Gerson	1st Dept: 231 AD3d 490 (NY)	denied 1/22/25 (Wilson, Ch. J.)
People v Gibson	2d Dept: 227 AD3d 1105 (Queens)	denied 1/30/25 (Halligan, J.)
People v Gilmore	3d Dept: 230 AD3d 864 (Sullivan)	denied 1/22/25 (Wilson, Ch. J.)
People v Gordon	2d Dept: 230 AD3d 515 (Richmond)	denied 1/21/25 (Troutman, J.)
People v Green	2d Dept: 230 AD3d 1336 (Kings)	denied 1/21/25 (Troutman, J.)
People v Griffith	1st Dept: 233 AD3d 449 (NY)	denied 1/31/25 (Garcia, J.)
People v Grillo	2d Dept: 231 AD3d 966 (Suffolk)	denied 1/22/25 (Wilson, Ch. J.)

People v Hinson	4th Dept: 229 AD3d 1191 (Monroe)	denied 1/23/25 (Rivera, J.)
People v Hudson	2d Dept: 232 AD3d 200 (Kings)	granted 1/23/25 (Cannataro, J.)
People v Hufnagle	4th Dept: 230 AD3d 1546 (Oswego)	denied 1/21/25 (Cannataro, J.)
People v Humphrey	1st Dept: 231 AD3d 413 (NY)	denied 1/21/25 (Troutman, J.)
People v Jackson	2d Dept: 231 AD3d 966 (Kings)	denied 1/17/25 (Halligan, J.)
People v James	3d Dept: 231 AD3d 1435 (Ulster)	denied 1/17/25 (Halligan, J.)
People v Javiel	2d Dept: 231 AD3d 967 (Dutchess)	denied 1/8/25 (Garcia, J.)
People v Jawad	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 84 Misc 3d 31 (Queens)	denied* 1/21/25 (Troutman, J.)
People v Johnson	App Term, 1st Dept: 84 Misc 3d 127(A) (Bronx)	denied 1/21/25 (Troutman, J.)
People v Kamal H.	2d Dept: 231 AD3d 1169 (Kings)	denied 1/17/25 (Halligan, J.)
People v King (Alvin)	4th Dept: 229 AD3d 1170 (Onondaga)	denied 1/21/25 (Halligan, J.) (Appeal No. 1)
People v King (Alvin)	4th Dept: 229 AD3d 1173 (Onondaga)	denied 1/21/25 (Halligan, J.) (Appeal No. 2)
People v King (Corey)	1st Dept: 232 AD3d 424 (NY)	denied 1/31/25 (Garcia, J.)
People v King (Keith)	2d Dept: 231 AD3d 747 (Queens)	denied 1/17/25 (Halligan, J.)
People v Lagoa	2d Dept: 232 AD3d 910 (Kings)	denied 1/31/25 (Garcia, J.)
People v Largo	App Div, 2d Dept: 2024 NY Slip Op 78097(U) (Queens)	dismissed 1/22/25 (Cannataro, J.)
People v Lee	3d Dept: 225 AD3d 1001 (Chemung)	denied 1/22/25 (Wilson, Ch. J.)
People v Leibert	1st Dept: 228 AD3d 489 (NY)	denied 1/3/25 (Rivera, J.)
People v Lewis (Jarvis)	4th Dept: 228 AD3d 1226 (Monroe)	granted 1/24/25 (Wilson, Ch. J.)
People v Lewis (Regina)	App Div, 2d Dept: 2024 NY Slip Op 75534(U) (Orange)	dismissed 1/21/25 (Troutman, J.)
People v Luis R.	1st Dept: 220 AD3d 549 (Bronx)	denied 1/8/25 (Wilson, Ch. J.)
People v Lydon	2d Dept: 209 AD3d 764 (Suffolk)	denied 1/20/25 (Troutman, J.)
People v Malcolm	2d Dept: 230 AD3d 1337 (Kings)	denied 1/21/25 (Troutman, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Fuentes* (81 Misc 3d 136[A], 2023 NY Slip Op 51399[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2023], *lv granted* 41 NY3d 983 [2024]).

MEMORANDA

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People v Mansfield	3d Dept: 223 AD3d 1111 (Albany)	denied reconsideration 1/21/25 (Halligan, J.)
People v Maraj	2d Dept: 228 AD3d 958 (Nassau)	denied 1/21/25 (Halligan, J.)
People v Marino	App Div, 2d Dept: 2024 NY Slip Op 76896(U) (Queens)	dismissed 1/28/25 (Garcia, J.)
People v Martinez	1st Dept: 231 AD3d 448 (Bronx)	denied 1/21/25 (Troutman, J.)
People v Mickens	2d Dept: 233 AD3d 801 (Kings)	denied 1/28/25 (Garcia, J.)
People v Montanez	App Term, 1st Dept: 83 Misc 3d 138(A) (NY)	denied 1/21/25 (Troutman, J.)
People v Moore	4th Dept: 229 AD3d 1193 (Monroe)	granted 1/29/25 (Wilson, Ch. J.)
People v Morillo	1st Dept: 232 AD3d 519 (Bronx)	denied 1/17/25 (Singas, J.)
People v Nathan	App Div, 2d Dept: 2024 NY Slip Op 71434(U) (Nassau)	denied reconsideration 1/29/25 (Cannataro, J.)
People v Nedd	3d Dept: 230 AD3d 833 (Sullivan)	denied 1/20/25 (Troutman, J.)
People v Nikki	3d Dept: 231 AD3d 1435 (Ulster)	denied 1/17/25 (Halligan, J.)
People v Norry	4th Dept: 229 AD3d 1122 (Monroe)	denied 1/10/25 (Wilson, Ch. J.)
People v Parbhudial	App Div, 3d Dept: 2024 NY Slip Op 76745(U) (Schenectady)	dismissed 1/22/25 (Wilson, Ch. J.)
People v Park	4th Dept: 232 AD3d 1292 (Chautauqua)	denied 1/28/25 (Garcia, J.)
People v Parker	1st Dept: 233 AD3d 449 (Bronx)	denied 1/17/25 (Singas, J.)
People v Perez	1st Dept: 230 AD3d 1073 (NY)	denied 1/21/25 (Troutman, J.)
People v Pottinger	4th Dept: 229 AD3d 1053 (Monroe)	denied 1/21/25 (Halligan, J.)
People v Pratt	App Div, 3d Dept: 2024 NY Slip Op 72432(U) (Greene)	denied 1/21/25 (Troutman, J.)
People v Racona	4th Dept: 227 AD3d 1544 (Cayuga)	denied 1/17/25 (Halligan, J.)
People v Ramirez (Claudio)	App Term, 1st Dept: 83 Misc 3d 138(A) (NY)	denied 1/22/25 (Wilson, Ch. J.)
People v Ramirez (Dary)	1st Dept: 224 AD3d 102 (NY)	denied 1/22/25 (Wilson, Ch. J.)
People v Ramos	1st Dept: 231 AD3d 599 (NY)	denied 1/28/25 (Garcia, J.)
People v Rees	2d Dept: 230 AD3d 1340 (Queens)	denied 1/30/25 (Halligan, J.)
People v Roche	4th Dept: 231 AD3d 1531 (Herkimer)	denied 1/23/25 (Cannataro, J.)

People v Roper	1st Dept: 231 AD3d 491 (Bronx)	granted 1/23/25 (Cannataro, J.)
People v Sarasty-Solarte	2d Dept: 230 AD3d 1341 (Queens)	denied 1/17/25 (Halligan, J.)
People v Satine	2d Dept: 232 AD3d 630 (Kings)	denied 1/17/25 (Halligan, J.)
People v Selph	App Term, 1st Dept: 84 Misc 3d 128(A) (NY)	denied 1/15/25 (Garcia, J.)
People v Shuler	3d Dept: 231 AD3d 1285 (Schenectady)	denied 1/29/25 (Wilson, Ch. J.)
People v Simpson	4th Dept: 232 AD3d 1266 (Erie)	denied 1/23/25 (Cannataro, J.)
People v Smith	County Ct, 9/26/24 (Saratoga)	denied 1/21/25 (Troutman, J.)
People v Smith-Rucker	App Div, 4th Dept: 2023 NY Slip Op 75295(U) (Oneida)	dismissed 1/17/25 (Singas, J.)
People v Taylor	1st Dept: 226 AD3d 600 (Bronx)	denied 1/22/25 (Wilson, Ch. J.)
People v Toland	App Div, 3d Dept: 2024 NY Slip Op 73737(U) (Schenectady)	dismissed 1/29/25 (Rivera, J.)
People v Vaquero	2d Dept: 230 AD3d 1165 (Westchester)	denied reconsideration 1/29/25 (Garcia, J.)
People v Varghese	2d Dept: 231 AD3d 753 (Nassau)	denied 1/21/25 (Troutman, J.)
People v Vega	1st Dept: 228 AD3d 467 (Bronx)	denied 1/10/25 (Wilson, Ch. J.)
People v Walker	4th Dept: 232 AD3d 1214 (Erie)	denied 1/28/25 (Garcia, J.)
People v Washington	2d Dept: 231 AD3d 754 (Queens)	denied 1/17/25 (Halligan, J.)
People v Wells	2d Dept: 229 AD3d 812 (Kings)	denied 1/22/25 (Cannataro, J.)
People v White (Eric)	1st Dept: 230 AD3d 1036 (NY)	denied 1/22/25 (Wilson, Ch. J.)
People v White (Shaquille)	3d Dept: 231 AD3d 1429 (Albany)	denied 1/22/25 (Wilson, Ch. J.)
People v Wilkins	1st Dept: 231 AD3d 654 (NY)	denied 1/9/25 (Garcia, J.)
People v Williamson	App Div, 3d Dept: 2024 NY Slip Op 72764(U) (Rensselaer)	denied 1/17/25 (Halligan, J.)
People v Woods	1st Dept: 226 AD3d 597 (NY)	granted 1/29/25 (Wilson, Ch. J.)
People v Wright	2d Dept: 231 AD3d 1171 (Kings)	denied 1/17/25 (Singas, J.)
People v Yeara	4th Dept: 227 AD3d 1517 (Wayne)	denied 1/31/25 (Halligan, J.)
People v Zitrenbaum	2d Dept: 231 AD3d 1064 (Rockland)	denied 1/17/25 (Halligan, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(January 1, 2025 through January 31, 2025)

People v Paulino

1st Dept: 233 AD3d 6 (Bronx)

granted 1/30/25
(Rodriguez III, J.)

SAHEED O. ADEBANJO, Respondent, v CHARLES L. JOHNSON, Appellant.

Decided February 13, 2025

Reported below, 231 AD3d 658.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANGELICA M.E., Appellant, v DELMY S.A.-H., Respondent.

Submitted December 23, 2024; decided February 13, 2025

Reported below, 228 AD3d 862.

Motion for financial relief granted.

In the Matter of ANGELICA M.E., Appellant, v DELMY S.A.-H., Respondent.

Submitted January 27, 2025; decided February 13, 2025

Reported below, 228 AD3d 862.

Motion for financial relief granted.

ELI ANGELINO, Appellant, v N.Y.C. DEPARTMENT OF HEALTH AND MENTAL HYGIENE, Respondent.

Submitted December 2, 2024; decided February 13, 2025

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are

* Includes only applications that were granted.

involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for financial relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of the Estate of KATHRYN W. BUCK, Deceased.
RICHARD M. BUCK, III, et al., Respondents; MICHAEL G.
BUCK, Appellant. (And Related Proceedings.)

Submitted July 29, 2024; decided February 13, 2025

Reported below, 225 AD3d 1185.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

FRESH AIR FOR THE EASTSIDE, INC., Appellant, v STATE OF NEW
YORK et al., Respondents.

Decided February 13, 2025

Reported below, 229 AD3d 1217.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

GLEN OAKS VILLAGE OWNERS, INC., et al., Respondents, v CITY
OF NEW YORK et al., Appellants.

Submitted January 13, 2025; decided February 13, 2025

Reported below, 227 AD3d 523.

Motion by Richard Ellenbogen et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

GLEN OAKS VILLAGE OWNERS, INC., et al., Respondents, v CITY OF NEW YORK et al., Appellants.

Submitted January 21, 2025; decided February 13, 2025

Reported below, 227 AD3d 523.

Motion by Steven Englebright et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of JOSHUA J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 1.)

In the Matter of CHRISTOPHER J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 2.)

Submitted January 21, 2025; decided February 13, 2025

Reported below, 220 AD3d 776; 220 AD3d 777.

Motion by Lawyers for Children et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of JOSHUA J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 1.)

In the Matter of CHRISTOPHER J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 2.)

Submitted January 21, 2025; decided February 13, 2025

Reported below, 220 AD3d 776; 220 AD3d 777.

Motion by The Children's Law Center for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of JOSHUA J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 1.)

In the Matter of CHRISTOPHER J. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAMEKA J., Appellant. (Proceeding No. 2.)

Submitted January 21, 2025; decided February 13, 2025

Reported below, 220 AD3d 776; 220 AD3d 777.

Motion by Brooklyn Defender Services et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

KIMBERLY A. KOPKO, Respondent, v EDWARD E. KOPKO, Appellant.

Decided February 13, 2025

Reported below, 2024 NY Slip Op 78006(U); 229 AD3d 974.

Appeal from the November 2024 Appellate Division order denying reargument or leave to appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution; appeal, insofar as also treated as taken from the July 2024 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of N.L.-G. and Another, Children Alleged to be Permanently Neglected. V.G., Appellant; MERCY FIRST, Respondent.

Submitted April 22, 2024; decided February 13, 2025

Reported below, 224 AD3d 587.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by Rules of the Court of Appeals (*see* Rules of Ct of Appeals [22 NYCRR] § 500.22 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARLING
ALBA, Appellant.

Submitted January 27, 2025; decided February 13, 2025

Reported below, 224 AD3d 461.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KELLY
L. ANDERSON, Appellant.

Submitted February 10, 2025; decided February 13, 2025

Reported below, 220 AD3d 1223.

Motion for assignment of counsel granted and Melissa K. Swartz, Esq., c/o Cambareri & Brennek, 300 South State Street, 1st Floor, Syracuse, NY 13202, assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v D.T.,
Appellant.

Submitted July 1, 2024; decided February 13, 2025

Reported below, 166 AD3d 68; 227 AD3d 509.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the 2018 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for financial relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
EHINMIAKHENA, Appellant.

Submitted February 3, 2025; decided February 13, 2025

Reported below, 82 Misc 3d 132(A), 2024 NY Slip Op 50600(U).

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK A. SMITH, Appellant.

Submitted January 21, 2025; decided February 13, 2025

Reported below, 228 AD3d 1324.

Motion for assignment of counsel granted and Sarah J. Holt, Esq., Monroe County Conflict Defender, 16 East Main Street, Suite 600, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER I. WILLIAMS, Appellant.

Submitted February 3, 2025; decided February 13, 2025

Reported below, 232 AD3d 1124.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

VERONICA SANMIGUEL, as Administrator of the Estate of KEEGAN DAYLE KARP, Deceased, et al., Respondents, v MERYL Y. GRIMALDI, M.D., et al., Appellants, et al., Defendant.

Submitted February 3, 2025; decided February 13, 2025

Reported below, 229 AD3d 152.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

RICHARD A. BALL, as Commissioner of Agriculture and Markets,
Respondent, v MOON CONVENIENCE & DELI INC., Doing
Business as MOON CONVENIENCE & DELI, Defendant. SAR-
WAT PARVAZ, Appellant.

Submitted October 7, 2024; decided February 18, 2025

Reported below, 2024 NY Slip Op 73168(U).

Motion, insofar as Sarwat Parvaz seeks leave to appeal
purportedly on behalf of Moon Convenience & Deli Inc.,
dismissed upon the ground that Moon Convenience & Deli Inc.
must appear by an attorney (*see* CPLR 321 [a]); motion for
leave to appeal otherwise dismissed upon the ground that the
order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of SANNY BARKATS, an Attorney, Appellant. GRIEV-
ANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIR-
TEENTH JUDICIAL DISTRICTS, Respondent.

Submitted September 23, 2024; decided February 18, 2025

Reported below, 231 AD3d 97.

Motion for leave to appeal dismissed upon the ground that
no appeal lies from an order entered upon default (*see* CPLR
5511).

SYLVIA E. DiPIETRO, Respondent, v JOEL VATSKY, Appellant.

Submitted October 21, 2024; decided February 18, 2025

Reported below, 177 AD3d 401.

Motion for reargument of motion for leave to appeal denied.

Judge CANNATARO took no part.

REBECCA M. FLANDERS, Appellant, v STEPHEN F. GOODFELLOW
et al., Respondents.

Submitted July 22, 2024; decided February 18, 2025

Reported below, 215 AD3d 1248.

Order on motion for amicus curiae relief dated September 12, 2024 [*see* 42 NY3d 948] vacated, sua sponte, and motion by New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on the appeal herein denied (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [“Amicus curiae relief will be denied where acceptance of the amicus curiae submission may cause the recusal or disqualification of one or more Judges of the Court”])).

Judge TROUTMAN took no part.

GARY J. LAVINE, Respondent, v STATE OF NEW YORK et al.,
Respondents, and ROBERT ORTT, etc., et al., Appellants.

Submitted September 9, 2024; decided February 18, 2025

Reported below, 229 AD3d 1173.

Motion for leave to appeal dismissed upon the ground that appellants are not parties aggrieved (*see* CPLR 5511).

Judge CANNATARO took no part.

In the Matter of NUSHAWN W., Appellant, v STATE OF NEW YORK,
Respondent.

Submitted September 9, 2024; decided February 18, 2025

Reported below, 229 AD3d 1104.

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5602).

In the Matter of DAKOTA SMITH, Appellant, v ANTHONY AN-
NUCCI, Acting Commissioner, New York State Department
of Corrections and Community Supervision, Respondent.

Submitted October 7, 2024; decided February 18, 2025

Reported below, 229 AD3d 1372.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

STANTON E. WEAVER JR., Appellant, v MARY E. WEAVER, Re-
spondent.

Submitted September 3, 2024; decided February 18, 2025

Reported below, 2024 NY Slip Op 72768(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STANTON E. WEAVER JR., Appellant, v MARY E. WEAVER, Respondent.

Submitted November 25, 2024; decided February 18, 2025

Reported below, 2024 NY Slip Op 77717(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of 160 EAST 84TH STREET ASSOCIATES LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index No. 157557/20.)

In the Matter of 160 E. 84TH ST. ASSOCIATES LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index No. 157576/20.)

In the Matter of 160 EAST 84TH STREET ASSOCIATES LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index Nos. 157558/20, 157560/20, 157579/20 and 157582/20.)

In the Matter of 1700 YORK AVENUE ASSOCIATES, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent.

In the Matter of 87TH STREET SHERRY ASSOCIATES, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index Nos. 153992/20, 153997/20 and 154002/20.)

In the Matter of 87TH STREET SHERRY ASSOCIATES, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index No. 153995/20.)

In the Matter of 87TH STREET SHERRY ASSOCIATES, LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index No. 153999/20.)

In the Matter of CLERMONT YORK ASSOCIATES, LLC, Appellant,
v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY
RENEWAL, Respondent.

In the Matter of 160 EAST 84TH STREET ASSOCIATES LLC, Ap-
pellant, v NEW YORK STATE DIVISION OF HOUSING AND COM-
MUNITY RENEWAL, Respondent. (Index Nos. 157563/20,
157573/20 and 157580/20.)

Submitted January 21, 2025; decided February 20, 2025

Reported below, 209 AD3d 517; 202 AD3d 610; 205 AD3d 601; 209 AD3d 477; 209
AD3d 484; 205 AD3d 635.

Motion for reargument denied [*see* — NY3d —, 2024 NY Slip
Op 06377 (2024); — NY3d —, 2024 NY Slip Op 06375 (2024);
— NY3d —, 2024 NY Slip Op 06376 (2024); — NY3d —, 2024
NY Slip Op 06378 (2024); — NY3d —, 2024 NY Slip Op 06379
(2024); — NY3d —, 2024 NY Slip Op 06380 (2024); — NY3d
—, 2024 NY Slip Op 06381 (2024); — NY3d —, 2024 NY Slip
Op 06382 (2024); — NY3d —, 2024 NY Slip Op 06383 (2024)].

BOLD BROADCASTING, LLC, Doing Business as BOLD MEDIA, Ap-
pellant, v WAWALOAM RESERVATION, INC., Respondent.

Submitted November 18, 2024; decided February 20, 2025

Reported below, 231 AD3d 1003.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

SHERLY CADET, Appellant, v LINDA S. AYERS et al., Respon-
dents.

Submitted December 9, 2024; decided February 20, 2025

Reported below, 203 AD3d 539.

Motion to vacate this Court's October 29, 2024 dismissal or-
der denied. Motion for financial relief dismissed as academic.

C.M., Respondent, v WEST BABYLON UNION FREE SCHOOL DIS-
TRICT et al., Appellants.

Submitted November 25, 2024; decided February 20, 2025

Reported below, 231 AD3d 809.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JONATHAN W. DAVENPORT, Appellant, v NEW YORK STATE DEPARTMENT OF FINANCIAL SERVICES et al., Respondents.

Submitted November 25, 2024; decided February 20, 2025

Reported below, 230 AD3d 1058.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no constitutional question is directly involved. Motion for leave to appeal denied with one hundred dollars costs and necessary reproduction disbursements.

LESLIE MOORE MIRA, Appellant, v ARGUS MEDIA et al., Respondents.

Submitted December 30, 2024; decided February 20, 2025

Reported below, 222 AD3d 528.

Motion to vacate this Court's July 18, 2024 dismissal order denied.

In the Matter of DeVONTÉ MOORER, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted November 25, 2024; decided February 20, 2025

Reported below, 230 AD3d 1454.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as confirmed the portion of the determination concerning the weapon possession charge, dismissed upon the ground that the issues presented have become moot; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER FARRELL, Appellant.

Submitted February 18, 2025; decided February 20, 2025

Motion by Animal Legal Defense Fund et al. for leave to file a brief amici curiae on the appeal herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [1] [iii]).

In the Matter of the Estate of ALAN GERALD PRINCE, Deceased.
DAVID MARC PRINCE, Appellant, v ROBERTO MACHADO, Respondent.

Submitted November 12, 2024; decided February 20, 2025

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]). Motion for financial relief dismissed as academic.

In the Matter of WYTHE AVENUE PROPERTIES, LLC, Appellant, v
TAX COMMISSION OF THE CITY OF NEW YORK et al., Respondents. (And Related Proceedings.)

Submitted December 2, 2024; decided February 20, 2025

Reported below, 226 AD3d 696.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

ANNULMENT OF MARRIAGE.

See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

ACADEMIC AND MOOT QUESTIONS.

1. The Appellate Division order affirming the dismissal of a combined CPLR article 78 proceeding and action for a declaratory judgment was affirmed as the Appellate Division did not abuse its discretion in declining to invoke the mootness exception to review the merits of certain of petitioner's challenges in the proceeding. *Matter of Prisoners' Legal Servs. of N.Y. v New York State Dept. of Corr. & Community Supervision*, 42 NY3d 936.

PARTIES AGGRIEVED.

2. Employer and Carrier Aggrieved by Order Dismissing Workers' Compensation Law Claim They Filed on Behalf of Employee.—Where an employer or its carrier has filed a Workers' Compensation Law claim on behalf of an employee, requested an administrative determination on the claim, and opposed claimant's arguments that no workers' compensation award should be made, the employer and its carrier are aggrieved by an Appellate Division order reversing an award in claimant's favor and dismissing the claim. To the extent *Matter of Parks v Weaver* (14 NY2d 546 [1964]) provides to the contrary, it should not be followed. *Matter of Timperio v Bronx-Lebanon Hosp.*, 42 NY3d 307.

TIMELINESS.

3. Motion for Leave to Appeal — Start of 30-Day Period for Making Motion Where Order Served by Filing on Trial Court's Electronic Docket.—Defendant's motion to dismiss the appeal as against it was granted, where plaintiffs' motion for leave to appeal to the Court of Appeals was filed 31 days after defendant served

APPEAL—Cont'd

plaintiffs with a copy of the Appellate Division order by filing on the trial court's New York State Courts Electronic Filing System (NYSCEF) docket and was therefore untimely. To be effective to start CPLR 5513 (b)'s 30-day clock, service must comply with CPLR 2103. CPLR 2103 (b) (7), in turn, empowers the Chief Administrative Judge to authorize electronic service. Under Uniform Rules for Trial Courts (22 NYCRR) § 202.5-b (h) (2), in actions that are subject to electronic filing, parties may serve "notice of entry of an order" by filing "a copy of the order . . . and written notice of its entry" on its NYSCEF site, thus causing that site to transmit "notification of receipt of the documents, which shall constitute service thereof by the filer." The relevant rules are not limited to service of trial court orders; and they neither prohibit nor render ineffective service of an intermediate appellate court order with notice of its entry by filing on the trial court's NYSCEF docket—as opposed to the NYSCEF docket of the intermediate appellate court. Thus, in an electronic filing case, service via filing on the NYSCEF docket for the trial court is effective to start CPLR 5513 (b)'s 30-day clock. *Ruisech v Structure Tone Inc.*, 42 NY3d 1061.

ARBITRATION.

See, also, INSURANCE

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

CITIES.

See MUNICIPAL CORPORATIONS

CIVIL RIGHTS.**DISCRIMINATION IN EMPLOYMENT.**

1. Liability of Coworkers.—Plaintiff's discrimination and hostile work environment claims under the New York State and New York City Human Rights Laws (HRL) against defendant faculty members who subjected her to offensive and demeaning conduct during her employment by defendant university were properly dismissed, where the district court in plaintiff's nearly identical federal action found that the individual defendants held no supervisory role over plaintiff. The district court noted that it was undisputed that the individual defendants were plaintiff's coworkers, rather than her supervisors. That finding precluded any determination to the contrary in the state litigation, and so plaintiff's first theory of liability based on any alleged supervisory role was rejected. With respect to aiding and abetting liability, there could be no such liability given that the predicate claims against defendant university were properly dismissed. Moreover, while the City HRL expressly provides for liability at the individual employee level, it does not, as written, permit coworkers to be held liable absent a role in administering

CIVIL RIGHTS—Cont'd

the compensation, terms, conditions, or privileges of a plaintiff's employment. The text of the statute does not support unlimited liability for all coworkers, but instead ties that liability to the power to affect specified features of plaintiff's employment. *Russell v New York Univ.*, 42 NY3d 377.

STATE DIVISION OF HUMAN RIGHTS.

2. Discrimination in Employment — Ministerial Exception.—The ministerial exception, a doctrine which protects the rights of religious institutions to decide for themselves, free from state interference, matters of church government, is an affirmative defense to claims brought under laws governing the employment relationship between a religious institution and certain key employees, not a jurisdictional bar. Accordingly, in a proceeding pursuant to Human Rights Law § 298 arising out of petitioner's termination from his position as a Catholic priest, the order of respondent New York State Division of Human Rights dismissing petitioner's hostile work environment claim on the ground that the ministerial exception deprived respondent of jurisdiction over the complaint was affected by an error of law. Respondent's determination was contrary to the U.S. Supreme Court's express holding that the exception operates as an affirmative defense to an otherwise cognizable claim, not a jurisdictional bar. Thus, once the employer raised the ministerial exception as one of several affirmative defenses, the question confronting respondent was not whether the exception limited its power to consider petitioner's claim, but whether any of the employer's affirmative defenses, including the two statutory defenses raised, established that the case could not proceed beyond its current stage. *Matter of Ibhawa v New York State Div. of Human Rights*, 42 NY3d 744.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles

RETIREMENT AND PENSION BENEFITS.

1. Accidental Disability Retirement.—Substantial evidence supported respondent's determination denying petitioner former police officer's application for accidental disability retirement benefits on the ground that the incident—petitioner fell into a hole while on patrol—was not an “accident” under Retirement and Social Security Law § 363 because it resulted from a risk inherent in petitioner's job. Petitioner was injured when, on routine patrol, he fell into a hole in the ground in an unlit area at night while investigating a suspicious light from within a vacant house that was under construction. On the record here, respondent reasonably and plausibly determined that petitioner's risk of being injured by an unseen hazard while investigating a potential crime in the dark was inherent in his ordinary job duties as a patrol officer. *Matter of Compagnone v DiNapoli*, 42 NY3d 1075.

2. Accidental Disability Retirement — What Constitutes Accident.—In a CPLR article 78 proceeding challenging the determination by the Medical Board of respondent Teachers' Retirement System of the City of New York denying petitioner's application for accidental disability retirement benefits based upon her post-traumatic stress disorder (PTSD) diagnosis following a series of events at her former school where a food-service worker left her feeling threatened and harassed, substantial evidence supported the determination that petitioner's injury was not caused by an “accident” within the meaning of Retirement and Social Security Law § 605 (f). When a member's disability is alleged to have resulted from the intentional acts of any third party, the relevant question is whether the injury-causing event was sudden, unexpected, and outside the risks inherent in the work performed. The record supported the Board's determination that petitioner's injuries did not result from such an event. Although petitioner claimed that her PTSD was brought on by a particular occurrence which caused petitioner to flee the school building and never return to work, that event was merely the latest of a series of incidents in which the food-service worker trespassed on school property and acted in a confrontational manner toward petitioner, causing her significant stress and anxiety. *Matter of Rawlins v Teachers' Retirement Sys. of the City of N.Y.*, 42 NY3d 315.

CLUBS.

See ASSOCIATIONS

CONDEMNATION.

See EMINENT DOMAIN

CONFLICT OF LAWS.**WHAT LAW GOVERNS.**

1. Internal Affairs Doctrine — Substantive Law of Place of Incorporation.—The substantive law of a company's place of incorporation presumptively applies to causes of action arising from its internal affairs. In order to overcome this presumption and establish the applicability of New York law, a party must demonstrate both that the interest of the place of incorporation is minimal and that New York has a dominant interest in applying its own substantive law. Accordingly, in an action arising out of a merger between defendant Scottish company and the United States assets of another foreign corporation, the Appellate Division properly held that Scots law, the law of the company's place of incorporation, presumptively applied to plaintiffs' claims, and plaintiffs' allegations were insufficient to overcome the presumption. Plaintiffs' allegations involved the internal affairs of the Scottish company, as the complaint centered around the valuation of merger consideration by the director defendants in the course of approving a merger agreement and their legal duties to certain shareholders as it pertained to those actions. The company had considerable contacts with Scotland, as five of the plaintiffs founded the company in Scotland and registered it under the United Kingdom Companies Act, its articles of association expressly referenced the Act as the governing law, it maintained offices in Scotland, and a plurality of the plaintiffs lived in Scotland. Moreover, New York did not have a dominant interest in applying its own law, as only 10-15% of the company's total revenue was derived from New York customers. *Eccles v Shamrock Capital Advisors, LLC*, 42 NY3d 321.

CONSTITUTIONAL LAW.**COMMERCE CLAUSE.**

1. Dormant Commerce Clause — Corporate Franchise Tax Deductions for Royalty Payments Received from Nontaxpayer Foreign Affiliates.—Tax Law former § 208 (9) (o), which permits corporations that paid franchise taxes in New York to deduct income received as royalty payments from members of the same corporate group only where the related subsidiary had already paid a New York tax on the same income and was therefore required to add those payments back on a New York tax return, does not violate the dormant Commerce Clause. Under the dormant Commerce Clause, states may not tax a transaction or incident more heavily when it crosses state lines than when it occurs entirely within the state or impose a tax which provides a direct commercial advantage to local business, or subjects interstate commerce to the burden of multiple taxation. At the corporate group level, Tax Law former § 208 (9) (o) treated groups with related members who did not pay taxes in New York the same as those with related members who did. The income only had to be included on a New York tax return once, resulting in a neutral economic impact on the corporate group as a whole. Regardless of what tax may be applied to royalty payments in a foreign jurisdiction, the mere inclusion of such payments to a parent company's total taxable income does not result in an unconstitutional burden on interstate commerce as with each additional foreign dollar added, the portion of that company's income attributable to New York State will decrease. As the tax scheme would not result in duplicative taxation in all, or even in most, situations, it is not inherently discriminatory. To the extent that duplicative taxation may sometimes occur, it is the incidental result of the interaction of two different but nondiscriminatory and internally consistent schemes. *Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y.*, 42 NY3d 538.

FREEDOM OF RELIGION.

2. Employer Health Insurance Coverage for Medically Necessary Abortion Services — Religious Employer Exemption.—The regulation requiring New York

CONSTITUTIONAL LAW—Cont'd

employer health insurance policies that provide hospital, surgical, or medical expense coverage to include coverage for medically necessary abortion services (11 NYCRR 52.16 [o] [1]) and the criteria delineating a “religious employer” for purposes of an exemption from that requirement (11 NYCRR 52.2 [y]) are generally applicable and do not violate the Free Exercise Clause of the United States Constitution, as they do not allow for standardless and discretionary individualized exemptions, nor for comparable secular conduct while discriminating against religious conduct. The “religious employer” exemption is not subject to the discretionary determination by a municipal official that allows the government to consider the reasons for the person’s conduct and whether noncompliance with the policy is worthy of solicitude. Instead, a “religious employer” is defined by objective criteria delineated in the regulation itself and once met, the employer may claim the exemption. Neither an entity’s decision to claim the exemption nor an insurer’s determination as to an entity’s satisfaction of the criteria invites the government to consider the particular reasons for a person’s conduct by providing a mechanism for individualized exemptions. Moreover, New York State permits no secular conduct that undermines its interests in the insurance-based provision of medically necessary abortion services. The exemption is an attempt to ameliorate the burden posed on a class of entities that would likely be the most burdened by the mandate. Thus, the exemption provides a way to accommodate religious beliefs in some cases. In doing so, the regulation favors religious exercise rather than discriminates against it. *Roman Catholic Diocese of Albany v Vullo*, 42 NY3d 213.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

AMBIGUOUS CONTRACTS.

1. Effective Date Clause — One Reasonable Interpretation.—In a breach of contract action where the parties disputed whether an amendment to a referral agreement modified the agreement’s effective date, the provision that “[e]ach of the undersigned hereby agrees that *the with affect as of the date hereof* and notwithstanding anything to the contrary in the Agreement” (emphasis added) did not create a factual issue with respect to the length of the term, because that language was susceptible to only one reasonable interpretation. “[T]he with affect as of the date hereof” could easily be understood to mean “with effect as of the date hereof” by setting aside a plainly extraneous article (“the”) and correcting a common, one-letter spelling error (“effect” versus “affect”). Employing this commonsense reading, that section of the agreement had no impact on the length of the term. As written, it neither referenced the effective date nor purported to amend the term of the agreement. There were no extraneous capital letters in the clause or anything else that reasonably suggested an intent to amend the effective date of the original agreement rather than simply to use the word “effect” or “affect.” Given the amendment’s emphasized language that “[u]nless otherwise defined, capitalized terms used herein shall have the meaning ascribed to them under the Agreement,” and its further warning that the original agreement would be “unchanged” except as “specifically provided above,” no reasonable person could have read the minor typographical errors in the section as amending the effective date, much less as extending the duration of the term. *MAK Tech. Holdings Inc. v Anyvision Interactive Tech. Ltd.*, 42 NY3d 570.

CONSTRUCTION.

2. Contingent Resource Payment Agreement — Plaintiffs Barred from Commencing Action to Enforce Third-Party Beneficiary Rights.—A provision of a contingent resource payment (CRP) agreement unambiguously barred plaintiffs, who were shareholders of an oil and gas company acquired by defendants, from commencing an action on their own behalf to enforce their third-party beneficiary rights under the agreement. Pursuant to the agreement, the shareholders, such as plaintiffs, became holders of receipts evincing their entitlement to a CRP. The

CONTRACTS—Cont'd

agreement denominated holders of more than 25% of the receipts as required holders and empowered a holder committee to act as the holders' agent in certain circumstances. The provision in question negated any right of the holders except as "expressly set forth" therein, and it expressly set forth the right of the required holders or the holder committee to commence certain types of actions or proceedings. Nothing in the provision expressly set forth a right of the holders to commence an action on their own behalf or otherwise. The agreement thus explicitly negated any right of plaintiffs to commence an action on their own behalf to enforce the covenants set forth in the agreement. To the extent that any other provisions in the agreement could be read to imply such a right, the provision's restrictions on the right to sue prevailed "[n]otwithstanding anything to the contrary in th[e] Agreement." Moreover, the final sentence of the provision established that enforcement of the covenants was "[s]ubject to" those restrictions. *Mulacek v ExxonMobil Corp.*, 42 NY3d 931.

REPUDIATION.

3. Unequivocal Refusal to Perform Obligations.—In an action arising out of a lease agreement pursuant to which plaintiff would develop property owned by defendant upon approval of a "cure" agreement with the New York City Department of Housing Preservation and Development (HPD), plaintiff sufficiently alleged a cognizable cause of action that defendant's statement in a letter to HPD that it would "never" approve "any" cure agreement because of plaintiff's alleged failure to account for court-adjudicated rent-stabilized tenancies was a repudiation of defendant's core obligations under the parties' agreement. To constitute repudiation, there must be some express and absolute refusal to perform that is positive and unequivocal. According to the complaint, defendant's refusal to sign the 2015 proposed cure agreement (PCA) was based on a specific aspect of the agreement that defendant claimed was not compliant with the lease and therefore needed to be modified for defendant to execute the PCA. By comparison, the complaint alleged that defendant's letter to HPD in 2021 was a blanket refusal to sign "any" cure agreement. Under the circumstances, the complaint sufficiently alleged that defendant's refusal to sign the PCA in 2015 fell short of its contractual requirements without amounting to a total breach. Defendant's conduct in 2015 was not accompanied by any statement or indication that it would never perform its obligations with respect to the PCA, potentially making it different in kind from the 2021 letter, which the complaint alleged constituted a clear and unequivocal statement that defendant would never perform its obligations at any point. Thus, plaintiff sufficiently demonstrated that defendant's 2021 statement was both a new development and a distinct material breach that escalated, for the first time, to an unequivocal repudiation. *Audthan LLC v Nick & Duke, LLC*, 42 NY3d 292.

CORPORATIONS.**OFFICERS AND DIRECTORS.**

1. Shareholders' Claim for Breach of Fiduciary Duty under Scots Law.—In an action by plaintiffs, common shareholders and founding members of a Scottish company, alleging that defendants, the company's directors, breached their fiduciary duties by deliberately undervaluing the company's assets during merger negotiations which ultimately prevented plaintiffs from receiving any consideration based on the merger, plaintiffs sufficiently stated a claim under Scots law that defendants at least owed limited fiduciary duties to plaintiffs. The fiduciary duties owed by a director to a shareholder personally are dependent on establishing a special factual relationship between the director and the shareholder in the particular case. The interaction between the waterfall provision in the company's articles of association and defendants' drag-along rights left the common shareholders in an especially vulnerable position. The arrangement could have given rise to an inference that defendants, in being vested with the power to negotiate a merger agreement and subsequently value intangible merger consideration, undertook a duty not to undermine the common shareholders' interests in those transactions, much less to do so for their own self-interest. In effect, defendants could have been

CORPORATIONS—Cont'd

deemed entrusted with properly valuing and distributing any merger consideration so as to protect the common shareholders' interest in any corporate value in excess of the stated amount. A finding that no such limited duty existed would effectively hold that, by authorizing the restructuring, plaintiffs agreed that defendants should be allowed to prefer and promote their own interests at the expense of the common shareholders by intentionally undervaluing the merger consideration. Based on the unique circumstances of the case, plaintiffs' allegations at least gave rise to a possible inference that special circumstances were present, and defendants' documentary evidence did not utterly refute the allegations. *Eccles v Shamrock Capital Advisors, LLC*, 42 NY3d 321.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS

COURT OF CLAIMS.

See STATE

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

APPEAL.

1. Preservation of Issue for Review.—Defendant's argument regarding whether the initial stop of defendant constituted a level four encounter with police was unpreserved for review by the Court of Appeals. *People v Watkins*, 42 NY3d 1074.

2. Preservation of Issue for Review.—Defendant's argument that the showup identification procedure was unduly suggestive because of its collective nature—defendant was presented for identification alongside his two codefendants—and, specifically, that the strength of the victim's identification as to one of the codefendants infected the identification of defendant, was unpreserved. *People v Garcia*, 42 NY3d 1077.

ARSON.

3. Legal Sufficiency of Evidence.—In defendant's prosecution for starting a fire inside the cuffing port of his cell while incarcerated, the evidence presented at trial was legally sufficient to sustain defendant's conviction of arson in the second degree. Appellate counsel expressly stated that for the purposes of his legal insufficiency claim, defendant was making no argument based on lack of intent. He also explained that although the metal cell door should not be deemed to be a "building" for the purposes of the arson statutes, he could not advance that argument on appeal because defendant's trial counsel had taken the position that the metal door was a "building" within the meaning of Penal Law § 150.15. With those two concessions, the argument pressed by defendant on appeal was that the cuffing port was not part of the door. However, the Appellate Division's finding that the cuffing port "was a built-in, integral part of the door" was supported by the record. The cuffing port is bolted into an iron cell door for the purpose of handcuffing and/or delivering food or other items to incarcerated people in solitary confinement. Because it is a necessary part of that door's functionality, and because defendant's counsel conceded the door to his cell was a "building," the evidence that the cuffing port was burned was legally sufficient to sustain his conviction. *People v Sidbury*, 42 NY3d 497.

DEFENDANT AS WITNESS.

4. Impeachment — *Sandoval* Material.—The trial court in defendant's prosecution for sexual assault abused its discretion in ruling that defendant could be cross-examined about prior, uncharged alleged bad acts and despicable behavior which was immaterial to his in-court credibility, and which served no purpose

CRIMES—Cont'd

other than to display for the jury defendant's loathsome character. The ruling necessarily and impermissibly impacted defendant's decision whether to take the stand in his defense and thus undermined the fact-finding process in the case, which turned on the credibility of the parties. The question for trial courts is whether the evidence shows a defendant's lack of in-court veracity. If so, the evidence may be admitted, if not unduly prejudicial, for the limited purpose of attacking credibility. Here, the trial court's *Sandoval* ruling—to the extent it permitted the prosecution to cross-examine defendant about bullying and fits of anger towards employees, restaurant workers, and business associates—was an abuse of discretion. Defendant had no criminal history, many of the acts approved for cross-examination by the court were not criminal in nature and had little if any probative value as to defendant's lack of in-court veracity, while also prejudicing the jury against defendant. The ruling necessarily undesirably deterred defendant from taking the stand and thereby denied the jury significant material evidence. *People v Weinstein*, 42 NY3d 439.

DISCLOSURE.

5. Notice of Intention to Offer Psychiatric Evidence.—The trial court abused its discretion as a matter of law and impinged defendant's constitutional right to present a defense and call witnesses by improperly precluding his psychiatric defense under CPL 250.10 as untimely. To sanction a defendant for failure to comply with the statutory notice requirement, the court must weigh the defendant's constitutional right to a defense against prejudice to the People from late notice. The People never asserted that the late notice would prejudice them, and the trial court did not consider potential prejudice to the People or alternatives that might cure any prejudice. Moreover, the court based its preclusion of the proffered expert testimony in part on its own diagnosis that defendant was competent and manipulating the system. Evaluating a defendant's competency is a present-tense determination, related to a defendant's capacity to understand legal proceedings. By contrast, the psychiatric evidence defendant intended to present focused on his capacity to form the requisite mens rea at the time of the crime. The court also impermissibly based its decision to preclude the expert's testimony on its view that the psychiatric defense would have failed. The court could not have made any preliminary threshold determination about the defense without, for example, reviewing the expert's report that had not yet been written. Also, the court's view that a psychiatric defense supported by a qualified expert would fail should not figure into the calculus in deciding whether to allow a late notice, especially where prejudice had not been implicated. *People v Sidbury*, 42 NY3d 497.

EVIDENCE.

6. Chain of Custody — Reasonable Assurances of Identity and Condition of Evidence.—In defendant's prosecution for criminally possessing cocaine, the People laid a legally sufficient foundation for admission of the drugs into evidence notwithstanding a gap in the custodial chain, where the People's showing established a legally adequate chain of custody and provided reasonable assurances of the identity and unchanged condition of the evidence. The primary focus of the reasonable assurances inquiry is on whether, during the gap in the chain of custody, some unknown party could have caused a material and prejudicial change in the condition or nature of the evidence. The gap here spanned only a few hours overnight and at all times the drugs remained safely under police control in an identifiable location at a precinct station and were found where they were supposed to be when an officer arrived to voucher the evidence. Moreover, if a gap is brief and logical explanations for the inconsistencies are provided, or can reasonably be inferred from the surrounding circumstances, discrepancies in the record regarding the condition, appearance, or handling of contraband merely raise weight and credibility issues for the jury to resolve. While there were discrepancies relating to the descriptions of the evidence in the voucher invoice and felony complaint, the officer responsible for both documents was capably cross-examined by defendant, identified the evidence as items recovered from defendant at the scene, and admitted that the felony complaint misdescribed those items. The photograph of

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the evidence corroborated the witnesses' trial testimony concerning the items included in the narcotics envelope, and there was no gap in the custodial chain or evidence of tampering between when an officer took the photograph and sealed the evidence, and when the criminologist took possession of the still-sealed package with its unique identification numbers. *People v Baez*, 42 NY3d 124.

FAIR TRIAL.

7. Proof of Other Crimes and *Sandoval* Material.—In a sexual assault prosecution, the trial court's erroneous *Molineux* and *Sandoval* rulings admitting testimony of uncharged, alleged prior sexual acts against three women other than complainants and permitting defendant, who had no criminal history, to be cross-examined about those allegations and other uncharged bad acts deprived defendant of his right to a fair trial. The *Molineux* witnesses' testimony bolstered complainants' testimony, thereby impacting the jury's credibility determination. Although framed as evidence of defendant's intent to use forcible compulsion and his awareness of the victims' lack of consent, the testimony of the three *Molineux* witnesses was, in courtroom reality, evidence of defendant's propensity to commit the crimes charged. Moreover, the erroneous *Sandoval* ruling allowing the prosecution to cross-examine defendant about allegations of charged and uncharged bad acts was inclusive of behavior that was loathsome but not the type of conduct that would assist the jury in measuring his credibility on the stand. The ruling thus served to discourage defendant from exercising his rights to present a defense and testify on his behalf. Even if the errors were subject to a nonconstitutional harmless-error analysis, they would not be deemed harmless. The whole case turned on a close question of credibility. Even if the evidence against defendant was regarded as overwhelming, there remained a significant probability that, absent the trial court's erroneous *Molineux* ruling, the jury would have acquitted defendant, and the erroneous *Sandoval* determination might have affected defendant's decision whether to testify and provide critical information. *People v Weinstein*, 42 NY3d 439.

8. Right to Present Defense — Prosecution Monitoring Telephone Calls Made to Trial Witnesses from Jail.—In a sexual assault prosecution in which the pro se defendant was remanded mid-trial for his actions related to a sexually disparaging blog about one of the complainants posted the evening before she was scheduled to testify, defendant's constitutional right to present a defense was not impaired by the People's monitoring of the telephone calls he made to his trial witnesses from jail. Defendant was out on bail for nearly the entire two years between indictment and his mid-trial remand, including more than six months while representing himself, giving him ample time to prepare his witnesses. Even after remand, there was no dispute that defendant had means other than the recorded phone lines to prepare his witnesses. The court was proactive in protecting defendant's rights, permitting him time in the courtroom to speak to each of his witnesses in private before their testimony. The court also noted that defendant had been assigned a legal advisor and an investigator, both of whom had the expertise and wherewithal to assist in the preparation of the defense. Defendant became aware that the People were listening to his phone conversations only after he had presented the direct testimony of his daughter and an expert. Aside from himself, the only remaining defense witnesses provided character testimony and little else that could be considered relevant to the case. Thus, any chilling effect here was negligible. *People v Dixon*, 42 NY3d 609.

HARMLESS AND PREJUDICIAL ERROR.

9. Admission of Codefendant's Statement.—Assuming, without deciding, that the introduction of codefendant's statement was a *Bruton* error (see *Bruton v United States*, 391 US 123 [1968]), any such error was harmless. The evidence of defendant's guilt, specifically the incriminating testimony of two acquaintances who were eyewitnesses to the crime, was overwhelming and there was no reasonable possibility that the admission of codefendant's statement affected the verdict. *People v Williams*, 42 NY3d 1049.

10. Improper Admission of Statements in Violation of Hearsay Rule.—In the prosecution of defendant for allegedly stabbing his wife, the errors in admitting

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the statement by a 911 caller stating that the victim had been stabbed and a statement by defendant's son indicating that defendant was the attacker in violation of the hearsay rule were harmless. Because the statements supplied information properly provided to the jury through several testifying witnesses and the victim's medical records, there was no significant probability that the jury would have acquitted the defendant had it not been for their admission. *People v Vargas*, 42 NY3d 983.

11. Improper Admission of Testimony in Violation of Right to Confrontation.—In the prosecution of defendant for allegedly stabbing his wife, the admission of police testimony recounting out-of-court statements by the victim's daughter describing the attack in violation of defendant's Sixth Amendment right to confrontation was harmless, as the evidence against defendant was overwhelming, particularly as it related to the critical issue of intent. The evidence that was properly admitted left no doubt that defendant acted with the intent to cause the victim serious physical injury, and rendered the improper testimony recounting the daughter's description of the attack redundant and therefore harmless. There was no reasonable possibility that the error might have contributed to defendant's conviction. *People v Vargas*, 42 NY3d 983.

12. Plea of Guilty — Improper Denial of Motion to Suppress Statement.—Defendant, who pleaded guilty to attempted second-degree criminal possession of a weapon after a trial court ruling denying his motion to suppress the weapon and a statement made to police, which ruling was partially reversed on appeal with respect to the statement, was entitled to vacatur of his plea as it could not be said with certainty that the erroneous ruling played no part in his decision to plead guilty. While guilty pleas are generally not amenable to harmless error review, where the error is of constitutional dimension, courts must evaluate whether the People's remaining proof in the case constitutes overwhelming proof of defendant's guilt, and whether there is a reasonable possibility that the error contributed to the defendant's decision to plead guilty. Here, notwithstanding that the weapon would still have been admissible at trial, the record was ambiguous as to defendant's motivation in pleading guilty. Defendant asserted during the plea colloquy that he was "pleading guilty because it's a good deal," but he may only have believed that in the face of all the evidence admissible at the time, including his highly incriminating post-arrest statement "you saw what I had on me." Moreover, when entering his plea, defendant affirmatively sought assurances from the court that he could appeal the suppression determination, indicating the importance he placed on that adverse ruling. *People v Robles*, 42 NY3d 694.

IDENTIFICATION OF DEFENDANT.

13. Showup — Procedures Conducted Immediately after Arrest in Close Proximity to Crime Scene.—In defendant's robbery prosecution, the courts below did not err in holding that the showup identification procedures used immediately after defendant's arrest were not unduly suggestive. A showup procedure in which a suspect is handcuffed and in the presence of police is reasonable under the circumstances when it is conducted in close geographic and temporal proximity to the crime. When a showup is done as part of one unbroken chain of events—crime, escape, pursuit, apprehension and identifications—such a procedure is acceptable. The showups here were conducted within a few blocks of the crime scene and took place immediately after the robbery and defendant's apprehension. That defendant was handcuffed and in the presence of police officers was not unusual for a crime-scene showup justified by exigency, particularly where a weapon may have been used in the crime. Given that the police were looking for armed robbers, they logically would have wanted to move as quickly as possible to find out whether they had apprehended the perpetrator, and a showup is not improper merely because the police already have probable cause to detain a suspect. That the police may have had cause to arrest defendant for trespass did little to mitigate the concern that, if he was not identified by the victims as one of the robbers, the perpetrators of that crime might have remained at large in the community. Moreover, defendant was not shown handcuffed in the back of a police car, he was not shown to the wit-

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nesses with any evidence of the stolen property, and the showups were conducted separately—reducing any risk of the witnesses inadvertently influencing each other. *People v Wright*, 42 NY3d 708.

JURORS.

14. Selection of Jury—*Batson* Violation — Court Supplied Race-Neutral Reason for Peremptory Strike and Prosecution Remained Silent.—A *Batson* violation occurred during defendant's trial when, in response to the prosecution's exercise of a peremptory challenge against a prospective African-American juror, the court stepped in to provide a race-neutral explanation and the prosecution remained silent. Accordingly, defendant was entitled to a new trial. Under the well-established *Batson* framework (*Batson v Kentucky*, 476 US 79 [1986]), once a prima facie showing of discrimination is made, the nonmovant must come forward with a race-neutral explanation, and if the nonmovant fails to meet this burden, an equal protection violation is established. When the court supplied a race-neutral reason for the peremptory strike, it failed to hold the prosecution to its burden and instead, effectively became an advocate for the prosecution, thus abandoning its *Batson*-specific duty to consider the prosecutor's race-neutral explanations in light of all of the relevant facts and circumstances, and in light of the arguments of the parties. *People v Estwick*, 42 NY3d 92.

15. Selection of Jury — *Batson* Challenges — Race-Neutral Reasons for Exercising Peremptory Strikes.—In the criminal prosecution of defendant, a Black man, there was record support for the determinations of the courts below that the People had valid, race-neutral reasons for exercising peremptory strikes on two Black prospective jurors. Overall, the first juror's responses during voir dire gave rise to reasonable inferences that he viewed an arrest of his cousin for marijuana possession as a crime against his cousin, he viewed the arrest of his cousin as a "raid" by police, and that his negative feelings towards police could have affected his view of police witnesses in the case, regardless of any contradictory assurances he might have given. Those inferences were patently reasonable and the trial court's determination that the nondiscriminatory reasons offered by the People in support of their peremptory strike were credible and nonpretextual was supported in the record. Although there were other prospective jurors whose family members had also been arrested, the record did not indicate that those jurors shared the feelings of the juror in question about the police or felt as strongly as he did about their respective incidents. None of the other jurors made comments indicating that they felt the arrest in question was wrong, or that they had lingering negative feelings about it. Additionally, the People expressed concern that the second juror's job duties would cause her to be inappropriately sympathetic to defendant. A party may permissibly strike a juror who works in a certain field because that party believes, for reasons unrelated to the facts of the case, that such individual may have a more sympathetic attitude or view toward the opposing party. *People v Wright*, 42 NY3d 708.

JUSTIFICATION.

16. Failure to Give Instruction on Murder Charge — Effect on Possession of Weapon Charge.—In a prosecution arising from an incident in which defendant shot six times and killed the victim who had stood in a shop doorway, told defendant he could not leave, and held a razor blade against defendant's face, threatening to cut him from ear to ear, reversal of defendant's conviction for second-degree criminal possession of a weapon was required where the trial court's error in failing to provide the jury with a justification instruction on the charge of second-degree murder may have affected the verdict on the possession count. Justification is not available as a defense to a possessory offense, including possession of a weapon with intent to use it unlawfully against another person. However, if the jury was properly instructed on justification on the murder charge, it might have concluded that defendant acted lawfully when he shot and killed the victim in self-defense and that defendant lacked the requisite intent for the possession charge. Thus, with respect to the possessory offense, the jury must be instructed that, while justification is not a defense to that crime, in the event the jury finds that

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the shooting was justified, that lawful use of the weapon cannot be considered as proof of the unlawful intent element of the possession charge. *People v Castillo*, 42 NY3d 628.

17. Use of Deadly Physical Force — Continuing Threat of Initial Aggressor Victim.—Defendant, who shot six times and killed the victim who had stood in a shop doorway, told defendant he could not leave, and held a razor blade against defendant's face, threatening to cut him from ear to ear, was entitled to a justification instruction on his second-degree murder charge. A person may use physical force to defend himself against an assailant's "imminent use of unlawful physical force," but may not use deadly physical force unless "[t]he [person] reasonably believes that [the assailant] is using or about to use deadly physical force" (Penal Law § 35.15 [1], [2] [a]). A court considering a request for a justification charge examines the evidence in the light most favorable to the defendant, and must provide the instruction if there is any reasonable view of the evidence that the defendant was justified in their actions. Here, it was undisputed that the victim was the initial aggressor and defendant faced an imminent threat of deadly force at the time the victim held the blade to his face. While defendant stepped back before drawing his gun and four of the bullets entered the victim's back because he apparently turned his body at some point, the entire altercation was over in approximately 30 seconds and the victim remained standing close to defendant. Under the circumstances it would not have been unreasonable for defendant to believe the victim continued to pose a threat. *People v Castillo*, 42 NY3d 628.

PROOF OF OTHER CRIMES.

18. Criminal Propensity.—The trial court in defendant's sexual assault prosecution erred in permitting *Molineux* evidence in the form of testimony from three women other than complainants alleging that defendant had also sexually assaulted them, where the prosecution failed to identify an issue, other than mere criminal propensity, to which the evidence was relevant. The complainants' respective testimonies were not equivocal on the issue of consent, as no reasonable person would understand complainants' described behavior as having communicated anything other than their rejection of sexual activity. Moreover, evidence of prior criminal acts to prove intent will often be unnecessary, and therefore should be precluded even though marginally relevant, where intent may be easily inferred from the commission of the act itself. Complainants testified that defendant used force and, thus, his intent to commit the crime would have been established if the jury believed their accounts and concluded that force was used. But the *Molineux* witnesses' prior experiences with defendant had no bearing on whether defendant used force against complainants. The testimony was therefore unnecessary and served to persuade the jury that, if he had attempted to coerce those three witnesses into nonconsensual sex, then he did the same to the victims on the dates and under the circumstances as charged. The testimony from the *Molineux* witnesses was unnecessary to establish defendant's intent and served only to establish defendant's propensity to commit the crimes charged. *People v Weinstein*, 42 NY3d 439.

19. Uncharged Drug Sale.—In defendant's prosecution for criminal possession of a controlled substance, the trial court did not err in holding that evidence that defendant had completed an uncharged drug sale hours before the search warrant was executed was relevant to defendant's constructive possession and intent to sell the drugs found in the apartment during execution of the search warrant. The uncharged sale occurred in the same apartment in which police subsequently recovered the drugs defendant was charged with possessing. *People v Hayward*, 42 NY3d 753.

RIGHT OF CONFRONTATION.

20. Criminal Justice Agency Interview Reports — Primary Purpose.—An out-of-court statement is testimonial when, viewed objectively, all the circumstances indicate its primary purpose was to create an out-of-court substitute for trial testimony. Accordingly, in defendant's prosecution for criminally possessing a gun found in the basement of the home he shared with two other people, introduction

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of the Criminal Justice Agency (CJA) report created upon defendant's arrest while awaiting arraignment reflecting his address as the "BSMT" of the home did not violate defendant's right of confrontation, as the primary purpose of the interview report was administrative rather than to create an out-of-court substitute for trial testimony. The CJA report was introduced as a business or public record, which are generally admissible absent confrontation because, having been created for the administration of an entity's affairs and not for the purpose of establishing or proving some fact at trial, they are not testimonial. Moreover, the primary purpose of a CJA interview and resulting report is administrative, not something tailored to establish or prove past events potentially relevant to later criminal prosecution. Its objective is to give the arraignment judge information pertaining to a defendant's suitability for pretrial release, not to elicit incriminating statements. A CJA interview report is routinely prepared for all arrestees in New York City, and the information collected is the same in every case, regardless of the particular facts or the elements of the relevant crime. The pedigree information collected, including the defendant's address, is pertinent to establishing community ties; it was only incidentally relevant in this case. The fact that the report became relevant during trial did not alter or diminish the primary purpose for which it was created. *People v Franklin*, 42 NY3d 157.

RIGHT TO COUNSEL.

21. Effective Representation — Appellate Counsel.—An order of the Appellate Division which denied defendant's application for a writ of error coram nobis to vacate, on the ground of ineffective assistance of appellate counsel, a prior order of the Appellate Division, was affirmed. Counsel did not present any claim raised below and thus raised no reviewable issues on appeal. Defendant is not precluded from filing another coram nobis application at the Appellate Division raising the ineffectiveness of his appellate counsel on his direct appeal of the judgment of conviction and sentence, nor is he precluded from filing a coram nobis application on any new grounds not previously raised before the Appellate Division. *People v Peters*, 42 NY3d 1050.

22. Effective Representation — Appellate Counsel's Failure to Raise Meritless Claim on Direct Appeal.—The Appellate Division erroneously concluded that the trial court in defendant's criminal prosecution violated defendant's right to be present at trial by removing him from the courtroom without warning during the announcement of the verdict and polling of the jury after his disruptive verbal outburst, and therefore incorrectly granted defendant's writ of error coram nobis on the sole ground that appellate counsel was ineffective for failing to raise that meritless claim on direct appeal. The trial court did not violate defendant's right because, at the time of trial, it was well established that warnings could be dispensed with when impracticable. The Appellate Division erroneously concluded that the law was clear that the trial court committed reversible error, and appellate counsel was not ineffective for failing to raise a meritless claim. Moreover, the affirmation from the supervising lawyer on defendant's direct appeal failed to establish that appellate counsel's advocacy did not reflect a competent grasp of the facts, law, or appellate procedure regarding a defendant's right to be present in the courtroom. The affirmation declared that supervising counsel did not consider raising a challenge to defendant's removal from the courtroom but failed to explain why. Counsel's silence as to the reasons for not considering the courtroom removal challenge could not be determined from the record. Thus, defendant failed to meet his burden on a coram nobis petition of demonstrating that counsel was ineffective for failing to raise the removal issue. *People v Dunton*, 42 NY3d 97.

23. Effective Representation — Failure to Impeach Prosecution Witness with Prior Inconsistent Statement — Record Inadequate to Establish Ineffective Assistance.—The record on direct appeal in defendant's robbery prosecution was inadequate to establish that defendant's trial counsel rendered ineffective assistance by failing to impeach a detective, who testified that the victim had identified defendant as the gunman in a lineup, with his suppression hearing testimony that the victim was unsure if defendant was the gunman. The contention that defense

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counsel unreasonably failed to impeach the detective with his own inconsistent testimony was not without some significance, but required consideration of matters outside the record to determine whether this was trial strategy. The possibility could not be ruled out that counsel may have elected to avoid calling the credibility of a sympathetic victim, a priest, into question during the cross-examination of the detective, and instead opted to focus the jury's attention on a different prior inconsistent statement, namely, the detective's sworn allegation in the felony complaint naming the codefendant as the gunman. Further, counsel may have concluded that raising the inconsistency risked reinforcing to the jury that the victim did, in fact, identify defendant as the gunman at the time of the lineup—even if he did so equivocally—which may have buttressed the detective's assertion that he merely made a clerical error in identifying the codefendant as the gunman in the complaint. *People v Lucas*, 42 NY3d 1055.

24. Effective Representation — Failure to Request Cross-Racial Eyewitness Identification Jury Instruction.—Defense counsel was not constitutionally ineffective for failing to request a cross-racial eyewitness identification jury instruction in defendant's prosecution for attempted assault of the non-Black Hispanic victim who identified defendant, a Black man, as his attacker, where no clear entitlement to such a charge existed at the time of defendant's trial and counsel's failure to request it therefore did not give rise to a single-error ineffective assistance of counsel claim. A cross-racial identification instruction is now mandatory upon request when identification is an issue in a criminal case and the identifying witness and defendant appear to be of different races. Entitlement to an identification charge had previously been always a matter for the trial judge's discretion, provided that the trial court conveyed to the jury that the People had to establish the perpetrator's identity beyond a reasonable doubt. Court of Appeals precedent had long vested the trial court with discretion over the content of an eyewitness identification charge. The Appellate Division had relied upon that precedent to consistently uphold the trial courts' exercise of discretion to omit the cross-racial portion of the identification charge, where the defendant neither introduced expert testimony regarding the cross-race effect nor cross-examined the People's witnesses about their ability to identify people of the defendant's race. Therefore, a legal argument in support of the cross-racial identification charge did not have clear prospects at the time of the representation or was otherwise so compelling that a failure to make it amounted to ineffective assistance of counsel. Given the state of the law at the time, the decision to forgo a request for the cross-racial identification charge was not the kind of egregious single error that rises to the level of ineffective assistance. *People v Watkins*, 42 NY3d 635.

25. Effective Representation — Failure to Request Cross-Racial Identification Instruction.—For the reasons set forth in *People v Watkins* (42 NY3d 635 [2024]), defense counsel's consent to the omission of a cross-racial identification instruction prior to the decision in *People v Boone* (30 NY3d 521 [2017]), which made such an instruction mandatory upon request, did not alone amount to ineffective assistance of counsel. *People v Lucas*, 42 NY3d 1055.

26. Effective Representation — Failure to Seek Suppression Based on Violation of Knock-and-Announce Rule.—In defendant's prosecution for criminal possession of a controlled substance, trial counsel's single alleged error—failing to move to suppress the physical evidence recovered by police during the execution of the search warrant on the ground that the police violated the knock-and-announce rule when executing the warrant—did not constitute ineffective assistance, because the omitted argument was not so clear-cut and dispositive that no reasonable defense counsel would have failed to assert it. Under New York's single-error standard, counsel is not ineffective when the success of the argument the defendant claims should have been made by counsel depended on the resolution of novel questions, or when, at the time of the defendant's trial, there was no clear appellate authority supporting the argument the defendant claims that counsel should have made. The United States Supreme Court has held that a violation of the knock-and-announce rule by police when executing a search warrant does not require the application of the exclusionary rule under the Federal Constitution (*see*

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generally *Hudson v Michigan*, 547 US 586 [2006]). Defendant acknowledged that no New York appellate decision had decided to the contrary, either by distinguishing *Hudson*, on the basis of the New York Constitution, or otherwise. Indeed, defendant conceded that the issue was novel. *People v Hayward*, 42 NY3d 753.

27. Waiver — Knowledge of Potential Sentencing Exposure.—In a criminal prosecution in which the trial court, in its colloquy addressing defendant's request to proceed pro se, did not specifically apprise defendant of his maximum sentencing exposure in years, defendant's waiver of his constitutional right to counsel was valid, where defendant was adequately warned of the dangers of proceeding pro se and had an understanding of the extent of his potential sentencing exposure at the time he elected to waive his right to counsel. A waiver colloquy must adequately warn a defendant of the risks inherent in proceeding pro se, and apprise a defendant of the singular importance of the lawyer in the adversarial system of adjudication. When a defendant challenges the validity of their waiver on appeal, the critical consideration is defendant's knowledge at the point in time when they first waived their right to counsel. The proceedings prior to the colloquy established that defendant was aware that he likely would serve a lengthy prison sentence if convicted. Then, during the colloquy, defendant informed the court that he had been through a trial before and that he understood the charges against him. He also told the court that he had discussed a potential plea bargain and the strength of the People's evidence with his court-appointed attorney, indicating that he understood he faced an even longer sentence than what the People sought. Moreover, nothing in the post-colloquy proceedings suggested defendant did not apprehend the extent of his potential sentencing exposure. *People v Blue*, 42 NY3d 584.

RIGHT TO REPRESENTATION PRO SE.

28. Unequivocal Request.—In a criminal prosecution, the trial court did not err in granting defendant's request to proceed pro se, where defendant's request was unequivocal inasmuch as he explicitly declined the opportunity to argue for a new attorney. A request to go pro se is equivocal when it does not reflect an affirmative desire for self-representation and instead shows that self-representation was reserved as a final, conditional resort. Conditioning a request for a new attorney with a request for self-representation does not necessarily make the latter request equivocal, but it can become equivocal where a defendant raised the argument for self-representation as a way of obtaining the dismissal of their assigned counsel. Although defendant initially made his request to proceed pro se as an alternative to his request for substitute counsel, defendant later told the court that he had spoken to his family and decided that self-representation was "the best way to go." Before conducting the requisite searching inquiry, the court invited defendant to make another argument for substitute counsel, but defendant declined to do so, explaining that he was "satisfied to go pro se." Even after granting defendant's request, the court left the door open for defendant to make an argument for the appointment of a new attorney, and thereafter defendant never said a word about wanting one. *People v Dixon*, 42 NY3d 609.

RIGHT TO SPEEDY TRIAL.

29. Application of Certificate of Compliance Requirement Where People Had Previously Announced Readiness.—The amendments to the Criminal Procedure Law requiring the People to file a certificate of compliance (COC) with new discovery rules before announcing their readiness for trial do not apply where the People had validly declared ready for trial before the effective date of the amendments. There is no evidence, in the plain language of the amendments or the legislative history, that the legislature intended to, or did, revert the People to a state of unreadiness on the amendments' effective date. Rather, the amendments specifically tie the COC requirement to the People's ability to state ready and be deemed ready. Because the legislature established the COC requirement as a condition precedent to declaring ready for trial and did not indicate an intent to undo the People's prior readiness statements, there is no basis to apply that requirement prospectively to a case where the People were in a trial-ready posture when it went into effect. *People v King*, 42 NY3d 424.

CRIMES—Cont'd

30. People's Failure to Provide Explanation for Postreadiness Delay — Entire Adjournment Not Just Requested Days Chargeable to People.—In a prosecution for reckless driving and related charges in which the People filed an off-calendar statement of readiness, were not ready on three successive trial dates, and failed to provide any explanation despite the court's invitation to do so, and despite the opportunity to provide an explanation in their opposition to defendant's CPL 30.30 motion, the full 43-day adjournment granted by the court in response to the People's request for a 12-day adjournment at the first scheduled trial date was chargeable to the People. If the People are not ready for trial after they have declared readiness and seek an adjournment, the People must provide an explanation for their postreadiness requests for adjournments either some time before or in response to a defendant's CPL 30.30 motion. That explanation—whether given in advance of the scheduled trial date, contemporaneously with it, or thereafter—is presumed valid, and the People will not be charged with the time beyond that which they requested, because the additional delay is assumed to result from court congestion or some other factor beyond the People's control. The burden then shifts to the defendant to overcome that presumption. However, when the People have failed to offer a reason for a postreadiness adjournment request causing delay of a previously scheduled trial date, they are charged with the entire delay, not merely the length of the adjournment they requested. *People v Labate*, 42 NY3d 184.

31. Period of Delay Chargeable to Codefendant.—In a criminal prosecution in which defendant failed to appear at the scheduled time for arraignment on a single indictment charging him and a codefendant with burglary and the codefendant, after the scheduled arraignment, requested an adjournment for motion practice, the 57 days between indictment and arraignment chargeable to the codefendant were also chargeable to defendant, even though he had not yet been arraigned. CPL 30.30 (4) (d) excludes from the speedy-trial clock "a reasonable period of delay when the defendant is joined for trial with a co-defendant as to whom the time for trial . . . has not run." CPL 200.40 sets forth the three basic situations in which two or more defendants may be joined for trial. CPL 200.40 (1) (a) states that "[t]wo or more defendants may be jointly charged in a single indictment provided that . . . all such defendants are jointly charged with every offense alleged therein." Defendant and his codefendant were jointly charged in a single indictment with every offense alleged therein, and so defendant was joined for trial with his codefendant at the time of indictment, prior to his arraignment, for purposes of CPL 30.30 (4) (d). Therefore, the Appellate Division properly excluded from the speedy trial calculation the period between the codefendant's request to adjourn and defendant's arraignment. *People v Blue*, 42 NY3d 584.

RIGHT TO BE PRESENT AT TRIAL.

32. In-Chambers *Sandoval* Hearing in Defendant's Absence Not Cured by Subsequent In-Court Hearing in Defendant's Presence.—The trial court violated defendant's right to be present during trial by failing to provide him the opportunity for meaningful participation at an in-chambers *Sandoval* hearing, notwithstanding a subsequent in-court hearing in defendant's presence. Counsel's argumentation and discussion of the facts underlying defendant's prior convictions occurred only in chambers and outside defendant's presence. It is precisely a defendant's knowledge of those facts that underlies the right to be present for a *Sandoval* hearing. Moreover, the subsequent in-court proceeding did not cure the violation. The right to be present during the trial belongs to the defendant personally, not to defense counsel. The court asked defense counsel if defense counsel "want[ed] to be heard," and counsel responded that he would rely on the in-chambers discussion. The court did not, however, ask defendant if he wished to be heard, nor did the court meaningfully explain to defendant the nature of the proceeding. Defense counsel did not bind defendant merely by declining to present new arguments, and defendant's silence, without more, could not have been construed as the knowing and intelligent waiver of defendant's right to participate. The court's recitation of its *Sandoval* rulings in defendant's presence also could not cure its earlier error. The court did not entertain argument on the *Sandoval* mo-

CRIMES—Cont'd

tion, did not articulate the arguments that had been made or the reasoning for its various decisions, referred to defendant's prior convictions by number only (as enumerated in the prosecution's application), and did not invite any participation from defendant. *People v Sharp*, 42 NY3d 369.

33. Removal from Courtroom without Warning Following Disruptive Outburst.—In a criminal prosecution, defendant's removal from the courtroom without warning during the announcement of the verdict and polling of the jury after his disruptive verbal outburst was proper, where defendant was considered a safety risk because of his history of violent outbursts both in and out of the courthouse and the totality of his misconduct rendered a warning immediately preceding his removal impracticable. CPL 260.20 provides that a defendant must be present during the trial but may be removed if they are "disorderly and disruptive" such that the "trial cannot be carried on with [the defendant] in the courtroom . . . if, after [they] ha[ve] been warned by the court that [they] will be removed if [they] continue[] such conduct, [they] continue[] to engage in such conduct." A court may dispense with the constitutional and statutory warnings when it is impracticable to give them. The safety concerns of the court and correction officers were justified based on defendant's history of alleged violence against correction officers and inmates and his possession of weapons, and his in-court intimidation of a prosecution witness during her testimony. In disregard of his professed assurances, and demonstrating his contempt for the proceedings and the court, defendant disrupted the announcement of the verdict three times. It was only after defendant could not be controlled and the jurors had become visibly upset by defendant's verbal abuse that the court directed the officers to take charge and defendant was removed from the courtroom. Any delay in defendant's removal would have permitted further disruption of the proceedings and risked physical danger to the public, jurors, judge, court officers and staff and the lawyers. These factors informed the court's reasonable, on-the-spot decision that it needed to remove defendant swiftly to ensure the safety of everyone in the courtroom. *People v Dunton*, 42 NY3d 97.

SENTENCE.

34. Concurrent and Consecutive Terms — Larceny and Forgery.—The trial court did not violate Penal Law § 70.25 (2) when it imposed consecutive sentences on defendant's third-degree grand larceny and second-degree forgery convictions, which arose from his scheme to steal tires by false representation. Section 70.25 (2) provides that sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses, or where a single act constitutes one of the offenses and a material element of the other. The singular-act prong of section 70.25 (2) was not satisfied because, as charged to the jury, defendant accomplished the taking once the delivery driver loaded the tires onto defendant's trailer, which preceded defendant falsely signing the invoice presented by the driver. As to the material-elements prong of section 70.25 (2), forgery is not a necessary element of larceny by false pretenses, the class of larceny which the court charged to the jury. Because forgery is not the exclusive means to accomplish a larceny by false pretenses, forgery is not a necessary component of the larceny count in the legislative classification and definitional sense. *People v McGovern*, 42 NY3d 532.

SEX OFFENDERS.

35. Sex Offender Registration Act.—The Appellate Division order affirming the Supreme Court order which had adjudicated defendant a level three sexually violent predicate sex offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C) was affirmed (*see People v Boone*, 41 NY3d 573 [2024]). *People v Dufresne*, 42 NY3d 973.

36. Sex Offender Registration Act — Classification of Civilly Confined Offender.—The Sex Offender Registration Act (SORA) (Correction Law art 6-C) does not require courts to indefinitely postpone SORA classification until a registrant's release from civil confinement, and doing so would inject a degree of uncertainty into the classification process not contemplated or intended by the legislature. Accordingly, a SORA classification hearing which adjudicated defendant a level two

CRIMES—Cont'd

sex offender while he remained civilly committed to an Office of Mental Health psychiatric facility pursuant to Mental Hygiene Law article 9 was not premature. SORA's plain text and structure authorize risk-level determinations "[30] calendar days prior" to a registrant's release from incarceration following the completion of their prison sentence, regardless of pending civil commitment proceedings (*see* Correction Law § 168-n [2]). Unlike a registrant's release from incarceration, a registrant's release from civil confinement does not typically occur on a date scheduled far in advance: it is premised on changing conditions and can occur abruptly or on short notice (*see e.g.* Mental Hygiene Law §§ 9.33, 9.35). Given that unpredictability, defendant had not shown that it would be possible for the Board of Examiners of Sex Offenders, district attorneys' offices, and courts to reliably comply with the carefully developed SORA classification process—instituted to protect both the public and registrants' due process rights—if the various deadlines and milestones in that process were to be measured from release from civil confinement. *People v Watts*, 42 NY3d 60.

37. Sex Offender Registration Act — Due Process — Offender's Competency.—When there is a possibility that a sex offender may lack capacity to fully comprehend a Sex Offender Registration Act (SORA) (Correction Law art 6-C) risk-level assessment proceeding, due process does not preclude a court from determining the offender's risk level because the many safeguards already provided under SORA minimize the risk of inaccurate risk-level classification and adequately balance the competing private and State interests. Accordingly, where defendant was represented by counsel and provided the other protections listed in Correction Law article 6-C, his due process rights were not violated when Supreme Court declined to order a competency hearing before adjudicating him a level two sex offender. Although the liberty interest at stake was not to be discounted, it was more limited than the interest threatened by a criminal proceeding. Defendant had not demonstrated that his proposed safeguard—which amounted to exempting incompetent registrants from SORA classification for the duration of their disability—would meaningfully reduce inaccurate risk-level classifications, even if the robust existing procedures left gaps through which a rare incompetent registrant might fall. Even admitting the possibility of an initial misclassification, defendant could still seek modification of his risk level on an annual basis. Finally, beyond the obvious financial and administrative costs associated with the additional proposed safeguard, the State also has a compelling interest in protecting its citizens by promptly notifying the public of registrants who pose a heightened threat of recidivism. Delaying the classification of incompetent registrants threatens that interest, in that it risks that some dangerous registrants will be released into the community for lengthy periods without accurate risk-level designations or public notice. *People v Watts*, 42 NY3d 60.

38. Sex Offender Registration Act — No Credit for Time Registered as Sex Offender in Another State.—The phrase "initial date of registration" in Correction Law § 168-h (1), which requires sex offenders classified in the lowest risk category under the Sex Offender Registration Act (SORA)—a level one risk not designated a sexual predator, sexually violent offender, or predicate sex offender—to register for a term of 20 years "from the initial date of registration," refers to the date when an offender first registers under SORA, not the date an offender is required to register under the laws of another state. Accordingly, the statute does not entitle sex offenders who are classified in the lowest risk category upon relocating to New York to credit for their time registered as sex offenders under the laws of other states. The meaning of the phrase "initial date of registration" cannot be discerned by reading Correction Law § 168-h (1) in isolation. In Correction Law § 168-f (2), which sets forth a registrant's annual verification requirements, the phrase "initial registration date" expressly references the offender's registration under SORA. Construing the statute as a whole, the statute's subsequent use of the materially identical phrase "initial date of registration" is understood to have the same meaning. In addition, because "registration," as the term is used in Correction Law § 168-i, requires interaction with a New York agency, the "initial date of registration" must refer to the date the offender first registers in New York. Nothing in

CRIMES—Cont'd

SORA provides or even arguably suggests that the legislature intended for an offender's registration in another state to have any effect on the conditions of registration in New York. If credit is to be awarded for time spent on sex offender registries in other states, it is for the legislature to make those policy determinations, pass the relevant law, and delegate any rulemaking authority. *People v Corr*, 42 NY3d 668.

UNLAWFUL SEARCH AND SEIZURE.

39. Search of Parolee's Pocket.—Defendant parolee's motion to suppress heroin recovered from an earbud case in his pocket when he was searched by a parole officer should have been granted, as the People failed to establish at the suppression hearing that the search of defendant's pocket was substantially related to the performance of parole officers' duties to search for an unnamed parole absconder who was "potentially" at defendant's home. To meet the required standard for searches of parolees set forth in *People v Huntley* (43 NY2d 175 [1977]), it is not enough necessarily that there was some rational connection between the parole officer's conduct and the performance of the officer's duties; rather, the particular conduct must also have been substantially related to the performance of duty in the particular circumstances. In addition, the absence of evidence that parole officers were acting as agents of the police, standing alone, is insufficient to render a parole search lawful. The evidence at the suppression hearing established only that the parole officers went to defendant's residence to search for a different parolee. There was no evidence that defendant provided any assistance to the absconder in violation of his own terms and conditions of parole or that circumstances developed after the parole officers arrived at defendant's residence which rendered the search of his pocket substantially related to the performance of their duties. *People v Lively*, 42 NY3d 178.

40. Search of Residence by Parole Officer.—Defendant's motion to suppress the rifle and extended magazines with extra gun parts found in his bedroom when defendant's parole officer and other officers searched his residence was properly denied as there was record support for the lower courts' conclusion that the search was rationally and reasonably related to the performance of the parole officer's duty. Defendant was not permitted to own, possess, or purchase any firearm without his parole officer's permission, there were serious concerns regarding defendant's mental health, and defendant's mother had contacted the parole office to inform them that she saw a photograph of defendant with a firearm. *People v Spirito*, 42 NY3d 934.

41. Traffic Stop Prolonged for Search by Parole Officer — Requisite Level of Suspicion.—The courts below erred in determining that defendant was not entitled to suppression of a large quantity of heroin recovered from the backseat of his car during a warrantless search by his parole officer based on the finding that the police had a founded suspicion of criminality justifying the continued detention of defendant in order to contact his parole officer. The proper standard for detaining an individual beyond the time reasonably required to complete a traffic stop is reasonable suspicion. A seizure justified only by a police-observed traffic violation becomes unlawful if it is prolonged beyond the time reasonably required to complete the mission of issuing a ticket for the violation, which mission does not include additional measures designed to detect evidence of criminality. Here, the courts below evaluated whether the traffic stop was prolonged beyond the time reasonably required for its completion under the founded suspicion standard applicable to the common-law right to inquire, a lesser standard than the reasonable suspicion necessary to prolong a traffic stop. While there was record support for the affirmed finding that the traffic stop was justified at its inception, remittal was required for a determination as to whether, under the totality of the circumstances, including defendant's lifetime parole status and the officers' awareness that he was likely in violation of multiple conditions of his parole, reasonable suspicion of criminal activity justified detaining defendant beyond completion of the traffic infraction investigation. *People v Thomas*, 42 NY3d 236.

42. Traffic Stop — Community Caretaking Doctrine.—Police may stop an automobile in an exercise of their community caretaking function if there are

CRIMES—Cont'd

specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance, and the police intrusion is narrowly tailored to address the perceived need for assistance. An officer's conclusory testimony that the stop was motivated solely by concern for the occupants, standing alone, cannot satisfy the first prong. There must be an objective basis to support the officer's claimed belief. With respect to the second prong, the suppression court should consider whether the police intrusion reasonably matches the problem at hand or if there are less intrusive alternatives for addressing the concern. Thus, if a vehicle stop is justified based on specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle is in need of assistance, but the officers thereafter determine that no aid is needed, any further police action must be evaluated under the framework applicable to officers acting in their criminal law enforcement capacity. For an automobile stop, this means that any continuation of the stop beyond what is necessary to ascertain whether an occupant needs aid requires at least reasonable suspicion of criminal activity. Community caretaking permits only the use of evidence duly discovered in the course of advancing the caretaking function at hand. Further police intrusion must be constitutionally justified. *People v Brown*, 42 NY3d 270.

43. Traffic Stop — Stop of Vehicle Based on Observation of Passenger Door Opening and Closing — Community Caretaking Doctrine.—In a criminal prosecution, the stop of a vehicle driven by defendant after a police officer observed the passenger side door open and close “quickly” and “forcefully” while the car was in motion was not justified under the community caretaking doctrine, where the officer's testimony did not establish specific, objective, and articulable facts that would lead a reasonable officer to conclude that an occupant of the vehicle was in need of assistance. The sole basis for the officer's belief that an occupant of the vehicle might need aid was his observation of the front passenger door opening and closing while the vehicle was in motion. He testified that he did not see or hear anything else that indicated someone was in distress, nor did the door repeatedly open and close or remain open for an extended period of time, which might have suggested that there was a safety or equipment problem. The observation of the car door opening and closing once while the vehicle was in motion, standing alone, would not lead a reasonable officer to conclude that an occupant of the vehicle was in need of aid. There are many innocuous reasons why a car door might open and close while a vehicle is in motion. *People v Brown*, 42 NY3d 270.

44. Traffic Stop — Tinted Windows.—In a criminal prosecution arising from controlled substances found in defendant's possession during a motor vehicle stop, the People failed to meet their burden in establishing that law enforcement had probable cause to stop the vehicle in which defendant was a passenger based on a window tinting violation. Vehicle and Traffic Law § 375 (12-a) (b) prohibits persons from operating a motor vehicle upon a public road with windows which have a light transmittance of less than 70%. To sufficiently establish that a vehicle stop was lawful, the People must establish the basis for the belief that law enforcement possessed the requisite suspicion in the form of facts, not assurances. Here, the full extent of the testimony of the officer who pulled the vehicle over was that the windows were “excessively tinted.” Because window tints are not categorically impermissible under New York law, the officer's testimony was effectively a legal conclusion that the tint violated the Vehicle and Traffic Law, unsupported by any factual basis in the form of a description, measurement or the officer's training and experience. *People v Nektalov*, 42 NY3d 363.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

ENVIRONMENTAL CONSERVATION.**ENVIRONMENTAL QUALITY REVIEW.**

1. Negative Declaration.—Respondent New York City Department of Housing Preservation and Development's negative declaration relating to development of affordable housing was properly issued pursuant to the State Environmental Quality Review Act (ECL art 8), as respondent made a thorough investigation of the problems involved and reasonably exercised its discretion. Respondent identified appropriate areas of concern, took the necessary "hard look," and rationally determined that the project would not have a significant adverse impact on the environment. The environmental assessment statement (EAS) identified the study area as being under-served with respect to open space and concluded that the loss of the garden would cause a decrease in the open space ratio. Accordingly, the EAS then identified and described the open spaces in the study area and determined, based on its consideration of quantitative and qualitative factors, that there would be no significant adverse impact on open space. Respondent also rationally determined that the deficiency caused by the project would be ameliorated by several factors. The EAS further observed that the population that would be added by the project was unlikely to noticeably affect the usage of open space in the area. Moreover, the project would be built to certain construction standards in order to minimize its energy impact. An agency is not required to address every conceivable environmental impact, and petitioners pointed to no published standards for assessing climate change concerns in a project of this type in general, let alone in the specific areas of urban heat and stormwater runoff. *Matter of Elizabeth St. Garden, Inc. v City of New York*, 42 NY3d 992.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

JUDICIAL NOTICE.

1. Content of Foreign Law.—In an action arising out of a merger between defendant Scottish company incorporated in Scotland and the United States assets of

EVIDENCE—Cont'd

another foreign corporation, the Appellate Division did not err in taking judicial notice of the applicable Scots law in resolving defendants' motions to dismiss and did not abuse its discretion in doing so without remitting for a hearing. The construction of foreign law is a legal question that may be appropriate for summary resolution when sufficient information based on documentary and other evidence is presented. While a court, in its discretion, might defer decision on the motion and choose to hold a hearing so that it may conduct additional inquiry into the foreign law question, such a hearing is not mandated as a matter of course. Nothing in the text of CPLR 4511 or other CPLR provisions purports to require a hearing when there is a dispute as to the content of foreign law so long as the court has "sufficient information" to determine that law without one (CPLR 4511 [b]). Here, the foreign jurisdiction's laws and cases are written in English, and the applicable principles derive from English common law. Additionally, the parties provided voluminous materials, including expert affidavits, relevant statutes, and dozens of cases, which cogently explained the relevant principles. The dispute between the experts centered more around the application of Scots law to the facts of the case rather than the substance of Scots law. *Eccles v Shamrock Capital Advisors, LLC*, 42 NY3d 321.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

FORMER ADJUDICATION.

See JUDGMENTS

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY)

FRATERNAL ORDERS.

See ASSOCIATIONS

GAS AND OIL.

See, also, PUBLIC UTILITIES

GUARANTEE.

See SURETYSHIP AND GUARANTEE

HEALTH.**MEDICAID REIMBURSEMENT RATES.**

1. Elimination of Residual Equity Reimbursement Factor without Notice Period.—Defendant/respondent New York State Department of Health properly implemented, effective immediately without a notice period, adjusted Medicaid reimbursement rates for plaintiff/petitioner for-profit nursing homes (petitioners) in order to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula. The legislature clearly expressed its intent that the "elimination clause" be applied without delay, and that the initial implementing rate-making was not subject to the usual 60-day advance notice requirement. While the mere inclusion of language that a law takes "immediate effect" is insufficient on its own to establish legislative intent, here the language is tethered to a specific start date chosen by the legislature, and the measures are declared "to have been in full force and effect" as of that date, thus making clear that it is the effective date of the affected rate periods. In other words, the legislature intended that the residual equity reimbursement factor could no longer be considered in calculating rates for

HEALTH—Cont'd

payments on or after the specified date. Moreover, the 60-day requirement of Public Health Law § 2807 (7) is subject to exceptions, and must yield to a law that authorizes rate-making without the notification delay. Public Health Law § 2808 (20) (d) states that it applies “[n]otwithstanding any contrary provision of law, rule or regulation.” Because the 60-day advance notice requirement would frustrate the cost-saving purpose of Public Health Law § 2808 (20) (d), adopted in the midst of a fiscal crisis, it is contrary to the immediate implementation of section 2808 (20) (d). Moreover, there was no retroactive impact on petitioners’ substantive rights because they had not yet provided services and earned any reimbursement payment. *Matter of Aaron Manor Rehabilitation & Nursing Ctr., LLC v Zucker*, 42 NY3d 46.

2. Elimination of Residual Equity Reimbursement Factor — Equal Protection.—In a hybrid CPLR article 78 proceeding and action for declaratory judgment by plaintiff/petitioner for-profit nursing homes (petitioners) challenging defendant/respondent (respondent) New York State Department of Health’s implementation of adjusted Medicaid reimbursement rates to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula, petitioners’ claim that the recalculated rates violated their equal protection rights was properly dismissed. The residual equity reimbursement factor applied only to for-profits and was capped at half the capital cost reimbursement received in the facility’s 40th year. Not-for-profits are reimbursed for their capital costs based on a per item depreciation analysis and are not subject to a cap amount. The equity versus depreciation distinction and the cap on the residual equity reimbursement factor sufficiently established that petitioners as for-profit nursing homes are not similarly situated to not-for-profit nursing homes. Moreover, petitioners and not-for-profit nursing homes are not similarly situated for purposes of the discrete equal protection claim because they have fundamentally different underlying economic purposes and incentives. *Matter of Aaron Manor Rehabilitation & Nursing Ctr., LLC v Zucker*, 42 NY3d 46.

3. Elimination of Residual Equity Reimbursement Factor — Reasonable and Adequate Rates.—In a hybrid CPLR article 78 proceeding and action for declaratory judgment by plaintiff/petitioner for-profit nursing homes (petitioners) challenging defendant/respondent (respondent) New York State Department of Health’s implementation of adjusted Medicaid reimbursement rates to comply with amended Public Health Law § 2808 (20) (d), which mandated the removal of the residual equity reimbursement factor from the rate computation formula, petitioners’ claim that the recalculated rates violated Public Health Law § 2807 (3) was properly dismissed. Respondent responded to a mandate from the legislature to eliminate one factor in determining Medicaid reimbursement rates. The elimination of that factor did not automatically result in a rate that failed to reimburse each of petitioners’ necessary costs. In other words, elimination of the residual equity reimbursement factor did not automatically establish that the adjusted rates overall were not “reasonable and adequate to meet the costs which must be incurred by efficiently and economically operated facilities” (Public Health Law § 2807 [3]). Moreover, the legislature eliminated the residual equity reimbursement factor as a cost-saving measure upon recommendation of a Medicaid redesign team, evincing the legislature’s determination that, even without this factor, rates could be adequate to cover necessary costs and still reap budget savings for the State. Respondent was bound to effectuate this legislative mandate by adjusting the rates of for-profit facilities across the board, and could not make up for the possible reduction in reimbursement payments by increasing the rates in some other way. Any such action would be contrary to the statute and ultra vires. *Matter of Aaron Manor Rehabilitation & Nursing Ctr., LLC v Zucker*, 42 NY3d 46.

HOTELS.

See INNKEEPERS

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles

**HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS
—Cont'd****EQUITABLE DISTRIBUTION.**

1. Marital or Separate Property — Pension Benefits Earned Prior to Marriage But Acquired during Marriage.—In a matrimonial action, the portion of defendant husband's pension related to credit for his pre-marriage Navy service was marital property because the parties used marital funds to "buy back" those credits and transform them into pension rights. When defendant left the Navy, the nine years of pension credits he accrued before marriage were his separate property, but they did not entitle him to any pension benefits. He had, instead, an opportunity to make a payment to acquire up to 11 years of pension rights, provided that he later took a job whose pension plan allowed for the credits to be used to augment its value. The parties used marital funds to convert those 11 years of Navy service, including the nine years he worked prior to marriage, into additional value to defendant's pension. The pension rights were therefore the product of both defendant's pre-marriage service and the parties' contribution of marital assets. By combining defendant's pre-marriage military service with marital funds the parties transformed the pension credits from separate property into marital property. Defendant acquired the 11 years of pension rights only by entering qualifying federal employment and paying to incorporate his Navy pension credits into his new pension. The use of marital funds to "buy back" defendant's naval service created, at least in part, his pension entitlement. *Szypula v Szypula*, 42 NY3d 620.

IMMIGRATION.

See ALIENS

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION

INTERVENTION.

See PARTIES

JUDGES.**SUSPENSION FROM OFFICE.**

1. Termination of Suspension.—The Court of Appeals, on its own motion, terminated the suspension of a Town Court Justice from office. *Matter of Kuck*, 42 NY3d 1048.

2. The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Supreme Court Justice from office, with pay, effective immediately, pending review of a determination of the State Commission on Judicial Conduct. *Matter of Gall*, 42 NY3d 974.

3. The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office, with pay, effective immediately. *Matter of Kuck*, 42 NY3d 985.

JUDGMENTS.

See, also, EXECUTION, and other specific titles

COLLATERAL ESTOPPEL.

1. Prior Federal Action Alleging Nearly Identical Human Rights Law Violations.—Plaintiff's discrimination and hostile work environment claims under the

JUDGMENTS—Cont'd

New York State and New York City Human Rights Laws (HRL) arising from offensive and demeaning conduct she was subjected to by her colleagues at defendant university were barred by collateral estoppel based upon the findings of the federal district court in dismissing plaintiff's nearly identical federal action. Where a federal court has made an explicit finding that a plaintiff produced no evidence on the relevant specific factual issue in the litigation, the application of the collateral estoppel bar to the plaintiff's identical claims under state statutes is warranted. Here, there were no factual findings to sustain a discrimination or retaliation claim no matter the standard. Application of the requisite liberal construction standard did not change the result, and this case did not implicate the frequent risk that evidence winds up being undervalued for City HRL purposes because it has been filtered through a federal lens. Instead, applying the proper mixed-motive standard under the City HRL, Supreme Court correctly determined that plaintiff could not have proceeded on her claims where the factual findings of the federal courts made clear that no pretext or retaliatory animus existed for the termination of plaintiff's employment. *Russell v New York Univ.*, 42 NY3d 377.

JUDICIAL NOTICE.

See EVIDENCE

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

SAFE PLACE TO WORK.

1. Industrial Code Violations — Slipping Hazard.—In plaintiff's action arising from an incident in which he slipped on concrete pebbles believed to have come from the installation of a metal channel in the floor of the construction site where he was working, defendants were not entitled to summary judgment dismissing plaintiff's Labor Law § 241 (6) claims. Defendants failed to demonstrate that the concrete pebbles that allegedly created the slipping hazard were integral to the work, because they did not conclusively show that the pebbles were inherent to the task at hand, and not avoidable without obstructing the work or imperiling the worker. As to the section 241 (6) claims predicated on a violation of Industrial Code (12 NYCRR) § 23-1.7 (d), defendants did not demonstrate that the concrete pebbles were not a "foreign substance" because, at the time of the alleged injury, the pebbles were not a component of the floor and were not necessary to the floor's functionality. Additionally, given plaintiff's deposition testimony that he was injured after slipping on the pebbles, defendants did not demonstrate that the pebbles did not cause a "slippery condition" within the meaning of that provision. Regarding Industrial Code § 23-1.7 (e) (2), this provision is not limited to "tripping" hazards, but also encompasses "other hazards" that may arise from the described conditions. *Ruisech v Structure Tone Inc.*, 42 NY3d 1061.

2. Parties Liable — No Supervisory Control over Operation.—In plaintiff's action arising from an incident in which he slipped on concrete pebbles believed to have come from the installation of a metal channel in the floor of the construction site where he was working, the Appellate Division properly granted defendants summary judgment dismissing plaintiffs' Labor Law § 200 and common-law negligence claims. Defendants—an out-of-possession landlord, a building manager, and a tenant not occupying the space during construction—demonstrated that they exercised no supervisory control over the operation and thus were not liable for any defect or dangerous condition arising from the contractor's methods. *Ruisech v Structure Tone Inc.*, 42 NY3d 1061.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

RENT REGULATION.

1. Illegal Deregulation — Stipulation Waiving Statutory Protections.—The Appellate Division erred in dismissing plaintiff tenant's action seeking a declaration

LANDLORD AND TENANT—Cont'd

that her apartment was subject to rent stabilization and had been illegally deregulated, where the stipulation between the prior tenant and defendant landlord requiring the tenant to waive his right to file a fair market rent appeal (FMRA) was void and did not provide a path to deregulation of the apartment. New York's Rent Stabilization Code does not allow for waiver of its statutory protections. It expressly provides that "[a]n agreement by the tenant to waive the benefit of any provision of the [Rent Stabilization Law] or [the] Code is void" (9 NYCRR 2520.13). By securing the prior tenant's explicit agreement "not to challenge the rent," the stipulation waived his right to file a FMRA. That bargain circumvented the statutory process, and consequently the stipulation was void in its entirety as a matter of law. Because the stipulation was void, defendant's registration statement based on the stipulation was as well, and therefore neither party was entitled to rely on it and it could not serve as the basis for deregulation. Nor did the statute of limitations require dismissal of the action, as such a bar does not make an agreement that was void at its inception valid by the mere passage of time. *Liggett v Lew Realty LLC*, 42 NY3d 415.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LIMITATION OF ACTIONS.**TOLLING.**

1. Criminal Prosecutions — Periods of Defendant's Continuous Absence from State.—Defendant's prosecution for third-degree rape, commenced 69 days after expiration of the applicable limitations period, was not time-barred because CPL 30.10 (4) (a), which provides that periods of a defendant's continuous absence from the state following commission of the offense or during which the defendant's whereabouts is unknown are not included in calculating the time limitation for commencing a criminal action, tolled certain periods when defendant was continuously outside the state. Nowhere does CPL 30.10 (4) (a) distinguish between residents and nonresidents, and courts cannot read into the statute a limitation not adopted by the legislature. If the legislature intended this tolling provision to apply only to nonresidents or that courts factor residency into a tolling analysis, it would have said so expressly. Nor does the statute contain any requirement that the tolling period apply once authorities know that a crime has been committed. Moreover, all periods of a day or more during a defendant's absence from the state should be totaled and toll the statute of limitations. *People v Weinstein*, 42 NY3d 439.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MOTELS.

See INNKEEPERS

MOTOR VEHICLES.**COLLISION.**

1. Engaged in Work on Highway Exemption from Liability for Ordinary Negligence.—Defendant town highway superintendent was not “actually engaged in work on a highway” within the meaning of Vehicle and Traffic Law § 1103 (b) when, as he was driving back to his office after assessing snow accumulation and radioing his team, he entered an intersection without the right-of-way and collided with plaintiff’s vehicle. Accordingly, the superintendent and his municipal code-defendants were not exempt from liability for ordinary negligence and entitled to be held to a recklessness standard. Although the section 1103 (b) exemption is broad and does not require that a vehicle be located in a designated “work area” in order to receive the protection, it applies only when such work is in fact being performed at the time of the accident. According to the superintendent’s own deposition testimony, he had fully completed his assessment of roadway conditions at his bellwether location and mobilized his entire team to salt the town’s roads. At the time of the accident, he was merely using the road to return to work. Although the superintendent testified that he saw a slushy accumulation of snow to his left shortly before the collision occurred, he took no action in response to observing that condition. Indeed, he testified that as he pulled into the intersection where the collision occurred, there was nothing keeping his attention drawn to his left and he was no longer looking at the condition. *Orellana v Town of Carmel*, 42 NY3d 526.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS’ COMPENSATION, and other specific titles

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles

PAROLE.**SPECIAL CONDITIONS.**

1. Prohibition on Viewing and Accessing Materials Depicting Sexual Activity or Nudity.—In a CPLR article 78 proceeding to challenge the revocation of petitioner’s parole for using his computer to access materials depicting sexual activity and nudity in violation of one of his parole conditions, petitioner failed to establish a

PAROLE—Cont'd

violation of his First Amendment rights. The restrictions the parole condition imposed on petitioner were a relaxation of the original ban on his access to the Internet and were carefully circumscribed to accommodate his request for a computer with Internet access to allow him to complete college coursework while ensuring the safety of the public. *Matter of Karlin v Stanford*, 42 NY3d 1015.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PLEADING.**AMENDMENT.**

1. Supreme Court's Discretion to Grant Leave to Amend Complaint Following Appellate Division's Dismissal of Complaint.—In a breach of contract action in which defendants, during the pendency of their appeal from Supreme Court's order granting plaintiffs' cross-motion to file a second amended complaint, filed counterclaims also based on alleged breaches of the parties' operating agreement, the dismissal of plaintiffs' second amended complaint by the Appellate Division did not deprive Supreme Court of its authority to consider a third amended complaint that purportedly cured the defect, where the dismissal was without prejudice and defendants' counterclaims remained pending in Supreme Court. Therefore, Supreme Court retained control over the parties and continued to adjudicate claims related to the same transactions that formed the subject matter of the complaint. For that reason, the Appellate Division order also did not render the case final for purposes of appealability, as no appeal to the Court of Appeals may be taken from an order which leaves claims pending in the action between the same parties. Because the original action remained pending in Supreme Court even after the complaint was dismissed, Supreme Court retained the power to grant leave to plaintiffs to file another amended complaint. The mere fact that a complaint is dismissed by an appellate court does not generally imply that the trial court lacks such power. Although the appellate court may explicitly direct that leave to amend be granted, it is not required to do so in order to preserve the trial court's discretion to grant such leave. *Favourite Ltd. v Cico*, 42 NY3d 250.

2. Timeliness.—In a breach of contract action, plaintiffs' motion for leave to amend following dismissal of the second amended complaint was timely filed within the six-month time limit to bring a new action under CPLR 205 (a) due to the COVID-19 tolling provisions in Executive Order (A. Cuomo) No. 202.8 (9 NYCRR 8.202.8). "A claim asserted in an amended pleading is deemed to have been interposed at the time the claims in the original pleading were interposed, unless the original pleading does not give notice of the transactions, occurrences, or series of transactions or occurrences, to be proved pursuant to the amended pleading" (CPLR 203 [f]). The claims in the third amended complaint were the same as those in the second amended complaint, which Supreme Court found to be timely—the only difference between the complaints was the explanation of how the company was properly revived. Therefore, the claims in the third amended complaint were timely asserted under the standard for a motion to amend. Moreover, Executive Order 202.8, enacted shortly after the Appellate Division order dismissing the complaint was made, tolled all filing periods until November 3, 2020. The clock then ran until the motion for leave to amend was submitted. Subtracting the tolling period, the motion to amend was filed well within the six months provided by CPLR 205 (a). *Favourite Ltd. v Cico*, 42 NY3d 250.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PRISONS AND INCARCERATED INDIVIDUALS.**CONDITIONS OF CONFINEMENT.**

1. Adequacy of Residential Treatment Facility Programming.—The Appellate Division properly affirmed that part of a judgment which entered a declaration in defendants' favor in an action challenging the adequacy of the programming and employment opportunities offered at defendant New York State Department of Corrections and Community Supervision's (DOCCS) residential treatment facility (RTF), where defendants demonstrated as a matter of law that the internal programming at the RTF was at least minimally adequate, and plaintiffs failed to raise an issue of fact. The statute for RTF programming provides for the assignment of a "specific program" to each resident and that the program be "directed toward the rehabilitation and total reintegration into the community" of residents (Correction Law § 73 [3]). The details fall entirely within the discretion of DOCCS. *Alcantara v Annucci*, 42 NY3d 142.

2. State's Obligation to Secure Community-Based Opportunities to Persons Confined in Residential Treatment Facility.—The wholesale refusal by the New York State Department of Corrections and Community Supervision (DOCCS) to undertake efforts to secure community-based employment, educational, and training opportunities for persons confined in its residential treatment facility (RTF) constitutes a violation of Correction Law §§ 2 (6) and 73 (2) and (3), which require DOCCS, at a minimum, to undertake reasonable efforts to secure community-based opportunities for those persons subject to its RTF programming. DOCCS cannot categorically refuse to attempt to secure community-based opportunities for RTF residents. While DOCCS has discretion in operating its RTF programs, the record demonstrated that DOCCS was exercising no discretion with respect to community-based opportunities. The permissive phrase "may be allowed to go outside" in Correction Law § 73 (1) was misconstrued as empowering DOCCS to bar all RTF residents categorically from accessing community-based opportunities without considering whether such opportunities were available or appropriate. By reading the phrase in isolation, defendants read the definitional provision out of the statute, eviscerated the character and purpose of the RTF, and undermined the legislative intent. While references to "flexibility" in the legislative history support that DOCCS has discretion in fashioning its RTF programming, that flexibility is tied to the needs of individual offenders about to reenter the community. This legislative history is directly contrary to DOCCS' construction of the statute, which had given rise to an inflexible policy that did not take individual RTF residents into account. *Alcantara v Annucci*, 42 NY3d 142.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

TEACHERS.

1. Placement of Unvaccinated Teachers on Leave without Pay.—Petitioners, tenured public school teachers employed by respondent Board of Education of the City School District of the City of New York, were not entitled to hearings pursuant to Education Law §§ 3020 and 3020-a prior to being placed on leave without pay for failing to submit proof of vaccination in accordance with the COVID-19 vaccination requirement imposed on respondent's employees by the Commissioner of the New York City Department of Health and Mental Hygiene. Statutory hearings are not warranted when employment eligibility conditions are enforced. Petitioners did not face disciplinary proceedings, but instead failed to comply with a condition of employment that was unrelated to job performance, misconduct or competency. In terms of due process, the union negotiated with respondent Board over every aspect of the imposition of the mandate, which in the first instance was imposed by the Health Commissioner. The union subsequently agreed to be bound by the award established by the arbitrator, and once the arbitrator issued the award, teachers received ample notice of the award's provisions. Moreover, petitioners' requests for CPLR article 75 relief were properly rejected because petitioners lacked standing and failed to join the union as a necessary party, as required for petitioners to allege that the union violated its duty of fair representation. *Matter of O'Reilly v Board of Educ. of the City Sch. Dist. of the City of N.Y.*, 42 NY3d 986.

TRANSPORTATION OF PUPILS.

2. Transportation of Nonpublic School Students When Public Schools Closed.—Education Law § 3635 (1) (a)'s requirement that school districts provide “[s]ufficient transportation facilities” does not obligate school districts to afford nonpublic students transportation on days their schools are in session, including days when public schools are closed. Prior to passage, the Legislature removed language requiring that non-New York City districts offer a limited number of alternative days of transportation to nonpublic schools. The exclusion of the requirement from

SCHOOLS—Cont'd

the enacted law demonstrates the Legislature's intent not to require central school districts to transport nonpublic school students on days the public schools are closed. Rejection of language that would have required school districts outside New York City to transport students to private schools on days the public schools were not open makes clear that "[s]ufficient transportation facilities" (Education Law § 3635 [1] [a]) does not include this obligation. Where the Legislature provided for transportation for nonpublic school students on days where the public schools were closed, it did so explicitly and with limitations. Moreover, interpreting section 3635 (1) (a) as a simple mandate that school districts provide transportation to nonpublic schools on days those schools choose to open except Saturdays and most legal holidays would significantly increase the financial and administrative burdens on school districts. *Matter of United Jewish Community of Blooming Grove, Inc. v Washingtonville Cent. Sch. Dist.*, 42 NY3d 348.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPORTING EVENTS.

See THEATRES AND SHOWS

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TAXATION.

FRANCHISE TAX ON BUSINESS CORPORATIONS.

1. Royalty Payments Received from Nontaxpayer Foreign Affiliates.—In CPLR article 78 proceedings challenging determinations by respondent Tax Appeals Tribunal of the State of New York that petitioner parent corporations improperly deducted royalty payments received from affiliates in foreign countries that were not subject to New York franchise tax and therefore not required to add those payments back on a New York tax return, respondent properly interpreted former Tax Law § 208 (9) (o) (3) as permitting a tax deduction only where a related subsidiary was subject to the add back requirement. By its plain terms, the statute allows parent taxpayers to deduct royalty income only if that money had already been included on a New York tax return through an add back to the subsidiary's income. Although the statute provides that a deduction will not be granted if one of the statutory exceptions to the add back requirement applies, it goes on to state that the deduction will not be permitted if an add back is not required under a "similar provision" in the chapter. Given that the operative language applies only to corporations subject to tax in New York, the deduction was clearly only available to corporations receiving royalties from related entities who were subject to the add back, not those that would be subject to the add back if they were subject to New

TAXATION—Cont'd

York taxes. In enacting the deduction and add back scheme, the legislature was attempting to close a loophole by which international corporate groups avoided paying state taxes on royalty payments between related members of the corporate group. Both the plain language and the explicit legislative purpose behind the statute supported respondent's interpretation. *Matter of Walt Disney Co. & Consol. Subsidiaries v Tax Appeals Trib. of the State of N.Y.*, 42 NY3d 538.

REAL PROPERTY TAX.

2. Assessment — Disparate Impact.—The Appellate Division erred in dismissing plaintiff's causes of action against defendants City of New York and New York City Department of Finance alleging that the City's property taxation scheme resulted in disparate tax burdens for class one and class two properties of equivalent market value, both from borough to borough and within boroughs, in violation of RPTL 305 (2)'s mandate that "[a]ll real property in each assessing unit shall be assessed at a uniform percentage of value (fractional assessment)." Reading RPTL 305 (2) and the assessment caps in RPTL 1805 together to harmonize their legislative commands, RPTL 1805 did not foreclose plaintiff's claims but instead directs the City to ensure that its assessment is based on the property's fair market value. The legislative history does not suggest that section 1805 (1) was expected to limit the distribution of the tax burden within the class of residential taxpayers, or to hamstring a special assessment unit from curing inequities within the class. The RPTL does not limit the City's authority to take action to achieve an alignment between assessed and market values that ameliorates disparate tax burdens. The complaint's allegations, supported with independent studies and the City's own data of widening disparities resulting from its annually-repeated assessment methodology to class one and two properties, sufficiently pleaded violations of RPTL 305 (2) against defendants. *Tax Equity Now NY LLC v City of New York*, 42 NY3d 1.

3. Assessment — Equal Protection and Due Process.—The Appellate Division properly dismissed plaintiff's causes of action against defendants City of New York and New York City Department of Finance alleging that the disparate tax burdens resulting from the City's property taxation scheme constituted federal and state equal protection and due process violations, as there existed a rational tax-related purpose for the legislature's different treatment of class one and class two properties and imposition of assessment caps under RPTL 1805 (1). A taxation scheme does not violate equal protection if there is a plausible policy reason for the classification, which exists if there is any reasonably conceivable state of facts that could provide a rational basis for the classification. The statutory tax framework was designed to accomplish the tax-related objective of avoiding abrupt increases or shifts in tax liability over time. Moreover, the cap on each class share served the rational legislative objective of maintaining stability within the class and avoiding dramatic shifts in the tax burden. Similarly, the legislature has nearly unconstrained authority in the design of taxing measures unless they are utterly unreasonable or arbitrary. The City's property tax scheme was consistent with this principle; differentiating the tax burden among the several different property types did not fail the rational basis test applicable to due process claims. *Tax Equity Now NY LLC v City of New York*, 42 NY3d 1.

4. Assessment — Fair Housing Act — Disparate Impact.—The Appellate Division erred in dismissing plaintiff's three causes of action against defendants City of New York and New York City Department of Finance alleging violations of the Fair Housing Act (42 USC § 3601 *et seq.* [FHA]) based on a disparate impact theory. The complaint sufficiently pleaded that the City's tax assessment system was a cause of the barriers to housing access, which disparately impacted minority homeowners and minority-majority communities with respect to class one and class two properties, and perpetuated existing segregation throughout the City. Both intentional discrimination and disparate impact claims are cognizable under the FHA, which prohibits state and local laws and governmental practices that discriminate based on the protected classifications. The complaint alleged, relying on hard data, that the City drastically overassessed and overtaxed majority-

TAXATION—Cont'd

minority communities and the properties in which minorities disproportionately lived as compared to whites in the City, that certain class properties were similarly taxed at higher rates along racial lines and that, because of the demographic differences between districts, the extreme disparities in tax rates fell heaviest on minorities. The complaint also alleged discrimination with respect to the terms and conditions of housing under 42 USC § 3604 (a) in light of the transfer of tax burdens to home buyers and renters. The Appellate Division imposed a causation requirement that was ill-suited to the judicial task at hand and inapt at the pleading stage of the litigation. *Tax Equity Now NY LLC v City of New York*, 42 NY3d 1.

TOWNS.

See MUNICIPAL CORPORATIONS

TRIAL.

PLACE OF TRIAL.

1. Demand for Change of Venue — Contractual Forum Selection Clause — Burden to Raise Issue of Fact Regarding Authenticity of Signatures.—In plaintiff's negligence, medical malpractice, and wrongful death action in which defendant skilled nursing facility and rehabilitation center sought an order transferring venue pursuant to the forum selection clause in two admission agreements electronically signed by decedent, plaintiff failed to establish a triable issue of fact as to whether the signatures were forged. Defendant came forward with sufficient circumstantial evidence of authenticity, and once that showing was made, plaintiff was then required to produce evidence sufficient to establish a genuine issue of fact regarding the authenticity of decedent's signatures. Plaintiff offered only an affidavit in which he claimed to be familiar with decedent's handwriting. Based on a summary of certain perceived inconsistencies in the signatures and initials on the agreements, plaintiff asserted that "whoever the person or people who signed and initialed these pages may have been, it was not my mother." Attached to the affidavit was an undated "exemplar" of what was purportedly decedent's signature, but no effort was made to establish that the exemplar represented decedent's signature at the relevant time. Furthermore, the exemplar was purportedly decedent's handwritten signature, and electronic signatures may naturally differ from handwritten ones. *Knight v New York & Presbyt. Hosp.*, 42 NY3d 699.

2. Demand for Change of Venue — Contractual Forum Selection Clause — Circumstantial Evidence of Authenticity.—When put in issue, the proponent of a motion for a change of venue pursuant to CPLR article 5 bears the initial burden to establish the authenticity of a writing for purposes of a motion to enforce a contractual venue provision, which may be done through circumstantial evidence. Accordingly, in plaintiff's negligence, medical malpractice, and wrongful death action in which defendant skilled nursing facility and rehabilitation center sought an order transferring venue pursuant to the forum selection clause in two admission agreements electronically signed by decedent, the affidavit of defendant's director of admissions with attached agreements bearing decedent's signature and initials was sufficient circumstantial evidence of authenticity. The director stated that she searched defendant's records for decedent's admission agreements, affirmed that they were kept and maintained in the ordinary course of defendant's business, and, while she had no personal recollection of decedent, she confirmed that a representative of defendant was present when decedent signed each agreement. The director then described the custom and practice of defendant's representatives during the admission process, which involved meeting with the resident to review paperwork and determining whether the resident was oriented, responsive and conversing appropriately. Decedent's signature appeared on the last page of each agreement as well as on the attached Medicare and HIPAA forms, and her initials appeared on each page of the agreements and attachments. The first paragraph of each agreement advised the resident that admission was conditioned upon review and execution of the agreement and related documents. *Knight v New York & Presbyt. Hosp.*, 42 NY3d 699.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

WORKERS' COMPENSATION.

INJURIES ARISING OUT OF AND IN COURSE OF EMPLOYMENT.

1. Statutory Presumption — Lack of Evidence as to Motivation for Workplace Assault.—In cases involving assaults that occur at work, a lack of evidence as to the motivation for the assault does not rebut the presumption set forth in Workers' Compensation Law § 21 (1), which provides that when an injury arises in the course of a worker's employment, it is presumed to arise out of that worker's employment and therefore is compensable, absent substantial evidence to the contrary. Accordingly, in a case in which claimant was shot at the hospital where he was working by an assailant with whom he had no prior contact, the presumption applied and was unrebutted and the claim was compensable. It was undisputed that the assault occurred in the course of claimant's employment, thereby triggering the Workers' Compensation Law § 21 (1) presumption. It was also undisputed that the record included no evidence of the motivation for the assault or any indication of a prior relationship between the assailant and claimant; they never worked together, did not know each other, and had no prior communication. The Appellate Division therefore erroneously disturbed the Workers' Compensation Board's determination that the claim was compensable. To the extent the Appellate Division has read *Matter of Seymour v Rivera Appliances Corp.* (28 NY2d 406 [1971]) to require an additional affirmative showing of a "nexus" with employment when there is a workplace assault, such a showing is not required. *Matter of Timperio v Bronx-Lebanon Hosp.*, 42 NY3d 307.

ZONING.

See MUNICIPAL CORPORATIONS

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|---|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change appellant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 5. 51 NY2d 62 (Matter of Priest v Hennessy) | At 51 NY2d 68, line 9, change constitutes to constitutes. |
| 6. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 7. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 8. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 9. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 10. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 11. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 12. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 13. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 14. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 15. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 16. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 17. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 18. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 19. 94 NY2d 759 (Phillips-Smith Specialty Retail Group II, L.P. v Parker Chapin Flattau & Klimpl, L.L.P.) | Change the page number of the reported below citation from 209 to 208. |
| 20. 97 NY2d 709 | In Criminal Leave Table, first 13 entries on this page (from <i>People v Santos</i> through and including <i>People v Stallone</i>), change the year within the decision date from “/01” to “/02.” |
| 21. 100 NY2d 960 (Vernon v Vernon) | At 100 NY2d 967, line 7 of second paragraph, change degree to decree. |

22. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
23. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
24. **3 NY3d 491** (People v Jones) At 3 NY3d 496, lines 21 and 22, insert a dash after the word force and after the word attack.
25. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
26. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
27. **4 NY3d 884** (People v Bronson) Change the title entry from Bronson to M.B.
28. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
29. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
30. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
31. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
32. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.

33. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.
34. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
35. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
36. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
37. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
38. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
39. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"

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| 40. 23 NY3d 665 (Norex Petroleum Ltd. v Blavatnik) | At 23 NY3d 668, footnote 3, last sentence on page should read . . . For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor |
| 41. 24 NY3d 294 (People v Silva) | At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard. |
| 42. 25 NY3d 906 (Richard H. v State of New York) | Change 1324 to 1306 in the middle column of the motion for leave to appeal table. |
| 43. 26 NY3d - 28 NY3d | Change the spelling of “irrevelant” to “irrelevant” throughout. |
| 44. 26 NY3d 903 (McMillin v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 45. 26 NY3d 903 (Town of N. Elba v Grimditch) | Change the reported below citation from 130 AD3d 150 to 131 AD3d 150. |
| 46. 27 NY3d 1079 (People ex rel. Monte v Mingo) | Change respondents’ name in title from <i>Warden</i> to <i>Warden Maxsolaine Mingo</i> . |
| 47. 27 NY3d 1158 (People v McCullough) | At 27 NY3d 1161, line 8 from the bottom of the page, delete the comma that follows 531. |
| 48. 28 NY3d 1123 (People v Faeth) | In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne). |

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| 49. 32 NY3d 1222 (People v Javon Loney) | Change appellant's name in title from Javon Loney to J.L. |
| 50. 33 NY3d 950 (People v Loney) | Change appellant's name in title from Loney to J.L. |
| 51. 37 NY3d 901 (Matter of Laland v Bookhart) | Change Laland, Matter of, v Bookhart to D.L., Matter of, v S.B. |
| 52. 37 NY3d 918 (Matter of Lynch v City of New York) | Change granted to motions granted in the third column of the motion for leave to appeal table. |
| 53. 37 NY3d 927 (Matter of Laland v Bookhart) | Change appellant's name in title from Davlin Laland to D.L. and respondent's name from Shavonne Bookhart to S.B. |
| 54. 38 NY3d 1123 (Elberg v Crabapple Corp.) | Change the reported below citation from 203 AD3d 425 to 201 AD3d 546; 2022 NY Slip Op 63824(U). |
| 55. 38 NY3d 1133 (People v Fleming) | In Criminal Leave Table, middle column, change 1st Dept: 201 AD3d 552 (Bronx) to App Div, 1st Dept: 2022 NY Slip Op 60633(U) (Bronx). |